IN THE COURT OF Mr. PAWAN KUMAR MATTO,
SPECIAL JUDGE (NDPS),
ADDITIONAL SESSIONS JUDGE NORTH-WEST,
ROHINI COURTS, DELHI

New Sessions Case Number : 52403/2016

State

versus

1. Mr. Manoj
Son of Sh. Chander Shekhar
Resident of C-1526, Gali No.9,
Jain Nagar, Karala, Delhi.

2. Sh.Anil
Son of Sh. Chander Shekhar
Resident of C-1526, Gali No.9,
Jain Nagar, Karala, Delhi.

First Information Report Number : 1210/2014
Police Station : Begum Pur
Under section : 302/34 of the Indian Penal Code.

Date of receiving the file in this court on assignment : 09.02.2015
Arguments concluded on : 12.09.2018
Date of judgment : 18.09.2018

JUDGMENT

1. The brief facts of the case are that DD No. 59 B was lodged on 31.10.2014 at 6:13 PM, wherein, it is mentioned that an information was received from the PCR that in Gali No. 9, Jain Nagar, Karala opposite Nag Mandir, Sector-20, Rohini, Delhi, a quarrel had taken place and blood was oozing out from the head of the injured. After lodging of the said DD no. 59 B, the same was assigned to SI Sandeep Tushir, who alongwith Ct. Ravi arrived at the spot and came to understand that injured was already taken to hospital and this SI went to SGM Hospital and it was revealed that patient Vijender Meena was already taken to an unknown hospital by his guardian and on finding the MLC, an offence punishable u/s. 308 IPC was found and FIR was registered. IO had proceeded for the stop and met with Sanjay Singh, who claimed to be an eye witness. IO had recorded the statement Ex.PW2/DA of Sanjay Singh, wherein, he has stated that he lives at the address as mentioned in his statement Ex.PW2/DA and his wife was giving tuition to the son of the deceased namely Piyush, who is about 3 years of age and on dated 31.10.2014. This witness Sanjay was present in his house and his wife was giving tuition to the children and when the time of tuition of Piyush, (who is son of deceased) was going to be overed and it was about 6:00 PM, this witness had heard the noise and he tried to open the door of his house and found that the main gate of his house was bolted from outside and he peeped from the space in the gate and found that accused Anil was having a DANDA in his hand and he had given DANDA blow on the head of Vijender Meena, who fell down on the earth and Vijender was caught and snubbed by Anil and Manoj, who is the brother of accused Anil had given brick blow on the head of Vijender with

full brick repeatedly and Vijender was crying with the pain and accused Anil had caught the hands of the Vijender tightly. He was exhorting that BHAI YEH SALA HAMARE AUR VERMA KE JHAGADE ME JYADA CHAUDHARY BAN RAHA THA, IS SAALE KO TAB TAK MAARO, JAB TAK ISKI JAAN NA NIKAL JAYE and Manoj had given repeated blows on his head and thereafter both the accused fled away from the spot on their motorcycle and while, they were fleeing away from the spot Manoj had thrown away the brick near the place of occurrence. Whereas, Anil had taken the DANDA used in the alleged commission of offence, with him and accused Manoj was driving the Motorcycle, whereas Anil was sitting on its rear seat. He has also stated that he dialed 100 number and some one opened the bolt of his gate. He found that clothes of Vijender were stained with blood, as the blood was oozing out from his head and he made to reach Vijender in the hospital and after leaving him in the hospital, he returned home at 9.00PM and at about 12 midnight, IO/ SI Sandeep Tushir arrived at the spot and SI Sandeep Tushir had prepared site plan of the place of occurrence, at his instance and took blood stained earth,and also took earth from a bit distance where the blood was lying and prepared parcels and sealed the parcels with the seal of ST and blood stained brick was also seized and prepared the seizure memo and obtained the signatures of this witness (PW2) thereon and also stated that blood stained brick was also recovered on his pointing out. Parcel thereof was prepared and sealed with the seal of ST and it was also seized. It is alleged that accused Anil and Manoj in furtherance of their common intention had done brutal attack on Vijender and he had also stated that

first IO had taken the sealed parcels with him and on calling, this witness (PW2) had gone to the police station and such statement of this witness is alleged to have been recorded on 01.11.2014 by SI Sandeep Tushir. The FIR was registered on dated 31.10.2014 at 11.20PM under Section 308 of IPC and thereafter, it was converted under Section 307/34 of IPC. IO had obtained the blood stained clothes of the injured from Sh. Chhatar Singh, who is the brother of deceased. Thereafter, vide DD No. 16A dated 01.11.2014, it was revealed that Vijender was admitted in the Balaji Hospital, Pashchim Vihar and the Sub Inspector went to the said hospital for recording the statement injured Vijender Meena and obtaining the opinion of the doctor. Injured Vijender Meena was not found fit for making statement and on dated 02.11.2014 an information was received vide DD No.13A lodged in PS Begumpur that injured Vijender Meena, who was admitted in the Balaji Action Hospital, had expired. Accordingly, the offence was aggravated u/s. 302/34 of IPC. Dead body was got identified by the relatives of the deceased. Inquest papers were also prepared and postmortem was also got conducted. Statement of another eye witness Dayanand Verma was also recorded. Exhibits were also seized and accused Manoj was arrested on dated 02.11.2014. Whereas, accused Anil was arrested on dated 03.11.2014 and both the accused are behind bars since the days of their arrests.

2. On the completion of the investigation, the Charge sheet was filed against both the accused u/s. 302/34 of IPC in the Court of Ld. Metropolitan Magistrate and the copies of Chargesheet were supplied to

both the accused and the case was committed to the Court of Sessions and the same was assigned to the Predecessor of this court.

3. On finding prima facie case, charges under section 302/34 IPC were framed against accused Manoj and Anil, to which, they pleaded not guilty and claimed trial. Accordingly, the accused were put on trial.

4. In order to prove its case, the prosecution has examined 20 witnesses.

5. Sh. Heera Chand Meena has been examined as PW-1. He was also cross examined by the Ld. Counsel for accused.

6. Whereas, Sh. Sanjay Kumar Singh has been examined as PW-2. He was also cross examined by the Ld. Counsel for the accused.

7. Whereas, Inspector Manohar Lal has been examined as PW-3 who has deposed that on 12.12.2014, he was posted as draftsman in North West District and on that day, on receipt of call from Inspector Sudhir Gulia of PS Begumpur, he reached at PS Begumpur and he alongwith IO/Inspector Sudhir Gulia and SI Sandeep reached at spot i.e. Gali No.9, near H.No. C-1395, Jain Nagar, Delhi. He has further deposed that he took measurements and rough notes for the preparation of scaled site plan at the instance of SI Sandeep and on 13.12.2014, he prepared the scaled site plan, handed over the same to the IO and destroyed rough

notes and measurements. He has proved the scaled site plan Ex. PW3/A. The opportunity to cross examine this witness was given to the accused. But, the counsel for accused did not cross examine this witness, so, the opportunity of the accused to cross examine this witness was done NIL.

8. Whereas, Ct.Bhupender Singh who has been examined as PW4, had brought the attested copy of PCR Form dated 31.10.2014 alongwith certificate U/s.65B of Indian Evidence Act signed by SI Devender Kumar, Nodal Officer, CPCR, PHQ, New Delhi and deposed that on 31.10.2014, he was posted as Constable in CPCR, PHQ, New Delhi and on that day at 18:07 hours an information was received from Sh. Sanjay Kumar Singh who made call from his phone no. 9811478433. He has further deposed that it was informed that *"at Jain Nagar, Gali No.9, Nag Mandir, Opposite Sector-22, Rohini, Jhagda, injured Moka Par head Se Jyada Khoon Nikal Raha Hai"* and he filled up the PCR form and sent this information to Console for onward transmission and proved the attested copy of PCR form Ex. PW4/A. He has further deposed that the portion encircled X in the form Ex. PW4/A was filled by him and he had identified the signatures of SI Devender Kumar, as he had seen him writing and signing during the official course of his duty. He has also proved the certificate U/s.65B of Indian Evidence Act Ex.PW4/B. This witness was cross examined by Ld. Counsel for accused. During his cross examination who has deposed that he did not know the name of the person who took the print out of Ex. PW4/A. He did not know the date, when the print out of the PCR form was obtained. He has further deposed

that the portion Mark X in Ex. PW4/A was the only information, which was conveyed to him by the informant.

9. Whereas, HC Sukhram Pal has been examined as PW5 who has deposed that on 02.11.2014, he was posted as DD Writer at PS Begumpur and his duty hours were from 8.00 AM to 4.00 PM. At 9.50 AM, an information was received from Security Supervisor Sh. F.K. Ojha of Balaji Hospital, Pashchim Vihar regarding death of injured Vijender who was admitted in the said hospital on 31.10.2014 vide MLC No. 21103/14. He has further deposed that the information was recorded by him vide DD No.13A and he had brought original DD register containing DD No.13A and copy of the same is Ex.PW5/A and copy of DD No.13A Ex.PW5/A1. The opportunity to cross examine this witness was given to the accused. But, the counsel for accused did not cross examine this witness. So, the opportunity of the accused to cross examine this witness was done NIL.

10. Whereas, HC Jaiveer Singh has been examined as PW6, who has deposed that on 31.10.2014, he was posted in PS Begumpur as Head Constable and was working as Duty Officer from 4.00 PM to 12.00 midnight. He has further deposed that at 11.20 PM, he had received the rukka of this case and same was produced by SI Sandeep. He has further deposed that on the basis of said rukka, he got registered FIR No.1210/14 on computer, copy of the same is Ex.PW6/A. He has further deposed that after registration of FIR, he made endorsement on rukka is Ex.PW6/B and after registration of FIR, the original rukka and copy of FIR were

handed over to Ct. Ravi for giving to SI Sandeep at the spot. The opportunity to cross examine this witness was given to the accused. But, the counsel for accused did not cross examine this witness. So, the opportunity of the accused to cross examine this witness was done NIL.

11. Whereas, HC Anand Kumar has been examined as PW 7, who has deposed that on 01.11.2014, he was posted as DD Writer at PS Begumpur and his duty hours were from 8.00 AM to 4.00 PM. At 9.30 AM, an information was received from Security Supervisor Sh. F.K. Ojha of Balaji Hospital, Pashchim Vihar regarding admission of injured Vijender Meena, who was brought from Sanjay Gandhi Memorial Hospital, vide MLC No.21103/14. He has further deposed that the information was recorded by him vide DD No.16A and he had brought original DD register containing DD No.16A, copy of the same is Ex. PW7/A and copy of DD No.16A is Ex.PW7/A1. The opportunity to cross examine this witness was given to the accused. But, the counsel for accused did not cross examine this witness. So, the opportunity of the accused to cross examine this witness was done NIL.

12. Whereas Ct. Umesh Babu has been examined as PW-8, who has deposed that on 09.12.2013, while, he was posted as constable at PS Begumpur, under directions of IO, he had taken the exhibits of this case for depositing the same in the FSL vide RC No. 124/21/14 and 125/21/14 is Ex. PW 8/A and Ex PW 8/B. He has further deposed that after depositing the same he had received the acknowledgement and the copy

of the acknowledgement is Ex. PW 8/C and on return to the PS he had submitted the acknowledgement to the malkhana moharrar. He has further deposed that so long as the exhibits of the case remained in his possession, the same were not tampered with by anyone. The opportunity to cross examine this witness was given to the accused. But, the counsel for accused did not cross examine this witness. So, the opportunity of the accused to cross examine this witness was done NIL. It appears to the court that this witness had forgotten the date of depositing the exhibits in the FSL. He has told the date as 09.12.2013 ie prior to commission of the offence.

13. Whereas HC Prahlad Singh has been examined as PW-9, who has deposed that on 01.11.2014, he was posted in the malkhana in PS Begum Pur and on that day SI Sandeep Tushir deposited four parcels sealed with the seal of ST vide entry no. 524/14 Ex.PW9/A. He has further deposed that on 02.11.2014, Inspector Sudhir Kumar deposited two sealed parcels sealed with the seal of SGMH Mortuary with sample seal, vide entry no. 530/24 Ex.PW9/B. He has further deposed that on 03.11.2014, Inspector Sudhir Kumar deposited one pullanda sealed with the seal of SKG vide entry no. 532/14 Ex. PW 9/C and the sealed pullanda was sent to SGMH Mangol Puri vide DD No. 18 and the return entry was affected vide DD no. 54B and the endorsement to that effect against entry no. 532/14 is at point X. He has further deposed that on 09.12.2014, the sealed enveloped/pullanda, which was deposited vide entry no. 530/14 was sent to FSL vide RC no. 124/21/14 through Ct.

Umesh Babu and the endorsement to that effect against entry no. 530/14 were also sent to FSL vide RC no. 125/21/14 through Ct. Umesh Babu and the endorsement to that effect is at point X against entry no. 524/14 and the copy of RC 124/21/14 is Ex. PW 9/D and the acknowledgement from the FSL to that effect is Ex. PW9/E, copy of RC no.25/21/14 is Ex. PW 9/F and the acknowledgement is Ex. PW 9/G. The sealed parcel and the sample seal of SGMH Mortuary were not tampered with till remained in his possession. This witness was also cross examined by Ld. Counsel for accused during his cross-examination, he has denied that the case properties were not handed over to him in sealed condition or that the brick and danda were also not in sealed condition or that blood of the deceased was sprinkled over the brick later on or that he had forged the entries and all entries exhibited were made at the instance of IO to falsely implicate the accused persons or that he has deposed falsely.

14. Whereas, Mr. Chattar Singh has been examined as PW-10. He was also cross examined by Ld. Counsel for accused.

15. Whereas, Sh. Dayanand Verma has been examined as PW-11. He was also cross examined by the Ld. Counsel for accused.

16. Whereas, Ms. Pooja Shrotriya, Junior Forensic/Chemical Examiner has been examined as PW-12. The opportunity to cross examine this witness was given to the accused. But, the counsel for accused did not cross examine this witness. So, the opportunity of the

accused to cross examine this witness was done NIL.

17. Whereas, Ct. Chanderpal has been examined as PW 13, who has deposed that on 29.10.2014, he was discharging the duty as DD writer from 4:00 PM to 12:00 midnight and at about 6:53, one call regarding quarrel at 40 Futa Road, Gali no. 6, Nag Mandir was received and said information was recorded in roznamcha register vide DD No. 61B. He has further deposed that on the same day at about 07:00 PM, one more call regarding quarrel by a person with a lady near Nag Mandir, Jain Nagar was received and said information was recorded in roznamcha register vide DD No. 62B. He has further deposed that on 31.10.2014 at about 6:30 PM one call regarding quarrel at Jain Nagar, Gali No. 9, Nag Mandir Opposite Sector 20, Rohini, Delhi and injured was bleeding profusely from his head was received. He has further deposed that said information was recorded in roznamcha register vide DD no. 59B and same is Ex. PW 13/C. The opportunity to cross examine this witness was given to the accused. But, the counsel for accused did not cross examine this witness. So, the opportunity of the accused to cross examine this witness was done NIL.

18. Whereas, Dr. Vipin Dabas, has been examined as PW 14. The opportunity to cross examine this witness was given to the accused. But, the counsel for accused did not cross examine this witness. So, the opportunity of the accused to cross examine this witness was done NIL.

19. Whereas, Dr. Anil Kumar, RMO, Sri Balaji Action Medical Institute has been examined as PW 15. The opportunity to cross examine this witness was given to the accused. But, the counsel for accused did not cross examine this witness. So, the opportunity of the accused to cross examine this witness was done NIL.

20. Whereas, Prashant Kumar Verma has been examined as PW 16 and he was also cross-examined by Ld. Counsel for the accused.

21. Whereas, SI Sandeep Tushir has been examined as PW 17. This witness was also cross examined by Ld. Counsel for the accused.

22. Whereas, Inspector Jagminder Singh (Retired) has been examined as PW 18, who has deposed that on 02.01.2015, he was posted as Inspector Investigation at PS Begumpur and on that day, the file of the present case was entrusted to him for further investigation. He has further deposed that he perused the case file and observed that investigation has already been completed by previous IO/Inspector Sudhir. He has further deposed that he prepared the chargesheet and filed the same in the Court. This witness was cross examined by Ld counsel for accused and during his cross-examination, he has denied that accused persons have been falsely implicated in the present case.

23. Whereas, SI Rajesh Kumar has been examined as PW 19. This witness was also cross examined by Ld. Counsel for the accused.

24. Whereas, Inspector Sudhir Kumar has been examined as PW20. This witness was also cross examined by Ld. Counsel for the accused.

25. On completion of the prosecution evidence, the statements of accused persons u/s 313 Cr.PC were recorded, wherein, both the accused have denied the correctness of the evidence led against them by the prosecution and both the accused have stated that they have been falsely implicated in the present case. The accused have examined four witnesses in their defence. Dr. Gurdeep Singh has been examined as DW-1. He was cross-examined by Ld. Addl.PP for the State. Dr. Rajesh Dalal has been examined as DW 2. He was not cross-examined by the Ld. Addl. PP for the State. So his opportunity to cross-examine this witness was done Nil. Dr. Madhur Mahna has been examined as DW 3. He was also cross-examined by Ld. Addl. PP for the State and Sh. Laxman Singh has been examined as DW 4. He was also cross examined by the Ld. APP for State.

26. I have heard the Ld. Counsels for the parties.

27. The Ld. APP for the State has submitted that on dated 31.10.2014 at 6.13 pm, a 100 number call was given by the prosecution witness No.2 Sanjay Singh, wherein, he had disclosed that the blood was oozing out from the head of the injured and DD No.59B on dated 31.10.2014 was registered in the Police Station Begumpur and further

submitted that the statement of the Sanjay Singh Ex. PW2/DA was recorded by the IO on 01.11.2014, wherein, he has levelled categorical allegations against both accused and stated that the son of the Vijender Meena (deceased) was taking tuitions from the wife of this Sanjay Singh and on dated 31.10.2014, he was present in his house and his wife was giving tuitions to the son of the deceased Piyush and the time of tuition of Piyush was likely to be overed. At about 6.00 pm, he heard the noises in the street and when, he tried to open the door, he found that his gate was bolted from outside and he peeped from the gap of the gates and found that accused Anil was having danda in his hands and he gave danda blow on the head of Vijender Meena, (who is the father of the Piyush) and as a result of which, he fell down and accused Anil had caught hold to the Vijender Meena and his brother Manoj (accused) gave brick blows on the head of the Vijender Meena and Vijender Meena was crying with the pain and this accused Anil was also shouting that *"bhai ye sala hamare aur Verma ke jhagde me jyada Chaudhary ban raha tha, iss saale ko tab tak maaro jab tak iski jaan na nikal jaye"* and Manoj had given 20-25 brick blows on the back side of head of the deceased and thereafter, both the accused had fled away from the spot on their motorcycle and the accused Manoj had thrown the brick near the place of occurrence and accused Anil was waiving danda while fleeing away from the spot and Manoj was driving motorcycle and Anil was sitting as pillion rider thereon and this Sanjay Singh had dialled 100 number to call to the police. He has further submitted that this Sanjay Singh has also stated in his statement Ex.PW2/DA that the clothes of Vijender Meena were stained with the

blood and blood was oozing out from the head of Vijender Meena and this Sanjay Singh had taken the Vijender Meena along with Dayanand Verma and wife of deceased to the hospital and this PW2 returned to his house at 9.00 pm after leaving him in the hospital and further submitted that at about 12.00 midnight, the IO had arrived at the spot and on the identification of Sanjay Singh, the site plan was prepared and earth control was also taken and sealed with the seal of SD and it was given serial No.1 and further submitted that the case properties were seized vide Seizure Memo and further submitted that accused Manoj was arrested on 02.11.2014 and Anil was arrested on 03.11.2014 further submitted that since this Sanjay Singh has been examined as PW2 and his testimony remained consistent on material point and further submitted that Dayanand Verma is another eye-witness, who has been examined as PW11 and he has also corroborated the version of Sanjay Singh who has been examined as PW2 and further submitted that testimonies of PW2 and PW11 have been corroborated with the MLC of the deceased and the MLC reveals that blood was there in the nasal of the deceased and further submitted that since, these accused in furtherance of common intention have caused injury on the vital part i.e. head of the deceased. As in view of the same, the deceased expired on 02.11.2014 and submitted that since the injury caused by the accused was sufficient in the ordinary course of nature to cause death and further submitted that the opinion of the expert regarding the weapons and the injury was also obtained, which is proved on record as Ex.PW20/E and the doctor had opined that there is possibility of the injury from the wooden cane and brick and further

submitted that the postmortem report of the deceased Ex.PX-1 reveals that the cause of death due to shock associated with Craniocerebral damage under injury no.1, which is sufficient to cause death in ordinary course of nature and further submitted that since the postmortem report reveals that three injuries are mentioned therein and further submitted that in view of repeated injuries caused on the person of the deceased, it is clear that the accused were having common intention to kill to the deceased, as earlier the quarrel had taken place on 29.10.2014 between accused and Dayanand Verma and this deceased had intervened and tried to pacify the matter and in view of the same, the accused were having grudge in their minds and on the date of the occurrence, this deceased had gone to the house of Sanjay Singh for taking his child back to his house, after tuitions, but, the accused bolted the door of the house of Sanjay Singh and caused multiple injuries on the person of the deceased, as a result of which, the deceased expired on 02.11.2014 and submitted that little contradictions are there in the testimony of Sanjay Singh regarding the maker of motorcycle, on which this accused fled away, but, the said contradictions are not material nor effect the merit of the case and further submitted that since the report of the FSL reveals that blood has also found on the brick and thus, the testimonies of the PW2 and PW11 are well corroborated with the medical evidence and submitted that the accused Anil was arrested. He has made disclosure statement and disclosed about the danda, which is used in the commission of crime and in furtherance thereof, the danda has been recovered, so the disclosure statement of this accused Anil Ex.PW19/B is

admissible to the extent of discovery of this danda and u/s. 27 of the evidence Act and further submitted that from the testimony of PW2 and PW11, MLC Ex.PW14/A, postmortem report Ex.PX1 and report of FSL Ex.PW12/B, it is clear that both the accused in furtherance of common intention had murdered the deceased and Dayanand Verma (PW-11) and his son Prashant Verma (PW-16) have also proved that the accused were having grudge in their minds. As deceased had called to the police on 29.10.2014, when, the dispute arose between family of Dayanand Verma and family of this accused and prayed for convicting both the accused u/s 302/34 of IPC.

28. Whereas, on the other hand, the Ld. Counsel for the accused has submitted that DD No.59B was registered on the telephonic call given from phone No.9811478433, but, the prosecution has failed to prove on record that as to who was the caller of the said call and in whose name the said connection stood and submitted that the statement of Sanjay Singh u/s 161 Cr.P.C. Ex.PW2/DA was recorded on 01.11.2014. Whereas, the statement of another alleged eye witness namely Dayanand Verma was recorded on 04.11.2014 and since the PW2, during his cross-examination had admitted that he has apprised to the IO regarding the names of both the accused on the night of 31.10.2014, but, the police has failed to make the sincere efforts to arrest the accused till 02.11.2014, so the case of the prosecution is doubtful and benefit of doubt is liable to be given to the accused. He has further submitted that occurrence is alleged to have taken place at about 6.00 pm on 31.10.2014, whereas, the FIR

has been registered on same night i.e. 31.10.2014 at 11.20 pm. But both the accused are not named in the FIR and further submitted that there is a considerable delay in registration of the FIR. Ld. Counsel for the accused has further submitted that the testimony of PW-2 namely Sanjay Kumar Singh is not reliable, as there are number of improvements in his testimony recorded in this court. He has further submitted that the postmortem report of the deceased Ex PX-1 reveals only one injury, on the head of the deceased. Whereas, PW-2 has alleged that accused Anil had caused danda blow and Manoj has caused 20-25 injuries on the head of deceased with the brick and thus, the ocular testimony of PW-2 is not supported or corroborated with the medical evidence, as the postmortem report of the deceased reveals only one injury on the head. He has further submitted that PW-2 when examined in this court, has alleged that after commission of crime, both the accused fled away on Pulsar Bike. Whereas, the seizure memo Ex.PW17/H reveals that HONDA Twister motorcycle has been seized. Thus, the ocular testimony of this PW2 is also not in consonance with Ex.PW17/H. He has further submitted that since PW-2 has admitted that he did not know the name of the accused Anil and deposed in the court that he knew the name of Manoj and further submitted that even if, both the accused and prosecution witnesses were living in the same vicinity, it cannot be presumed that this prosecution witness No. 2 knew to the accused and further submitted that TIP was also required to be done and further submitted that this witness has deposed in the court that his clothes were stained in the blood, but, blood stained clothes of this witness were not seized by the IO, so the presence

of this witness at the place of alleged occurrence becomes doubtful. He has further submitted that PCR Form is also not proved as no certificate has been given by the proper witness under section 65B of Indian Evidence Act and further submitted that it is also not proved on record that on whose call, PCR Van came and further submitted that this prosecution witness has deposed during his cross examination that he had gone to police station for the first time on 02.11.2014, whereas, during his cross-examination, he has also admitted that he had never told the names of the accused to the police of PCR staff and even at the time of recording his statement under section 161 Cr.PC. Whereas, the statement of this witness PW-2 allegedly recorded by the police on 01.11.2014, the names are mentioned and there is no explanation for non recording of the statement of this witness promptly by the IO. He has also submitted that the statement of Dayanand Verma, who is also an alleged witness was recorded on 04.11.2014 and that he is also a planted witness. The Ld. Counsel for the accused has further submitted that PW-2 Sanjay, PW-11 Dayanand have claimed that on the date of alleged occurrence, both of them along with wife of deceased had taken the Vijender Meena (since deceased) to the hospital. But the MLC of Vijender Meena reveals that Vijender Meena was taken to hospital by Ms. Neha Sharma of Cat Ambulance Staff and further submitted that had Vijender Meena been taken to the hospital by them, then, the MLC Ex.PW14/A of deceased could have reveal the name of any of them. He has further submitted that PW-2 has alleged that 20/25 times brick blows were given on the head of the injured, but, the MLC Ex.PW14/A does not reveal that 20/25 injuries

were there on his head and even postmortem report Ex.PX1 does not reveal that 20/25 injuries were caused on the head of deceased, only one injury is mentioned on the head of injured in his MLC Ex.PW14/A and postmortem report Ex.PX1 and further submitted that statement of Sanjay Singh (PW2) was recorded by the IO on 01.11.2014, whereas, the statement of Dayanand Verma PW-1 was recorded on dated 04.11.2014 and statement of Prashant Verma was recorded on dated 01.11.2014 and in view of delay in recording the statement of these witnesses of prosecution, the story of the prosecution becomes doubtful. The Ld. Counsel for the accused further submitted that PW-11 has alleged that prior to this occurrence, at the time of quarrel between the family's members of Dayanand Verma and family's members of accused, 100 number was dialed by the deceased and this fact has not been proved by the prosecution. He has further submitted that in order to prove the motive, PW-11 has deposed that deceased had dialed 100 number on 29.10.2014, but, this fact is not proved on record and further submitted that PW-16 is son of Dayanand Verma (PW11) and this witness has also been examined to proved the motive behind this occurrence and further submitted that since this prosecution witness No.2 Sanjay Singh did not know to the accused. So, TIP was required to be conducted and further submitted that TIP has not been conducted and the testimony of Sanjay Kumar Singh is full of improvements and also submitted that PW-2 has deposed that at the time of recording of the evidence in the court, that the son of the deceased also said that his father should be saved from the hands of the accused. Thus, the testimony of PW-2 is full of contradictions

on the one side, he has deposed that he has seen the accused where they were beating to the deceased from the space between the two gates and when the accused had fled away from the spot, then, someone had opened the bolt of the house and if the bolt of the door of the house is opened after fleeing away of the accused, from the spot, then, how could the son of the deceased Piyush see the accused while beating his father. He has also submitted that PW-2 has deposed that accused after commission of the crime, fled away from the spot on their pulsar motorcycle and further submitted that seizure memo Ex.PW17/H reveals that motorcycle seized is not pulsar, but is Honda Twister and further submitted that testimony of Dayanand is also suspicious one, as distance between the place of alleged occurrence and house of Dayanand is of about 170 feet and on the date of alleged occurrence, the sun set at 05:35 PM and occurrence had taken place at 6.00PM and further submitted that since, the sun had already set and this is unauthorised (Kachchi) colony, where illumination was there and in the darkness, it was not probable for this witness to see the accused from such a distance of 170 feet and further submitted that if the IO had come to understand about the about the accused on the night of 31.10.2014, then, what had prevented him from arresting the accused and since IO has failed to arrest the accused promptly. So, the version of the prosecution also becomes doubtful and further submitted that even if the prosecution witness No.2 Sanjay Singh is residing in the same vicinity, so, it cannot be presumed that Sanjay also knew to the accused and since during the cross-examination of PW-2, he has admitted that he was not aware about the name of the accused

Manoj. So, TIP was required to be conducted and since the TIP has not been conducted and ocular testimony of the PWs are not corroborated by the medical evidence, so, story of the prosecution becomes doubtful, so, the benefit of doubts are liable to be given to the accused. The Ld. Counsel for accused has further submitted that PW-11 has also alleged that he heard the noise, then, he came out from his house and witnessed this occurrence and at the same time, he has also submitted that since the house of the PW-11 is not situated near occurrence, so, he could not see the occurrence. He has also deposed that only 1-2 persons were there and the other ladies were on the roofs. The Ld. Counsel for the accused has further submitted that this witness (PW-11) had concocted the story and further submitted that occurrence has been taken place on dated 31.10.2014, whereas, the statement of this witness was recorded by the IO on dated 04.11.2014 and there is no explanation of the recording of the statement of this witness at the belated stage. He has further submitted that this witness has deposed that he remained in the hospital on the night of 31.10.2014 and went to his house on dated 01.11.2014 and this witness remained present in his house and the statement of the witness U/S 161 was recorded on dated 04.11.2014 and in view of delay in recording of the statement of this witness and further submitted that PW-11 has deposed that this witness & wife of deceased remained in the hospital in the night of 31.10.2014, whereas, PW-17, during his cross-examination, he has deposed that he met to the wife of deceased at 1.00AM near the place of occurrence. The Ld. Counsel for the accused has submitted that there are material contradiction in the testimonies of

PW11 & PW17 and further submitted that if the wife of deceased remained in the hospital along with deceased on the night of 31.10.2014, then, how could she be present near the place of occurrence that too in the night of 31.10.2014 at 1.00 AM and submitted that since the PW11 claims that he had picked the deceased in injured condition and his clothes were stained with blood. But, the clothes were not seized by the police. Ld. Counsel for the accused has further submitted that had this witness taken to the deceased in injured condition to the hospital, then, his clothes could be stained with blood and IO could seize his blood stained clothes. So, the presence of this witness is not be established at the spot and further submitted that this witness is a planted witness, he has never seen any occurrence and prosecution has concocted the story and further submitted that in the cross-examination of PW-11 is looked into, he has deposed that "KAHA- SUNI" has taken place between the accused and the family of this witness on dated 29.10.2014. Whereas, his son, who has been examined as PW16 has deposed that even the window panes of car were broken and further submitted that testimony of PW11, PW16 & PW17 are found to be inconsistent and full of suspicion. They cannot be relied upon and benefit of doubts are liable to be given to accused. He has further submitted that the testimony of PW2 who is allegedly an eye witness, is totally inconsistent to the testimony of IO from his statement given to the IO recorded under Section 161 Cr.PC. He has further submitted that the statement of PW-2 allegedly recorded under Section 161 of Cr.PC, he has also named both the accused, which was allegedly recorded on 01.11.2014, whereas, at the time of recording of his

testimony in the court, PW 2 he has deposed that he knew only one accused namely Anil and he has also deposed that he went to the police station for the first time on 02.11.2014 and if this witness went to the police station for the first time on 02.11.2014, then how and when, this witness came to know the name of both the accused. It is not explained by the prosecution and submitted that subsequent opinion Ex.PX3 reveals that the injury may be caused with the blunt object, but, the brick of wooden danda alleged to have been used in the commission of crime have never been sent to the FSL and submitted that report of FSL Ex.PW12/B reveals that human blood was found on the piece of brick but it also reveals "no reaction" in the column of grouping and from the report of FSL, it is not clear, as to whose blood was found thereon either it was of deceased or of any other person. It is the case of prosecution has that the alleged danda blow and brick blows were given on the head of deceased and the alleged danda has not been sent to FSL and therefore, in the absence of danda, grouping of blood of deceased is not done that the human blood found on the piece of brick and clothes was of the deceased and in the absence of any cogent evidence regarding grouping of blood of the deceased, the said reports of FSL are of no relevance and on the basis of such reports, no conviction can be awarded to the accused. Since, the occurrence has taken place on 31.10.2014, but the statement of Sanjay Singh, the alleged eye witness was recorded by the IO on 01.11.2014 and if the testimony of PW2 Sanjay Singh is looked into, he has deposed that his statement was recorded on 02.11.2014 and further submitted that the statement of PW11 Dayanand Verma who is

also allegedly an eye witness was also recorded on 04.11.2014 and if the statement of Prashant Verma s/o Dayanand Verma is looked into then, he has deposed in the court that his father Dayanand Verma also went with him to the police station on 01.11.2014. But, then why the IO did not record statement of Dayanand Verma, who is allegedly an eye witness of the occurrence and also submitted that delay in recording the statement of these two witnesses by the IO remained unexplained and as such, the testimonies of these two witnesses are also suspicious and cannot be relied upon. He has also submitted that the occurrence is alleged to have taken place on 31.10.2014 and as per the case of prosecution, IO has arrived at the spot but no effort was made by him to preserve the place of crime and the place of crime remained unattended for the considerable period and submitted that since there are cordial relations between the Sanjay Singh (PW-2) and Dayanand Verma PW11 and testimony of Prashant Kumar (PW16) and Dayanand Verma (PW11) are also found to be contradictory on the material points and further submitted that the testimony of the alleged eye witnesses namely Sanjay Singh and Dayanand Verma are found to be inconsistent, contradictory, improved, embellished and unreliable. So, such testimonies are not sufficient for awarding conviction to both the accused who have been falsely implicated in the present case and submitted that since testimonies of these material witnesses are found to be suspicious and doubtful. So, the benefit of doubts should be given to both the accused.

29. He has further submitted that the area of Nag Temple is about

1135 sq. yards and draftsman has been examined by the accused as DW-4 Laxman Singh, who has proved the site plan prepared by him Ex.DW4/A and he has not been cross examined by the Ld. APP for State regarding the area of the said temple and submitted that the testimony of the prosecution witnesses 19 and 20 are contradictory. PW 19 has deposed that in his cross-examination that the area of the said temple is 50 square yards, whereas, PW 20 in his cross-examination has deposed that area of the said temple 20-25 square yards. In view of unrebutted testimony of DW 4, it is proved is on record that the area of said temple was about 1133 square yards. It is further submitted that on dated 29.10.2014, a quarrel had taken place between the family of Dayanand Verma and Prashant Kumar Verma with the mother of accused. Wherein this accused Manoj, his father Chandershekhar, his mother Rita and his brother Guddu were injured by the family of these prosecution witnesses, when they tried to rescue Ms. Rita, mother of accused from PW-11 and further submitted that Dayanand Verma during his cross-examination has deposed that only KAHASUNI was heLd. Further submitted that son of Dayanand Verma (PW11) namely Prashant Kumar Verma, who has been examined as PW 16, has alleged that bricks were pelted and also window panes of his car were broken by the family of the accused and thus, testimony of PW 11 Dayanand Verma and PW 16 PrashandKumar Verma are inconsistent and further submitted that accused Manoj was brutally beaten by the family of Dayanand Verma, wherein, bone of his shoulder of Manoj was dislocated and he was medically examined vide MLC Ex. DW1/C. DW 1 Dr. Gurdeep has proved that this accused Manoj had suffered grievous

injuries and MLC of this accused also reveals the offence of assault and further submitted that discharge summary of this accused Manoj is proved on record Ex.DW3/A which reveals that this accused was admitted in Sanjay Gandhi Memorial hospital on 29.10.2014, discharged on dated 30.10.2016. Further submitted that as per the advise of the doctor, this accused was suppose to visit the hospital after a week on dated 02.11.2014 for follow up treatment. This accused Manoj was arrested on dated 02.11.2014, so, he could not get further treatment and further submitted that the alleged danda Ex.P-4 is planted on the accused Anil. As his signature was obtained on blank paper and his disclosure statement Ex.PW19/B was made thereon. Since, the recovery of the alleged danda has been effected from the place accessible to the public and in the absence of the public witness, so, the alleged recovery of the danda becomes doubtful. It is further submitted that PW 19 and PW20 never went to the place of the alleged recovery of the danda, as the testimony of PW 19 and PW 20 are contradictory as PW 19 has deposed that there was no school near the Nag Mandir (place of alleged recovery of danda) said temple. Whereas, one photograph of Ex.DW4/B (colly.) reveals that there is a school near the said mandir. It is further submitted that on dated 29.10.2014, brother, mother, father and this accused Manoj were injured and MLC of this accused Manoj has been proved on record as Ex.DW1/C and MLC of mother of accused namely, Rita has been proved on record Ex. DW 2/A by Dr. Rajesh who has been examined as DW2 and further submitted that MLC of father of this accused Manoj has been proved on record as Ex.DW1/B by Dr. Gurdeep Singh (DW1) and

MLC of brother of accused Guddu is also proved on record as Ex.DW1/A. Further submitted that blood group of the deceased is not proved on record as not grouping of blood was done. Further submitted that accused are poor persons and despite of giving beatings to the accused and his other family members on 29.10.2014 by PW11 and his other family members. No FIR was registered against the Dayanand Verma (PW11) and his other family members for assault committed on Manoj, his brother, his father and mother. Further submitted that in view of the same quarrel, Dayanand Verma (PW11) and his son Prashant Kumar Verma (PW16) have deposed against the accused and Dayanand Verma (PW11) and Prashant Verma (PW-16) are the planted witnesses and further submitted that on dated 29.10.2014, when the family members of Dayanand Verma (PW11) were beating to the mother of the accused Rita. Rita had dialed 100 number from her phone and DD no. 62B Ex.PW13/B was registered and submitted that in the case in hand Prashant Kumar Verma and Dayanand Verma have deposed against the accused only for the same reason and further submitted that accused Manoj had suffered grievous injuries of dislocation of his shoulder. So, he could not drive the motorcycle nor he could cause brick blows, as alleged by the accused persons. Further submitted that in order to prove the injury on the person of accused Manoj Accused has been examined as DW-1. It is further submitted that FIR has been registered on 31.10.2014 at 11:20PM and name of both the accused are not mentioned in the FIR and further submitted that if the testimony of PW 2 is looked into, he has deposed that he went to the police station at first time on 02.11.2014 and further

submitted that PW17 has alleged that he arrived at the place of occurrence for the first time on the intervening night 31.10.2014 at 11.45PM. But, he did not record the statement of Sanjay at the spot. It is further submitted that if the testimony of PW-2 is looked into, then, he has deposed that he went to the Police Station for the first time on 02.11.2014 and submitted that the statement of Sanjay Singh recorded u/s. 161 of CrPC reveals the date of it's recording as 01.11.2014 and thus, the testimony of the prosecution witnesses i.e PW-2 and PW-17 becomes doubtful in view of inconsistency therein. As the same are inconsistent to each other and also to the statement of Sanjay singh u/s. 161 Cr.P.C. It is further deposed that Dayanand Verma has deposed that he had accompanied the deceased to the hospital on the date of occurrence and PW 2 Sanjay Singh and PW 11 Dayanand Verma have deposed that their clothes were blood stained, but IO had failed to seize the alleged blood stained clothes of Sanjay Singh and Dayanand Verma which creates the doubt in the version of the prosecution. It is further submitted that the testimony of Dayanand Verma (PW-11) is looked into, that the wife of the deceased has also accompanied them to the hospital from the place of occurrence and she remained in the hospital on the night. But police has failed to record the statement of wife of deceased, PCR staff and also of the staff of CAT Ambulance, wherein, the deceased was allegedly taken to the hospital. Further submitted that had the testimonies of PCR staff and staff of CAT ambulance been recorded, truth could be brought before the court and further submitted that PW2 Sanjay Singh, PW 11 Dayanand Verma and PW-16 Prashant Kumar Verma are the planted witnesses,

their testimonies are full of contradictions. In view of the quarrel held between the family of the accused and family of Dayanand Verma on 29.10.2014, Dayanand and Prashant Kumar Verma have deposed against the accused. Further submitted that case of the prosecution is that in view of the quarrel between the family of the accused with Dayanand, the deceased has been killed by the accused, but Ld. Counsel for accused has submitted that it is absolutely improbable accused would kill the deceased, who was neither friend nor relative of Dayanand Verma. Further submitted that Dayanand Verma has deposed that the wife of deceased remained in the hospital on the night of 31.10.2014, whereas PW 17 has deposed that he met to the wife of the deceased in the said night, when he had gone at the spot at 11:45PM and remained at the spot 12:45 AM and thus, the testimonies of PW 17 and PW11 Dayanand Verma are contradictory to each other. So the same are doubtful and further submitted that there are material contradictions in the testimony of PW-11 and PW-16 and further submitted that the testimony of PW-16 Prashant Kumar Verma is also found to be improved and embellished and also contradictory to the testimony of his father, who has been examined in the court as PW-11. He has also submitted that since the age of Dayanand Verma was about 61 years at the time of alleged occurrence, so he could not see the alleged occurrence from the distance of about 170 feet as the distance between the place of alleged occurrence and his house was of about 170 feet and it was not probable for PW11 to see the occurrence, which allegedly took place on dated 31.10.2014 at about 6:00 PM that too after setting the sun. He has submitted that PW-2, PW-11

and PW-16 are planted witnesses and further submitted that PW-16 has deposed that he did not know Sanjay (PW2) till the date of occurrence and further submitted that even his father was not acquainted with Sanjay Singh (PW2) at the time of occurrence. Whereas, PW-11 has deposed that Sanjay Singh is his neighbor. He used to meet him on regular basis almost everyday and further submitted that the testimony of PW-2, PW-11 and PW-16 are found to be contradictory as there are three versions regarding the same. He has further submitted that PW-11 has deposed during his cross examination that he had returned to his house on 01.11.2014 from the Balaji Action Hospital and in the morning, he had again went to the said hospital and remained there till 11:00 PM and submitted that if this witness Dayanand Verma remained in Balaji Action hospital from the morning to 11:00 PM on 01.11.2014, then at what time, he had gone to the police station on 01.11.2014, as his statement is alleged to have been recorded by the IO on 01.11.2014. Whereas, PW 2 has deposed that he went to the police station for the first time on 02.11.2014. He has further submitted that PW-16 has deposed that he had received the information regarding the occurrence from his wife Pooja, but, no statement of Pooja was recorded by the IO during investigation nor she has been examined in the court. He has further submitted that if the testimony of PW-11 is looked into, then he has deposed that on the night of 31.10.2014, he and the wife of the deceased stayed in the hospital, but, his testimony is found to be contradictory to the testimony of PW-17 as PW-17 has deposed in the court that he went to the spot at 11:45 PM on 31.10.2014 and he found the wife of the

deceased in the street and further submitted that the statement of Ct. Ravi Hooda recorded under section 161 Cr PC Ex. PW-17/DA reveals that he has deposed therein that a call of JHAGDA was received at 6:15 PM and he went to the spot alongwith PW-17 SI Sandeep Tushir and arrived in the house of Vijender Meena (since deceased) and met to his wife and Sandeep Tushir had also enquired from her and also recorded her statement, but, no statement of wife of the deceased has been brought on record. He has further submitted that such statement of Ravi Hooda is found to be contradictory to the statement of PW-11, who has deposed that his wife stayed on the hospital in the night of 31.10.2014 and submitted that if the wife of the deceased was there in the Balaji Action Hospital then how could, she present in the house. He has further submitted that at the time of recording of the statement of PW-17, he has admitted that statement of Ravi Hooda was incorrect and tried to rectify the same that wife of the deceased was found in the street and further submitted that if the husband of this lady was hospitalized in serious condition, then how could she roam in the street, that too in the midnight and submitted that for the best reasons known must be known to IO/Inspector Sudhir for withholding the statement of the wife of this deceased. She is not named in the list of witnesses nor examined in the court. He has further submitted that had there been any enmity between the family of Dayanand Verma (PW11) and the family of the accused, how could the accused cause any harm to Vijender with whom they had no relation of any kind. He has further submitted that since there was no enmity between the deceased and the accused or their family members,

so it was not probable to kill to the deceased without having any motive and further submitted that PW-17 has tried to prove the photographs Ex. PW-17/K-1 to Ex. PW-17/K-4 which were allegedly taken by him from his mobile phone and he has submitted that the said photographs were not proved on record, neither the said mobile phone, from which, the said photographs were clicked has been seized nor produced in the court and nor certificate u/s 65 B of Indian Evidence Act has been filed by this PW-17, so in the absence of any cogent and admissible evidence, the said photographs cannot be held to be proved one and also submitted that report of FSL Ex. PW-12/A reveals that the blood was detected on the alleged clothes of the deceased, but no blood was detected from the earth control and similarly, the report of forensic Ex. PW-12/C reveals about the presence of blood group 'O' on the T-shirt and baniyan but “no reaction” on the jean, piece of brick and gauze of blood are written therein and further submitted that grouping of blood of the deceased was not done, so in the absence of any blood group of deceased, it cannot be inferred that the blood found on the alleged shirt and baniyan was of the deceased. He has further submitted that PW-17 has admitted that he did not record the statement of Sanjay on the intervening night of 31.10.2014 and 01.11.2014. He has deposed that he had recorded the statement of Sanjay on 01.11.2014. But,if the testimony of PW-2 Sanjay is looked into, he has deposed, during his cross examination that his statement was recorded on dated 02.11.2014 and has further submitted that PW-2 has also admitted in his cross examination that at the time of making the call to PCR or in his statement recorded by the IO, he had never told the

names of the accused and submitted that this PW-17 has admitted that for the first time, he went to the spot at 11:45 PM on 31.10.2014. He has further submitted that since the testimony of PW-2 who is the alleged witness is found to be improved, embellished and contradictory, so his testimony cannot be relied upon. He has further submitted that the MLC of the deceased prepared in Sanjay Gandhi Memorial Hospital reveals that the deceased Vijender Kumar Meena was admitted in the said hospital on 31.10.2017 at 7:10 PM and he was taken from the said hospital at 7:30 PM and the death summary of the deceased prepared by Sri Action Balaji Medical Institute reveals that he was admitted in the said hospital on 31.10.2014 at 9:15 PM and submitted that the distance between Sri Action Balaji Medical Institute and Sanjay Gandhi Memorial Hospital is of 3 / 3.5 KM and it could not take such huge time in taking Vijender to the said hospital and submitted that the time gap of taking Vijender from Sanjay Gandhi Memorial Hospital and arrival in Shri Action Balaji Medical Institute is large one, which is not explained. He has further submitted that the testimony of PW-19 is also not reliable who has deposed that he had arrested the accused Anil from Pratap Nagar in Rajasthan from his hostel and this accused Anil got recovered danda and also submitted that at the time of evidence, the Predecessor of this court had seen the said danda and given the observation that no blood stains were found thereon. He has further submitted that the alleged eye witness namely PW-2 Sanjay has alleged that accused had given repeated brick blows on the head of the deceased, but, the same is not corroborated with the medical evidence, so the testimony of the eye witness is found to be

doubtful and it cannot be relied upon. So, the benefit of doubts are liable to be given to the accused and it appears to be blind murder and false case has been planted on these accused who are poor persons and accused Anil was a student of Engineering. Ld. Counsel for accused has submitted that PCR Form is also not duly proved as the PCR Form Ex.PW4/A reveals that call was received by the police, a phone number but it is not proved on the record as to who was the owner of the said mobile phone. The Ld. Counsel for the applicant/accused has further submitted that PW-2 Sanjay Singh, PW-11 Dayanand Verma claim that on the date of alleged occurrence, they had taken the Vijender (since deceased) to the hospital. But the at the same time, he has admitted that MLC of Vijender reveals that Vijender was brought by Neha Sharma CAT Staff and further submitted that they had taken Vijender to the hospital, but the MLC Ex.PW14/A and it is mentioned therein that Vijender was brought to hospital by Neha. He has further submitted that PW-2 has alleged that 20/25 times brick blows were given on the head of the injured, but, the MLC does not reveal that 20/25 injuries on his person even postmortem report Ex.PX1 does not reveal that 20/25 injuries on the person of deceased and further submitted that statement of Sanjay Singh was recorded by the IO on 01.11.2014, whereas, the statement of Dayanand Verma was recorded on dated 04.11.2014 and in view of delay in recording the statement of these eye-witnesses, the story of the prosecution becomes doubtful. The Ld. Counsel for the accused **has** further submitted that PW-11 has alleged that at the time of quarrel between the family's members of Dayanand Verma and family's members

of accused, 100 number was dialed by the deceased and this fact has not been proved by the prosecution. He has further submitted that in order to prove the motive, the PW-11 has deposed that deceased had dialed 100 number on 29.10.2014, but, this fact is not proved on record and further submitted that PW-16 is son of Dayanand Verma and this witness has also been examined to proved the motive behind this occurrence and further submitted that since this witness Sanjay Singh did not know to the accused. So, TIP was required to be conducted and further submitted that TIP has not been conducted and the testimony of Sanjay Kumar Singh (PW 2) is full of improvements. As, he has deposed that at the time of recording of the evidence in the court, the son of the deceased also came out of his and said that his father should be saved from the hands of the accused and the testimony of PW-2 is full of contradictions, as on the one side, he has deposed that he has seen the accused beating to the deceased from the space between the two doors and when the accused had fled away from the spot, then, someone had opened the bolt of the door of his house and if the bolt of the door of the house was opened after fleeing away of the accused from the spot, then, how could the son of the deceased Piyush see the accused while beating his father and how could he say that his father should be save from the accused. He has also submitted that PW-2 Sanjay Kumar Singh has deposed that accused after commission of the crime, the accused fled away from the spot on their pulsar motorcycle and further submitted that seizure memo Ex.PW17/H reveals that motorcycle seized is not pulsar, but is Honda Twister and further submitted that testimony of Dayanand PW-11 is also suspicious

one, as distance between the place of alleged occurrence and house of Dayanand is of about 170 feet and on the date of alleged occurrence, the sun set at 05:35 PM and occurrence is alleged to have taken place at 6.00PM and further submitted that this is unauthorized colony, where the street light were not available and in the darkness, it was not probable for this witness to see the accused from such a distant place i.e 170 feet and further submitted that if the IO had come to understand about the about the accused on the night of 31.10.2014 then what was prevented him from arresting the accused on 31.10.2014 and since IO has failed to arrest the accused promptly. So, the version of the prosecution also becomes doubtful and further submitted that the ocular testimony of the PWs are not corroborated by the medical evidence, testimonies of the alleged eye witnesses are contradictory and improved and suspected. So, story of the prosecution becomes doubtful and submitted that since the prosecution has failed to prove it's case beyond reasonable doubt and thus, the testimonies of these material prosecution witnesses are doubtful. So, the benefit of doubts are liable to be given to the accused. The Ld. Counsel for the accused has submitted that in view of inconsistency in the occular testimony and medical evidence, the testimonies of PW2 and PW11 has become suspicious. He has relied upon many judgments to be discussed hereinafter:

1. State of NCT of Delhi V. Taj Mohd. @ Taju and Anr., Criminal L.P. No.8/12 MANU/DE/3448/2013,
2. Dalip @ Pappu Vs. State Crl. MANU/DE/3149/2012,
3. Sattatiya @ Satish Rajanna Kartalla Vs. State of

Maharashtra MANU/DE/3149/2012.

4. Smt. Bimla Devi Vs. State of Haryana in Criminal Appeal No.1026/2002, MANU/SC/0306/2003,

5. State of Gujarat Vs. Patel Mohan Mulji and another MANU/SC/0069/1994 and

6. Bhikhwa @ Prakash Vs. State (NCT of Delhi) in Criminal Appeal No.274/1998, MANU/DE/4064/2006

30. I have given thoughtful consideration to the submissions made by Ld. Counsels for the parties and perused the record.

31. It is the case of the prosecution that DD No.59 B was lodged on 31.10.2014 at 6:13 PM, wherein it is mentioned that an information was received from the PCR that in Gali No. 9, Jain Nagar, Karala opposite Nag Mandir, Sector 20, Rohini, Delhi, a quarrel had taken place and blood was oozing out from the head of the injured. After lodging of the said DD no. 59 B, the same was assigned to SI Sandeep Tushir, who alongwith Ct. Ravi arrived at the spot and came to understand that injured was already taken to hospital and this SI went to SGM Hospital and it was revealed that patient Vijender Meena was already taken to an unknown hospital by his guardian and on finding the MLC, an offence punishable u/s. 308 of IPC was found and FIR was registered. IO is alleged to have met with the complainant Sanjay Singh (PW-2) who claimed to be an eye witness on dated 31.10.2014 and IO is alleged to have recorded the statement of Sanjay Singh Ex.PW4/DA on dated 01.11.2014, wherein, it is stated that

his wife was giving tuition to the son of the deceased namely Piyush, who is about 3 years of age and on dated 31.10.2014 witness Sanjay was present in his house and his wife was giving tuition to the children and when the time of tuition of Piyush, (who is son of deceased) was going to be overed and it was about 6:00 PM, this witness had heard the noise and he tried to open the door of his house and found that the main gate of his house was bolted from outside and he peeped from the space in the gate and found that accused Anil was having a DANDA in his hand and he had given DANDA blow on the head of Vijender Meena, who fell down on the earth and Vijender was caught and snubbed by Anil and Manoj who is the brother of accused Anil had given brick blow on the head of Vijender with full brick repeatedly and Vijender was crying with the pain and accused Anil had caught the hands of the Vijender tightly. He was exhorting that BHAI YEH SALA HAMARE AUR VERMA KE JHAGADE MAI JAYADA CHOUDHARY BAN RAHA THA ISS SALE KO TAB TAK MARO JAB TAK ISKI JAAN NA NIKAL JAYE and Manoj had given repeated blows on his head and thereafter both the accused fled away from the spot on their motorcycle and while, they were fleeing away from the spot Manoj had thrown away the brick near the place of occurrence. Whereas, Anil had taken the DANDA used in the alleged commission of offence, with him and accused Manoj was driving the Motorcycle, whereas Anil was sitting on its rear seat. He has also stated that he dialed 100 number and some one opened the bolt of his gate. He found that clothes of Vijender were stained with blood as the blood was oozing out from his head and he made to reach Vijender in the hospital and after leaving him in the

hospital, he returned home at 9.00PM and at about 12 midnight, IO/ SI Sandeep Tushir arrived at the spot and SI Sandeep Tushir had prepared site plan of the place of occurrence, at his instance and took blood stained earth,and also taken earth from a bit distance where the blood was lying and prepared parcels and sealed the parcels with the seal of ST and blood stained brick was also seized and prepared the seizure memo and obtained the signatures of this witness thereon and also stated that blood stained brick was also recovered on his pointing out. Parcel thereof was prepared and sealed with the seal of ST and it was also seized. It is alleged that accused Anil and Manoj in furtherance of their common intention had done brutal attack on Vijender and he had also stated that first IO had taken the sealed parcels with him and on calling, this witness had gone to the police station and such statement of this witness is alleged to have been recorded on 01.11.2014 by SI Sandeep Tushir.

32. Whereas, Sh. Sanjay Kumar Singh, has been examined as PW-2. He is alleged eye witness of the occurrence. He has deposed that his wife gave tuitions to the children in his house and Piyush is son of deceased Vijender Kumar Meena and he also used to come to take tuition in his house and he was 3-4 years old and a student of nursery. He has further deposed that on dated 31.10.2014, he came to his house from his business at 05:15 to 05:30 PM and at that time, his wife along with his two children and Piyush were present in his house. He has further deposed that since parents of Piyush used to come to take Piyush and on that day,

they had not come to take back Piyush, therefore, he was present. Other children, who had come to take tuition had already gone by that time and at about 05:45 PM or 06:00 PM, he heard noise from outside of his house and at that time, he was busy with his mobile and when, he tried to go out of the house, after hearing the noise, he found that the door of his house was bolted from outside. He has further deposed that he saw from a window opening in his door, that in the gali that one person namely Vijender Kumar Meena was lying on the road and one person by the name of Anil hit one danda on the head of Vijender Kumar Meena and also caught the hands of Vijender Kumar Meena. He has correctly identified accused Anil in the Court. He has also deposed that Manoj took a full brick and repeatedly hitting that brick on the back side of head of Vijender Kumar Meena for about 20-25 times and Vijender was shouting and this witness was also shouting from inside of his house by saying that CHHOD CHHOD MAR JAYEGA WOH and he kept on banging his door, so that someone could open the door. This witness has also identified accused Manoj in the court. He has further deposed that accused Anil was saying "BHAI ISKO TAB TAK MARO JAB TAK YE SALA MAR NA JAYE, VERMA KE JHAGDE MEIN YE CHAUDHARY BAN RAHA THA" and many neighbourers gathered in the gali and then, both the accused had fled away from the spot on black colour Pulsar motorcycle on the left side of his office and someone from the public opened the door of his house and he came out of his house and Piyush had also came and started shouting and Piyush said "UNCLE YEH MERE PAPA KO MAAR RAHE HAIN, MERE PAPA KO BACHA LO, YE MERE PAPA HAIN" and

since Piyush was also crying, so, he sent Piyush inside of his house with his wife. He has further deposed that Vijender was lying with his face and front side towards the ground and he tried to pick him and a lot of blood was oozing out of head of Vijender and he got nervous and he tried to search his mobile in his pocket, but, it was not there at that time, so, he ran inside his house and brought his mobile and made a call to PCR at 100 number. He has further deposed that the police official, who attended the said call on PCR enquired from him whether ambulance should be sent first or police and he told that person that ambulance be sent first and meanwhile, this witness and others tried to lift Vijender and after 2-3 minutes, some PCR van official called him on his mobile, that person was enquiring the address stating that he was at Nag Mandir and was unable to locate his address and he then, went to Nag Mandir on his bike and brought the PCR van on the spot. The PCR van could not reach his gali, since it was narrow and it was parked in the main gali. Then, this witness, Vermaji and PCR officials picked Vijender Meena by "kandhey pe hath laga ke" and he means that one hand of Vijender was kept on his shoulder and another hand of Vijender was kept on the shoulder of Dayanand Verma. Vijender was made to lie in the PCR Van and the wife of Vijender also arrived. When they reached at main road, they saw ambulance was coming and Vijender was shifted in the ambulance and wife of Vijender and Dayanand Verma and Vijender Meena were taken to Sanjay Gandhi Memorial Hospital(SGM). He has also deposed that doctor shaved hairs of Vijender and he was given "Patti Vagarah" and Vijender was shouting at that time and Vijender was being treated and in the meanwhile,

relatives of Vijender also came to hospital at about 08:30 or 09:00 PM, he returned to his house. He has further deposed that when, he arrived his house, his wife had told him that police from local police station had come. Thereafter, at 12:00 midnight, local police again came and enquired from him and local police collected blood, blood stained earth and sample of earth. He has further deposed that police also asked him, if, he had seen, where the brick etc. were thrown, on which, he told the police that the brick was thrown towards bushes and police searched the brick and the brick was found from the bushes. The brick was kept in a parcel of cloth and was sealed but, he did not remember the impression of seal. He had signed the seizure memo of brick vide memo Ex.PW2/A. He has further deposed that sample of earth and the blood stained earth were also similarly sealed after keeping the same in plastic boxes and they were also taken into possession. The blood stained earth and sample earth were taken into possession vide seizure memos vide Ex.PW2/B & Ex.PW2/C and his statement was recorded by the police. This witness has further deposed that both the accused are real brothers and reside in the same Gali, in which, he resides but, he had seen Anil prior to the occurrence. He had not seen Manoj prior to the occurrence and again said that he had seen Manoj prior to the occurrence by face and he did not know his name at that time. This witness has further deposed that after 2-3 days of the occurrence either on second or third of November, 2014, he was called by the police to the police station. His statement was recorded in the police station on 02.11.2014 and his signature was taken on the statement. He had identified Manoj in the police station on that

day, as he was sitting in a room in the police station and he was asked to identify him. He has further deposed that after 4-5 days from 02.11.2014, he was again called to the police station and was asked to identify Anil and he had also identified Anil in the police station. On that day, his statement was not recorded, but, his signatures on the documents of arrest were taken. He has identified his signature at point A on the memo of arrest Ex.PW2/D of accused Anil. Similarly, he had also signed memo of arrest of accused Manoj Ex.PW2/E. This witness has identified the brick Ex.P1, earth control Ex.P2 & Danda Ex.P4. This witness was cross examined by Ld. Counsel for accused and during his cross-examination, he has deposed that he has told to the police in his statement u/s.161 Cr.P.C. that on 31.10.2014, he came to his house from his business at 5:15 to 5:30 PM. This witness was confronted with his statement recorded u/s.161 Cr.PC. of the witness Ex.PW2/DA, where it was not so recorded. He has further deposed that he did not remember whether or not, he had told the police that since parents of Piyush used to come to take Piyush and on that day, they had not come to take Piyush, however he was present. He has further deposed that other children, who had come to take tuition had already left by that time. This witness was confronted with his statement u/s.161 Cr.P.C. of the witness, Ex.PW2/DA, where, it was not so recorded. He has further deposed that he had told to the police that he was busy with his mobile. This witness was confronted with his statement recorded u/s 161 of Cr.P.C. Ex.PW2/DA, where it was not so recorded. He has further deposed that he had told to the police that he saw in the gali one person was lying on the road and initially, he had not

told name of the said person and later on told to the police that the name of the said person was Vijender Kumar Meena. He was confronted with his statement u/s.161 Cr.P.C. Ex.PW2/DA, where it was not so recorded. He has further deposed that he had told to the police that he was also shouting from inside of his house by stating "CHHOD DO- CHHOD DO, MAR JAEGA WOH," and he kept on banging his door, so that someone could open the door. He was confronted with his statement recorded u/s. 161 Cr.P.C. Ex.PW 2/DA, where it was not so recorded. He has further deposed that he had told to the police that Piyush also came out of the house and started shouting and Piyush said "UNCLE YEH MERE PAPA KO MAAR RAHE HAI, MERE PAPA KO BACHA LO, YEH MERE PAPA HAI." However, since Piyush was also crying so he sent Piyush inside his house with his wife. He was confronted with statement recorded u/s. 161 Cr.PC. Ex.PW2/DA, where it was not so recorded. He has further deposed that he had told to the police that at that time, Vijender was laying with his face and front side towards the ground and he tried to pick him up. He was confronted with his statement recorded u/s 161 of Cr.P.C. Ex. PW 2/DA, where it was not so recorded. He has further deposed that he had told to the police that he got nervous and he tried to locate his mobile in his pocket, but, it was not there at that time, so, he ran and went inside his house and brought his mobile and made a call to PCR at 100 number. He was confronted with his statement recorded u/s 161 of Cr.P.C. Ex.PW2/DA, where it was not so recorded. He has further deposed that he had told to the police that the police official, who attending the said call on PCR inquired from him, whether ambulance

should be sent first or police and on which, he told that person that ambulance be sent first. He was confronted with his statement u/s. 161 of Cr.P.C. Ex.PW2/DA, where it was not so recorded. He has further deposed that he had told to the police that meanwhile, this witness and others tried to lift Vijender and after 2-3 minutes, some PCR van official called him on his mobile and that person was inquiring about the address stating that he was at Nag Mandir and was unable to locate his address. He was confronted with his statement recorded u/s.161 of Cr.P.C. Ex.PW2/DA, where it was not so recorded. He has further deposed that he had told to the police that then he went to Nag Mandir on his bike and brought the PCR van on the spot and the PCR van could not reach in his gali, since it was narrow and it was parked in the main gali. He has further deposed that then, he himself, Vermaji and PCR officials by "KANDHEY PE HATH LAGA KE" took to the injured to PCR van, by words "KANDHEY PE HATH LAGE KE", he meant that one hand of Vijender was kept on his shoulder and another hand of Vijender was kept on the shoulder of Dayanand Verma and Vijender was made to lie in the PCR van. He has further deposed that by the time, wife of Vijender had also arrived, then this witness, wife of Vijender and Dayanand Verma accompanied injured in the PCR van and when the PCR van reached at the main road, they saw ambulance was coming and then, Vijender was shifted in the ambulance, wife of Vijender and Dayanand Verma had taken the Vijender to Sanjay Gandhi Memorial Hospital. He was confronted with his statement recorded u/s. 161 of Cr.PC. Ex. PW 2/DA, where it was not so recorded. He has further deposed that he had told to the police that when

he reached his house, his wife told him that police from local police station had come. He was confronted with his statement recorded u/s. 161 of Cr.P.C. Ex. PW 2/DA, where it was not so recorded. He has further deposed that he had told to the police that police also asked him, if he had seen, where the brick etc were thrown, on which, he told the police that brick was thrown towards bushes. He was confronted with his statement recorded u/s.161 of Cr.P.C. Ex.PW2/DA, where it was not so recorded. He has further deposed that he had told to the police that both the accused are real brothers and resided in the same gali, in which, he resides, but, he had seen Anil prior to the occurrence and he had not seen Manoj prior to occurrence. He was confronted with his statement recorded u/s.161 Cr.PC. Ex.PW2/DA, where it was not so recorded. He has further deposed that he had told to the police that he had seen Manoj prior to occurrence by face and he did not know his name, at that time. He was confronted with his statement u/s.161 of Cr.P.C. Ex.PW2/DA, where it was not so recorded. He has further deposed that he has been residing in this locality, since the year 2011, in his own house and he was in the business of fire safety appliances, which he was doing from his house and he alone was doing the field job i.e. marketing of equipments and he did not have any fix routine regarding his work in the year 2014 and there was no fix time of his returning home from his work. He has further deposed that generally, he used to return around 5:00 pm. But sometimes he used to return late and voluntarily deposed that on 31.10.2014, he had returned home at about 5:15 – 5:30 PM and he did not remember whether he had told to the police in his statement recorded u/s.161 of Cr.P.C. that on

31.10.2014, he had returned home at about 5:15 - 5:30 PM. He was confronted with his statement recorded u/s. 161 of Cr.PC. Ex. PW 2/DA, where it was not so recorded. He has further deposed that he did not know whether there was a resident's welfare association in his locality, during October 2014 and again said, it might be in existence. He has further deposed that he has seen board of Resident's Welfare Association (RWA) on a street and he was not member of RWA, during the said period. He has further deposed that the tuition center might have been opened by his wife later on, but, he failed to tell exactly as to when it was opened and 7-8 children of the locality from one or two streets adjacent to his street, used to come for tuition, during October, 2014. He and his wife were acquainted with the parents of the said students. He has further deposed that he knew Mr. Dayanand Verma, since the year 2011 and at that time i.e. on 31.10.2014, grand children of Mr. Verma were also taking tuitions from his wife. He has denied that being neighbourers, he was on regular day to day visiting terms with Mr. Verma, as well as, his sons and also used to take drinks with them and deposed that occasionally on the holidays, he and Mr. Verma used to meet sometimes, whenever they were on the street outside their houses. He has further deposed that he had come to know Mr. Vijender Meena about two months prior to the incident, when his son Piyush started visiting his house for taking tuitions and at that time he did not know his address, as well as, gali number and since when, he was staying there. He has further deposed that as on 31.10.2014 he was aware that Mr. Vijender Meena was working in the Air Force, but, he did not know the designation and he was not on visiting

terms with Mr. Meena prior to the incident and he did not know whether Mr. Meena had started residing in the locality since about beginning of year 2013. He has further deposed that the distance between his house and house of Mr. Dayanand Verma is about 170 feet as there are five plots of 100 sq. yards and a road no. 6 which is 20 feet wide between their house and out these five plots, houses are constructed on 2/3 plots and he could not say whether or not, on 31.10.2014, the sun set was at 5:37 PM. He has further deposed that he had made all to the PCR at about 06:05 -6:10 PM. He has denied that at the time when he made call to the PCR, there was darkness and nothing was visible or when the incident took place there was darkness and nothing was visible. He has further deposed that prior to the incident he had never met the accused persons. He has again said that he had once or twice seen Anil, but, there was no talk between them on any occasion. He has further deposed that the house of accused persons was about 2-3 plots ahead of Mr. Verma's house and he was not aware, as to how many family members of accused persons were residing in the said house. He has further deposed that the family of Mr. Verma consisted of he, his wife, two sons and their wives and two grand daughters and one grand son. At that time parents of Mr. Verma were not residing with him and he had heard from the residents of the locality that one or two days prior to 31.10.2014, there was a quarrel between Mr. Verma and his family members and accused persons and their family members. He has denied that he had not merely heard about the quarrel or that he had actively participated in the quarrel on behalf of Mr. Verma and his family and had also given beating to the accused and

their family members. He has denied that in view of said enmity he had falsely named accused Manoj and Anil before the police in conspiracy with Mr. Verma, taking advantage of the fact that some unknown persons had assaulted Mr. Meena near his house. He has denied that at the time of incident, there was darkness and visibility was very low or that it was not possible for him to identify or recognize, as to which persons had assaulted Mr. Meena. He has admitted that he had never told names of the accused to the police and he had neither told the names of the accused persons in his PCR call nor to the police in his statement u/s 161 CrPC. Again said he had told name of one accused person to the police and he had told the name of the said accused to the police at about 12:00 in the night. He has further deposed that he had not mentioned name of the said accused in the medical record of Mr. Meena, which was prepared in SGM Hospital and Sri Balaji Action Medical Institute. He has admitted that he had not told name of the said accused either to the police personnels who arrived at the spot in the PCR or the police personnels who were present in the hospital. He has denied that on 31.10.2014, he did not come to his house from his business at 5:15 -5:30 PM or parents of Piyush did not use to come to take Piyush or that Piyush was not present in his home, on the said day. He has denied that he was not at home, however no occasion had arisen for him to busy with his mobile or that he did not see in the gali one person was lying on the road or he did not tell to the police that the name of the said person was Vijender Kumar Meena. He has denied that he was not shouting from inside his house by stating "CHHOD DO CHHOD DO, MAR JAEGA WOH,". He has denied

that Piyush did not come out of his house and had not shouted "UNCLE YEH MERE PAPA KO MAAR RAHE HAI, MERE PAPA KO BACHA LO, YEH MERE PAPA HAI" or that he did not cry or that he had not send Piyush inside his house with his wife. He has denied that at that time, he did not try to pick Vijender, who was laying with his face towards the ground or that he had not seen the incident. He has denied that he had concocted the story with regard to Police Official who attending the said call on PCR inquired from him, whether ambulance should be sent first or police and upon which he told that person that ambulance be sent first. Meanwhile, him and others tried to lift Vijender and after 2-3 minutes, some PCR van official called him on his mobile and that person was inquiring the address stating that he was at Nag Mandir and was unable to locate his address. He has further deposed that he was called by the police to PS Begumpur for the first time on 02.11.2014, and prior to that, he had not gone to the PS and no document except arrest memo of Manoj was prepared in his presence on 02.11.2014 in the PS. He has further deposed that on 31.10.2014, his wife was taking tuitions of approximately 7-8 students of class V and VI and those students were staying about 5-6 streets away from his house. He has further deposed that few parents used to come to take their children from their house and few students used to go on their own. He has further deposed that on 31.10.2014, the tuition was overed at about 5.30-5.45 pm and at the time of incident except his children, there was one more student present in his house. He has denied that at the time of incident, his wife was giving tuition to the children, who were all inside his house and their parents were waiting

outside his house and voluntarily stated that at that time only one child namely Piyush was in his house, although his tuition was overed and the other children had left. He has further deposed that he had told the police that at the time of incident only Piyush was in his house, as his tuition was overed, but, his parents had not reached at his house to pick him, while the other children had already left. He was confronted with his statement Ex.PW2/DA, where it is not so recorded and then this witness was made to read his statement Ex.PW2/DA and after reading the same. He has admitted it to be correct that he had stated to the police in his statement Ex.PW2/DA, the portion A to A that his wife was giving tuition and at that time, tuition of Piyush was going to be overed. He has denied that he has deposed falsely that the tuition of Piyush was overed or that the other children had left his home, as he has fabricated a story in connivance with Mr. Dayanand Verma in order to falsely implicate the accused in the present case. He is denied that the parents of the other children were waiting outside his house for the tuition to be overed, when, the alleged incident had occurred. He has further deposed that when, he came out of his house, the crowd had already gathered, as the incident had already occurred and voluntarily stated that he had seen the incident occurring from inside of his house. He has denied that he has not seen the incident or that he has deposed falsely or that accused Manoj did not struck brick on the back side of the head of Vijender Kumar Meena 20-25 times as alleged or that he was not present at the spot. He has denied that Vijender Kumar Meena was not shouting or that he was also not shouting from inside his house or stating that "CHHOD DO, CHHOD DO, MAR

JAYEGA WOH" and he kept on banging his door so that someone can open the door) He has denied that at the time of alleged incident accused Anil did not say "BHAI ISKO TAB TAK MAARO JAB TAK YE SALA MAR NA JAYE VERMA KE JHAGDE MEIN YE CHAUDHARY BAN RAHA THA" as he was not present at the spot. He has denied that Manoj and Anil did not leave the spot on any pulsar of Black colour or they did not flee on that bike He has denied that no one had opened his door or that he did not come out of his house or that Piyush did not come out of the house or that Piyush had not shouted "UNCLE YEH MERE PAPA KO MAAR RAHE HAIN,MERE PAPA KO BACHO LO, YEH MERE PAPA HAIN' or that he had not sent Piyush inside his house with his wife. He has denied that he has concocted a false story or levelled false allegations against the accused persons or that he had not seen Vijender lying with his face towards the ground or that he had not picked Vijender. He has further deposed that while picking up the deceased his clothes were also stained with blood and he had not given those clothes to the police and had also not told the police about his blood stained clothes. He has denied that he had not told the police the said fact, as his clothes were not stained with blood and he reached SGM hospital at about 6.30 pm on dated 31.10.2014 and he did not know as to who other persons were present in the hospital, as he was not acquainted with the other persons accompanying the deceased. He has further deposed that he had left SGM hospital after about half hour of reaching there, when relatives of the deceased had reached the hospital. He has further deposed that he had returned to his house from SGM hospital at about 8.30 pm and the police

officials came to his house at about 9.30-10.00 pm. He has further deposed that the police stayed there for about half hour and during this period the police prepared site plan, lifted the blood stained earth and picked brick at his instance and took it away with them. He has further deposed that he also told them about the incident and the police left the spot at about 10.30 pm. This witness was shown a photograph Ex.PW11/DB and after seeing, he has admitted it to be correct that in the photograph Ex.PW11/DB, blood is at point X. Points X1 and X2 in photograph Ex.PW11/DB are depicting the position of vacant plot and point X is in gali which is adjacent to vacant plot and the witness was also shown a photograph Ex.PW11/DX1 and after seeing, he has admitted it to be correct that point Y1 is depicting position of his house. He has admitted to be correct that there is a vacant plot in between his house mark Y1 and another house mark Y2. He has admitted it to be correct that mark Y3 is reflecting position of the grass on the vacant plot. He has denied that no such incident took place or that accused persons were neither present at the spot nor fled away from there or that he did not see accused persons either coming to the spot or fleeing away from there. He has denied that the shoulder of accused Manoj was dislocated on the date on 29.10.2014 when this witness (PW2), Mr. Dayanad Verma and his sons had given beatings to him. He did not know whether or not the shoulder of accused Manoj was in dislocated connection as on 31.10.2014 or that he remained admitted in hospital on 29.10.2014 and 30.10.2014. He had no knowledge about accused Anil (prior to the incident or he) was studying out of Delhi in October, 2014. He also did not

know whether or not accused Anil was studying in B.Tech (II year) in Suresh Gyan Vihar University, Jaipur in October, 2014. He has denied that accused Anil was not in Delhi and was in his hostel at Jaipur from 30.10.2014 till 03.11.2014 or that he had not seen accused Anil committing the offence on 31.10.2014 or he was not even conversant with the accused persons. He has denied that he has wrongly identified the case property at the instance of the police or that no brick was recovered by the police at his instance or that no proceedings were conducted by police in his presence. He has denied that he had not seen the incident or that he is a planted witness and due to the said reason he had not participated in any proceedings in SGM hospital or signed any document or given his name to the hospital's authority. He has denied that he has deposed falsely in collusion with Mr. Dayanand Verma, his sons and police. Thus, this witness has claimed to be an eye witness of the occurrence and he has claimed that on dated 31.10.2014, at about 5.45PM / 6.00PM, he heard the noise and when he tried to open the door of his house, he found that it was bolted from outside and he peeped from the gap of the door and found that accused Anil hit one danda on the head of Vijender Kumar Meena and caught his hands and Manoj had given 20-25 brick blows on the backside of his head, when he was lying on the road abutting his face towards the road and he shouted from inside of his house and after such beatings, the accused had fled away from the spot and someone had opened the bolt of his door and went out of his house. At the time of recording of his examination in chief in the court, he had improved his testimony and thus, this court finds that his testimony is

full of improvements and contradictions. This PW2 claims to have taken the deceased to the hospital along with PW11 Dayanand Verma. But, the perusal of the MLC of deceased Ex.PW14/A reveals that neither the name of this witness nor of Dayanand Verma is mentioned therein and it is mentioned in the MLC that the deceased Vijender Verma was taken in the said hospital in injured condition by some Neha Sharma of CAT Ambulance staff. Had this witness taken Vijender Meena in injured condition in the said hospital alongwith Dayanand Verma (PW11) their names could be reflected in the MLC EX.PW14/A. This witness has claimed that he had made call to the police at about 6:00PM on 31.10.2014 about the present occurrence and DD no. 59B Ex-PW13/C reveals that it is no where mentioned therein that injuries were caused to the Vijender Meena by the accused Manoj and Anil and if the injuries were caused to the Vijender Meena by these accused then what has prevented this witness to name the accused at the time of dialling 100 number. Perusal of DD No.59B reveals that it is regarding a Jhagda and DD No.59B was lodged at 6.13PM. Whereas, the FIR in the case in hand has been registered on 31.10.2014 at 11.20PM. If, the information was received by the local police at 6.13PM from the PCR staff and DD No.59B was assigned to the police officer Sandeep Tushir. So, it was his duty to inquire into from the caller of the said call promptly. But, if the testimony of this witness is looked into, then, on receiving of PCR call made by this witness (PW2), PCR staff had arrived at the spot promptly and as per the testimony of this witness, initially, the injured was made to lie in the PCR Van for taking him to the hospital by this witness (PW2) and Shri

Dayanand Verma (PW11). This witness when examined in the court has claimed that the wife of deceased Vijender Meena had also arrived at the spot and this witness (PW2) along with Dayanand Verma (PW11) and the wife of the Vijender Meena took the Vijender Meena in injured condition in the Sanjay Gandhi Memorial hospital in the Ambulance and wherein, the injured was shifted from PCR which also arrived, when, they were going to the Sanjay Gandhi Memorial hospital. But, if the statement of this witness allegedly recorded by the first IO Sandeep Tushir on dated 01.11.2014, is looked into, then, it reveals that this witness has nowhere stated therein that the wife of Vijender Meena and Dayanand Verma had also come at the spot or that they accompanied him to the Sanjay Gandhi Memorial hospital. If the testimony of the first IO Sandeep Tushir, who has been examined as PW- is looked into, he has claimed that he had recorded the statement of wife of Vijender Meena. Whereas, the perusal of the record reveals that the wife of the Vijender is neither impleaded as witness in the list of witnesses nor her statement is filed with the chargesheet for the best reason known to Inspector Jagminder Singh, who had filed the charge sheet and who has been examined in the court as PW-18 and in view of withholding of the statement of wife of deceased, (best evidence available to the prosecution), an adverse inference is drawn against the prosecution. If the statement of this witness (PW-2) Ex.PW2/DA is looked into, then, he has nowhere mentioned therein that Dayanand Verma had also helped him in taking the Vijender in the hospital in injured condition and this witness even not named Shri Dayanand Verma or the wife of the injured Vijender. This witness during his cross-examination has deposed

that he went to the police station for the first time on 02.11.2014 and since this witness has deposed that IO had recorded his statement in the police station and this witness has also claimed that he returned to his home from the hospital on 31.10.2014 at 8.30-9.00PM, the local police had come and inquired from him on the same night and he had told about the occurrence to the police. But, if this witness had told to the police about the occurrence, then what had prevented to PW-17 Sandeep Tushir to record the statement of this witness at the spot on the same night of occurrence. Since the perusal of the record reveals that the statement of this witness u/s.161 of CrPC Ex.PW2/DA, bear the date 01.11.2014 of its recording. But, this witness during his cross-examination has deposed that he went to the police station for the first time for recording of his statement on 02.11.2014 and PW-17 Sandeep Tushir claims to have recorded statement of this PW2 Ex.PW2/DA, on dated 01.11.2014. So there are material contradictions in the statements of PW2 Sanjay Kumar and PW17 Sandeep Tushir. This witness has also deposed during his cross-examination that this witness did not tell the names of the accused to the police. This witness has also deposed during his cross-examination that he did not know the name of accused. He has also stated that he knew the name of Anil only on the date of alleged occurrence. But, it is the mystery as to when this witness had come to understand the names of both the accused or of accused Manoj and if the name of accused Manoj was not known to this witness on dated 31.10.2014 or 01.11.2014, then, how the name of Manoj is mentioned in his alleged statement Ex.PW2/DA recorded by the IO on 01.11.2014. This witness has deposed in the court

that his clothes were also stained with the blood when he picked Vijender Meena in injured condition. But, admittedly, the clothes of this witness were not seized by the IO during the investigation for the best reason known to the IO. If the clothes of this witness were really stained with the blood allegedly oozing out from the wound of the Vijender Meena, then, it was the duty of the IO to seize the same. But, as the alleged blood stained clothes of Sanjay Kumar Singh (PW2) were not seized by the IO. Had the IO seized the blood stained clothes of this witness and made efforts for matching the blood of the deceased with the same, the presence of this witness at the time of alleged occurrence could be established. But, in the absence of such material evidence, it cannot be assumed or presumed that this witness was present at the time and place of alleged occurrence and thus presence of this witness at the time of occurrence is doubtful. This witness during his cross-examination has deposed that he had seen accused Anil prior to this occurrence and he had not seen accused Manoj prior to this occurrence. Then, how could he reveal the name of accused Manoj in his statement recorded by the police. Since, the occurrence is alleged to have taken place at 5.45/6.00pm on 31.10.2014 and DD No.59B is alleged to have been lodged on the basis of the PCR call allegedly made by PW2. But, in the PCR form Ex.PW4/A, DD No.59B Ex.PW13/C lodged at 6.13PM on 31.10.2014 and FIR Ex.PW6/A lodged on 31.10.2014 at 11.20PM, the names of the accused are not mentioned. If the PW-2 had seen the accused, prior to this occurrence, he could tell the names of the accused to the police at the time of making call at 100 number. But he did not

name the accused and since the statement of this witness u/s.161 CrPC Ex.PW2/DA was allegedly recorded on dated 01.11.2014 and it is also suspicious, doubtful and found to improved. DD No.59B does not reveal the names of the accused, which was lodged on that day at 6.13pm and admittedly, this witness met IO SI Sandeep Tushir (PW-17) on the same day of the occurrence. But, SI Sandeep Tushir did not choose to record the statement of this witness on the day of occurrence and if this witness was aware about the names of accused, even on dated 31.10.2014 at the time of dailling the 100 number at about 6.00pm, then, why did he not name the accused at the time of making call at 100 number and since there is delay in recording the statement of this witness, so, the testimony of this witness becomes suspicious and since the testimony of this witness is also not consistent to the testimony of PW-11 Dayanand Verma, PW-16 Prashant Kumar Verma and PW17 SI Sandeep Tushir. Since the testimony of this witness is found to be improved, embellished, contradictory and inconsistent, so, it is suspicious, so it does not inspire any confidence.

33. Whereas, Dayanand Verma has been examined as PW 11, who has deposed that on 31.10.2014 at about 5:45 -6:00 PM, he was at home and heard some commotion from the lane and out of curiosity, he went outside and saw in the lane that two boys of same locality were beating Vijender Meena, and he know Mr. Vijender Meena ,as he is his neighbour and he was wearing jeans and shirt, but, he did not remember their colour. He has further deposed that he could identify those two boys, as they

lived in his locality and they are Manoj and Anil. He has further deposed that when, he stepped forward to the spot, he saw Anil was hitting danda on the back side of the head of Vijender Meena, which was of square shape and Vijender fell on ground, Anil caught hold of the arms of Vijender from behind and accused Manoj was holding a brick and he was hitting Vijender Meena with the said brick repeatedly and he went about 15 steps forward and when, he was near the spot, both the accused Manoj and Anil escaped on a motorcycle. He has further deposed that accused Manoj had thrown the brick away and the same was lying at the spot and accused Anil was waiving the danda, when he escaped with Manoj on the motorcycle. He has further deposed that the danda was of square shape and **it** was of about one and a half feet in length. He has further deposed that when he went near Vijender Meena, the other persons had also gathered there and Mr. Sanjay Singh who had made call to the police at 100 number had also come there. However, the PCR vehicle came to the spot. Sanjay Singh and this witness had lifted Vijender Meena put him in the PCR vehicle and this witness Vijender Meena, his wife, Mr. Sanjay Singh and he went to the SGM Hospital in the PCR vehicle. He has again said that on the way, the CAT ambulance met the PCR vehicle and and Mr. Vijender Meena was shifted therein. He has further deposed that after about half an hour of remaining in SGM Hospital, they shifted Mr. Vijender Meena to Shri Balaji Action Medical Institute and he stayed in the hospital at night. He has further deposed that later on the police had enquired from him and his statement was recorded, on seeing the DANDA Ex.P4, he has deposed that he can say

that it may be same danda which was used in the commission of crime and deposed he was at a distance of 20-25 feet, when the incident had occurred due to which he has now deposed that the danda shown in the court may be the same danda used in the crime. This witness was also cross examined by Ld. Counsel for accused and during his cross-examination he has deposed that he used to work in a Kerela Transport Company, as Deputy Manager, marketing and retired in the year 2011 and he shifted at on his present address in the year 2007 and the width of street in front of his house is about 17-18 feet and accused Manoj and Anil were residing together in a house about 60 feet away from his house, in the same street. He has further deposed that his house is in the corner, whereas the house of the accused person's in the street and the house of the accused persons and his house are situated in street no. 9 and the address of the house of accused may be house no. 1526 B, Gali no. 9, Durga Block, Jain Nagar, Delhi 85 and the road on the other side of his house is Road No. 6 and it is 20 feet wide and it's distance is of about 150 meters from his house and he thought that Vijender Meena was working in the Air Force and he was residing with his wife whose name is Sona, son namely Piyush and his father Heera Chand Meena and his father resided sometimes in the village and sometimes with Vijender Meena. He has further deposed that Vijender Meena was posted near Dhaula Kuan and father of Vijender Meena was not living with him on dated 31.10.2014 and Sanjay Singh was his neighbour and was residing in Gali no. 9. He has further deposed that his house is double storied and he is in possession of both the floors and at the time of alleged incident,

his parents aged about 87 and 79 years were residing with him, his wife Ms. Mohini, his elder son Mr. Prashant Kumar Verma and his wife Mrs. Pooja, his son Master Vaibhav, his daughter Ms. Kirti and his younger son Mr. Parveen Verma, his wife Ms. Archana, his daughter Ms. Hansika. He has further deposed that the incident occurred on 31.10.2014 and it was during winter season and all his family member except his two sons were in the house. He has further deposed that he was in the lawn of his house with all his grand children, whereas, all the other family members were inside the house and the lawn of his house is on the plot itself and not outside his house. The area of the plot on which his house is situated is of 90 sq. meters. i.e., 30 feet by 27 feet. He has further deposed that he has covered the entire plot with construction and by lawn, he meant the covered area which is between the entry gate and stair case and it did not have any grass. He has further deposed that on the date of incident, the cooler and fans in his house were not being used and he was putting the chain on the cycle of his grand children. He did not have any radio in the house and the TV was not being used and the kitchen was not being used as the food was usually prepared at about 8:00 PM in his house. He has further deposed that there is one main gate in the house which opens into the street no. 9 and there is a side gate which opens into street No.6. He has further deposed that there are five plots (areas of some are 50 sq yards and of others are 100 sq. yards) between his house and the house of the Mr. Sanjay Singh and the total distance may be about 170 feet. He has further deposed that on 31.10.2014, four houses were constructed and three plots were without construction between his house and the

house of Mr. Sanjay Singh and on the opposite side of his house, only two houses were constructed and rest of the plots were without construction. He has also deposed that one can reach Gali no. 9 from main roads no. 5 and 6 main road no. 5 is towards the house of Mr. Sanjay Singh. He has also deposed that on 31.10.2014 at about 6:00 PM, there was sufficient light so everything was visible and it was not dark at that time and he cannot say whether on dated 31.10.2014, the sun set at 5:37 pm or not. He has denied that he has deposed falsely that on 31.10.2014, at about 6:00 PM, there was sufficient light or that everything was visible or it was not dark at that time. He has further deposed that the house of Mr. Sanjay Singh is not at the corner, but it is in between and is in street no. 9 and his house is single storied. He has further deposed that he traded in fire fighting equipment and he did not know whether he was having any shop/office or not and he met him on regularly basis almost every day, as he is his neighbour. He has further deposed that Mr. Vijender Meena used to attend his office and he did not meet him everyday and he was not as close to him as he was to Mr. Sanjay Singh and Mr. Vijender Meena used to leave his house early ad returned late, but, he did not know the exact timing. He has denied that on 31.10.2014 it was winter and he cannot say whether or not the maximum temp on 31.10.2014 was between 33-35 degree Celsius and he did not remember whether he and his family members were wearing any woolen clothes on 31.10.2014 or not. He has denied that the cooler and fans were not being used on 31.10.2014. He has further deposed that first of all, he had heard noise and shouts of many persons from all direction and he could hear people saying “REHNE

DE, REHNE DE" "CHHOD DO". He has further deposed that he was in the lawn of that house, at that time and he immediately came out of his house on hearing the noise and shouts and there were just one or two people (IKKA DUKKA LOG) in the street no. 9 and some ladies were on the terrace of their houses and there was a crowd outside the house of Mr. Sanjay Singh, but, he could not tell the exact number of persons, who were there. He has further deposed that he cannot say whether or not there were 5,7,10 or 15 persons and his focus was not on the crowd or on the people standing there, but, his focus was on the reason for the noise and shouts. He has further deposed that he cannot admit or deny the suggestion that as it was dark, so, he could not see the faces of the people who were standing there as his focus was on the reason for the noise and shouts. He has further deposed that his grand children and his family had come out of the house later on, but, he could not tell after how much time. Thereafter, he had come out immediately out of his house. He has further deposed that it took about 7-8 minutes, as, he was empty handed and did not have any weapon and he did not want to go empty handed, as he was apprehending that he might be involved in fight, which might occurred. He has further deposed that he had not told the above fact of his taking 7-8 minutes to reach, the house of Mr. Sanjay Singh due to his apprehension to the police in his statement recorded u/s. 161 Cr.PC. He has further deposed that he was not wearing his sleepers since he was with his grand children and he had gone barefooted out of his house and after coming out of his house and walking about 4 steps, he returned to his house, wore his sleepers. He did not take any weapon like

wooden stick, rod, knife and pistol and when, he went again out of the house and he did not take any family member or any neighbour with him to go the spot. He has further deposed that he did not observe the number of persons, who had gathered at the spot, when, he had reached there and he cannot say whether there were 2, 5, 7,10, 15 persons and initially, there were 10-15 persons and subsequently everybody had gathered there and there was no one at the spot, when, he reached and people were watching from their respective houses. He has further deposed that 20-25 people had come later and they were standing at the distance of about 10,20,40 feet from the spot. He has further deposed that Mr. Sanjay Singh reached at the spot after one minute of his reaching there and his family members did not come to the spot and remained inside the gate of his house. He has further deposed that no one else had come with Mr. Sanjay Singh to the spot and voluntarily stated that Master Piyush aged 04 years, who is son of deceased Mr. Vijender Meena came after Mr. Sanjay Singh reached the spot and he had not told the above facts to the police in his statement u/s 161 Cr.P.C. He has further deposed that Mr. Sanjay Singh had telephoned the police immediately on reaching the spot and only Mr. Sanjay Singh and this witness were at the spot. Whereas, the others were standing in their respective houses. He has denied that a crowd had gathered at the spot. He has further deposed that police came to the spot after about 10-15 minutes of Mr. Sanjay Singh making the call and first of all, Mr. Sanjay Singh and this witness had lifted Mr. Vijender Meena and then, a police official had helped them to put him in the PCR vehicle. He has further deposed that they had lifted him from his

shoulders and police did not seize the clothes, which were worn by Mr. Sanjay Singh and this witness and his clothes had blood stains. He has further deposed that Mr. Vijender Meena was shifted into the CAT ambulance at Som Bazar Road and he did not tell the doctor that he had brought Mr. Vijender Meena to the hospital and after about 30-45 minutes of starting from the spot, they had reached SGM Hospital, but, he could not tell the exact time. He has further deposed that they remained in the hospital for about 01 hour and Mr. Vijender Meena's wife had taken the decision to shift him from SGM Hospital to Balaji Action Medical Institute and permission in writing from the doctors was taken before shifting him to another hospital. He has further deposed that Mr. Vijender Meena was shifted in another ambulance, hired by them from SGM Hospital to Sri Balaji Action Medical Institute. He has further deposed that it took about half hour to travel and they had decided to shift Mr. Vijender Meena to Sri Balaji Action Medical Institute in the presence of the doctors in SGM Hospital and they had also told them verbally. He has further deposed that the other members of family of Mr. Vijender Meena had reached at Shri Balaji Action Medical Institute at about 2:30 -3:00 AM and he was there for the entire night and had returned home on the next morning i.e. on 01.11.2014 and was available in his house thereafter. He has further deposed that on 20.02.2016, after the evidence of Mr. Sanjay Singh was recorded in the court and deferred for that day, he had met him outside the court room and had talked with him. He has also admitted it to be correct that they were coming together to the court. He has denied that Mr. Sanjay Singh had told him prior to his evidence that the wooden

stick/danda produced by the police in the present case is of square shape and about 1½ feet in length. He has also deposed that he had described the wooden stick/danda to the police as "wooden danda which was of square shape" or "the DANDA was of square shape and was about 1 ½ feet in length". He was confronted with his statement recorded u/s 161 Cr. P. C. Ex. PW 11/DA, where it is not so recorded. He has admitted that he had not told the police that accused Anil was waiving the wooden danda, while escaping on the motorcycle. He has further deposed that he had told the police that PCR vehicle came to the spot and Sanjay Singh and he lifted Vijender Meena and put him in the PCR vehicle and these witnesses Vijender Meena, his wife and Mr. Sanjay Singh went to the SGM Hospital in the PCR vehicle and on the way, the CAT ambulance had met and Mr. Vijender Meena was shifted in the same, this witness was confronted with his statement recorded u/s 161 Cr.P.C. of the witness Ex.PW11/DA, where it is not so recorded. He has admitted that he had not told to the police that after about half an hour of remaining in SGM Hospital, they shifted Mr. Vijender Meena to Sri Balaji Action Medical Institute and he stayed in the hospital at night. He has admitted it to be correct that he had told to the police in his statement recorded u/s. 161 Cr.P.C dated 04.11.2014 that "VIJENDER KO SANJAY AUR VIJENDER KI PATNI HOSPITAL LE GAI." He has denied that he had not told the police, the description of the wooden stick/danda as "wooden danda, which was of square shape" or that " the danda was of about 1 ½ feet in length" or that accused Anil was not waiving the wooden danda while allegedly escaping on the motorcycle. He has denied that the PCR vehicle did not come to

the spot or that Sanjay Singh and he had not lifted Vijender Meena and put him in the PCR vehicle or that they i.e. Vijender Meena, his wife, Mr. Sanjay Singh and he had not gone to the SGM Hospital in the PCR vehicle. He has denied that on the way the CAT ambulance had not met, the PCR vehicle or that Mr. Vijender Meena was not shifted in the same. He has denied that after about half an hour of remaining in SGM Hospital, they shifted Mr. Vijender Meena to Shri Bala Ji Action Medical Institute or that he stayed in the hospital at night. He has denied that he has deposed falsely in his examination in chief recorded on 20.02.2016 that on 31.10.2014 at about 5:45 -6:00 PM, he was at home or that he had heard some commotion from the lane. He has denied that he had not gone outside or that he had not seen in the lane that two boys of the same locality were beating Vijender Meena or that he had not seen that he was wearing jeans and shirt. He has denied that after coming out of his house he had not identified accused Manoj and Anil to be the culprits. He has denied that as there is a distance of 60 meters approx. between his house and the house of Mr. Sanjay Singh or that as it was dark, so, he could not see the incident. He has denied that he had not seen the accused Manoj and Anil at the spot. He has denied that he did not see Anil hitting Vijender Meena on the back side of his head with wooden danda, which was of square shape or that no such incident took place. He has denied that Vijender did not fall on ground or that no such incident took place. He has denied that Anil did not catch the arms of Vijender from behind or that no such incident took place or that accused Manoj was not holding a brick or that he did not hit Vijender Meena with the said brick or that no such

incident took place. He has denied that he did not see any incident and accused Manoj and Anil escaping from the spot on a motorcycle. He has denied that he did not see accused Manoj throwing the brick away or that no such brick was lying at the spot. He has denied that he did not see accused Anil was waiving the danda or that both accused persons were not present at the spot or that because of the said reason, both accused did not escape on the motorcycle or that no danda was in the hand of accused Anil. He has denied that no such incident took place or that he has deposed falsely to that effect in collusion with Sanjay Singh, as he and Sanjay Singh had enmity against accused persons and their family. He has admitted it to be correct that there was a quarrel between him, his family and accused persons and their family members on the dispute of parking of motorcycle by them in the street. He has further deposed that he did not know whether the injuries were caused to accused Manoj, his mother Rita, his father Chander Shekhar and younger brother Guddu @ Abhishek or that their MLCs were also prepared. He has denied that because of said reason, this witness and Sanjay Singh were enimical against him and voluntarily deposed that as Vijender Meena had intervened in the incident, the incident of 31.10.2014 which had occurred and even on 31.10.2014, the accused were saying that "ISKO TAB TAK MAARO JAB TAK YEH MAR NO JAE, YEH SAALA VERMA KE JHAGDE ME CHOUDHRY BAN RAHA THA" and voluntarily deposed that he also wanted to say that about one month prior to 31.10.2014, accused Manoj and Mr. Naresh Mittal with his son Rishu had a fight and he had intervened to pacify them and due to this reason, accused Manoj had

fought with him on 29.10.2014. He has further deposed that all the members of family of accused Manoj had come together and accused Manoj had started the fight with him and even on that day, accused Manoj had acted in a similar manner, as that on 31.10.2014 by lifting and throwing a stone. He has admitted that he had not stated in his statement to the police recorded u/s.161 Cr.P.C. Ex.PW11/DA, which he has deposed during his cross-examination that on 22.02.2016, he has deposed that about one month prior to 31.10.2014, accused Manoj and Mr. Naresh Mittal with his son Rishu had a fight and he had intervened to pacify them and due to this reason, accused Manoj had come together and accused Manoj had started the fight with him and even on that day accused Manoj had acted in a similar manner as on 31.10.2014 by lifting and throwing a stone. He has admitted that he had not stated to the police in his statement that he was present at distance of about 20-25 feet, when, the incident had occurred due to which, he had identified the DANDA used in the commission of offence and voluntarily stated that he was not asked by the police about the distance. He has denied that he had not seen the incident or that he was not present at a distance of 20-25 feet from the place of incident or that he had not witnessed the incident or that he had falsely implicated the accused persons in the present case due to his enmity with them and their family. He has denied that no fight took place between accused Manoj with Mr. Naresh Mittal and his son Rishu, one month prior to the present incident or that he had not intervened to pacify them. He has denied that due to alleged reasons accused Manoj had not fought with him on 29.10.2014 and denied that

this witness, his sons and Sanjay Singh(PW2) had given severe beatings to accused Manoj and his family members on 29.10.2014. He has denied that on 29.10.2014 accused Manoj had not lifted and thrown stones on them and he reached in SGM hospital at about 6.30 pm on 31.10.2014 and that after sometime the relatives and friends of injured Vijender Meena also reached in SGM hospital. He has further deposed that the wife of injured Vijender Meena was also present in the hospital and he left SGM hospital at about 7.30 pm on 31.10.2014. He has further deposed that this witness along with Ms. Sona wife of injured, his son Prashant and 3-4 friends of injured took the injured Vijender Meena to the Balaji Action Hospital from SGM hospital and reached there at about 8.00pm. He has further deposed that the relatives of the injured were not accompanied them, as they had not reached the SGM hospital and he and wife of the injured stayed in Balaji Action hospital during whole night, however, his son Prashant left the hospital at about 12.30 am. He has further deposed that this witness did not get his name mention on any document prepared in the Balaji Action hospital that he had brought the injured to this hospital and voluntarily stated that all the proceedings pertaining to preparation of documents for admission of injured in the said hospital were got done by his son Prashant. He has further deposed that he did not state to the police in his statement that his son got done all the paper works in Balaji hospital at the time of admitting injured in the hospital. He has further deposed that after the incident the injured Vijender Meena was conscious and he was also conscious in SGM hospital. He has further deposed that the police did not record the statement of injured Vijender Meena either in

SGM hospital or in Balaji Action hospital in his presence. He has further deposed that the blood was lying at the place, where injured Vijender Meena was lying and some blood was also lying at the nearby place. He cannot tell the distance between both the places where blood was lying at the spot and he even cannot tell whether that distance was of 1 feet, 2 feet, 4 feet or so on and on seeing the photograph, he said that blood and bricks are lying on the road in the encircled portion X in the photograph Ex.PW11/DB. He has further deposed that there is a vacant plot by the side of this road and bushes are also there in the plot and on seeing the photograph Ex.PW11/DX1, he said that this photograph reflects the same street where the incident took place on 31.10.2014 and on asking the question that could you tell the place in the photograph Ex.PW11/DX1 as to where the blood and bricks were appearing in the photograph Ex.PW11/DB. This witness had replied that the place encircled Y in the photograph Ex. PW11/DX1 is the same place as appeared in photograph Ex.PW11/DB. He has further deposed that the house of Sanjay is appearing in the encircled portion Y1 in the photograph Ex.PW11/DX1 and there is a vacant plot in between the house of Sanjay and the house in the encircled portion Y2 as reflected in the photograph Ex.PW11/DX1. When the attention of the witness was drawn towards the photograph Ex.PW11/DB, he has deposed that he cannot admit or deny as to whether the encircled portion X1 in this photograph is a Kuchcha road or cemented road. He has further deposed that he cannot tell as to whether the encircled portion X in the photograph Ex.PW11/DB is the side of the road towards vacant plot or it is the middle of the road. He cannot tell as to

whether the portion encircled X2 in the photograph Ex.PW11/DB is reflecting the grass or not on the vacant plot. He has admitted it to be correct that the said portion is part of the vacant plot and the portion encircled Y3 in the photograph Ex.PW11/DX1 is reflecting the grass on the vacant plot. He is denied that the place, where blood was lying as reflected in the encircled portion Y was near to the vacant plot encircled Y3 in the photograph Ex.PW11/DX1. He has denied that he has deposed falsely in this regard to falsely implicate both the accused persons, as he had previous enmity with both the accused persons. He has further deposed that he cannot tell from which direction both the accused persons came at the spot on 31.10.2014 and accused Manoj was driving the motorcycle. He has denied that no such incident took place or that accused persons were neither present on the spot nor fled away from there. He has further deposed that he cannot say whether left shoulder of accused Manoj was dislocated during the beatings given to him by them on 29.10.2014. He has denied that accused Manoj was hospitalized on 29.10. 2014 and 30.10.2014, and he had not stated to the police that the accused Manoj was never beaten by him or others or that there was only arguments. He has denied that on 29.10.2014, accused Manoj and his family members, excluding accused Anil, were severely beaten by this witness, his sons and PW-2 Sanjay Singh. He has admitted it to be correct that accused Anil was studying out of Delhi in October, 2014 and he did not know whether or not he was studying in B.Tech (II Year) in Suresh Gyan Vihar University, Jaipur in October 2014. He has denied that since 30.10.2014 till 03.11.2014 accused Anil was staying in the hostel in his

University at Jaipur and he did not know whether or not accused Anil was arrested on 03.11.2014 from the hostel of his University at Jaipur. He has denied that he had not seen accused Manoj and Anil at the spot or that he did not step forward to the spot or that he did not see Anil hitting Vijender Meena on the back side of his head with wooden DANDA which was of square shape or that no such incident took place. He has denied that Vijender had not fallen on ground or that no such incident took place or that Anil did not catch the arms of Vijender from behind or that no such incident took place. He did not know whether any injuries were caused to accused Manoj, his mother Ms. Reeta, his father Mr. Chander Shekhar and younger brother Guddu @ Abhishek or that their MLCs were also prepared. He has denied that he is planted witness and due to said reason his statement u/s 161 Cr.PC was recorded belatedly on 04.11.2014 or that due to the said reason his name is not reflected in any medical documents or memos prepared by the police. He has denied that he has made lot of improvements in his testimony due to his enmity with accused persons and their family members. He has denied that he has deposed against the accused persons to take revenge from them and he had stated to the police in his statement u/s 161 Cr.PC that Mr. Vijender Meena had intervened in the incident of 29.10.2014. This witness was confronted with his statement recorded u/s.161 CrPC Ex.PW11/DB, where it was not so recorded. He has denied that Vijender Meena had not intervened in the incident of 29.10.2014 and he had wrongly deposed in this regard or that he has deposed falsely. Since, this witness has admitted that the distance between his house and house of the Sanjay

Singh (PW2) is of about 170 feet. Since, the occurrence is alleged to have taken place at about 6.00PM on dated 31.10.2014 and at the time of his examination in chief, he failed to identify the danda Ex.P4 and stated that it may be the same danda, which was used in the commission of crime and stated that he was at the distance of about 20-25 feet. Thus, this witness has failed to identify the alleged danda Ex.P4 beyond reasonable doubt that it is the same danda which was allegedly used in the commission of crime. Since, this witness has deposed in his cross-examination that it took about 7-8 minutes in arriving at the spot and thus, the testimony of this witness is also found to be contradictory, as, in his examination in chief, he has stated that he was at the distance of about 20-25 feet, when the occurrence had taken place. Whereas, at the time of his cross-examination, he has deposed that his house is situated at the distance of 170 feet. Then, how could he listen the noise that as this witness has alleged that people were saying, ***Rehne do, Rehne do and Chhor do"*** and this witness did not tell, as to who were those people who were saying so. During his cross-examination, this witness has deposed that only 1-2 persons were there in the street no.9, at the time of alleged occurrence. Whereas, PW2 has alleged that the crowd had gathered at the spot. But the IO did not bother to examine any neighbor of Sanjay Singh. This witness has deposed during his cross-examination that it took about 7-8 minutes in arriving at the spot from his house and also deposed that Sanjay Singh had arrived at the spot one minute after his arrival at the spot and if the testimony of this witness is looked into, then, he arrived at the spot where, the deceased was lying in injured condition prior to the

arrival of PW2 Sanjay Singh. But, the statement of Sanjay Singh Ex.PW2/DA does not reveal the name of this witness nor he had stated therein that this witness Dayanand Verma had arrived at the spot prior to his arrival. This witness has alleged that at the time of alleged occurrence, accused Anil was hitting wooden danda of square in shape on the backside of the head of Vijender Meena and Vijender Meena fell down on the ground and accused Anil caught the arms of Vijender Meena from his behind and accused Manoj had given brick blows repeatedly. But, such testimony of this witness is not corroborated with the medical evidence. As postmortem report Ex.PX1 of the deceased reveals that there was only one injury on the head of the deceased. This witness has also deposed during his cross-examination that there was sufficient light. But, occurrence is alleged to have taken place on 31.10.2014 at about 6.00PM and during the month of October, the sun sets bit earlier and and had there been sufficient light, this witness could identify the danda ExP4. But this witness has failed to identify the danda beyond reasonable doubt. Since, this witness has deposed that he cannot admit or deny the suggestion that it was dark at the time of alleged occurrence and this witness could not see the faces of the people who were standing there. Since, this witness has also deposed that the police had arrived at the spot within 10-15 minutes from the time of making call by Sanjay Singh. Then why the police had not recorded the statement of this witness, is not explained by the prosecution. This witness has claimed that his clothes were stained with the blood, when he is allegedly picked Vijender Meena in injured condition. But for the best reason known to the IO, he failed to

seize the alleged blood stained clothes of this witness. Had the IO seized such blood stained clothes of this witness, the presence of this witness could be established at the spot. But, as the clothes have not been seized by the IO, so the presence of this witness also becomes doubtful. This witness has deposed in the court that he had taken the injured to the hospital along with Sanjay and wife of Vijender Meena. Whereas, the perusal of the statement of this witness Ex.PW11/DA recorded u/s.161 of CrPC reveals that he has nowhere mentioned therein, that he had also accompanied Sanjay, when, the injured was taken to the hospital. Thus the testimony of this witness is improved one. This witness has deposed during his cross-examination that this witness and wife of Vijender Meena remained in Shri Balaji Action Hospital on the night of 31.10.2014. Whereas, PW-17 has deposed that he met to the wife of Vijender Meena in the street on the night of 31.10.2014. Thus the testimony of this witness is also contradictory to the testimony of PW-17 SI Sandeep Tushir. Since the PW-16 Prashant Verma claims that he was called by the Police on 01.11.2014, in the police station by way of making telephonic call to Shri Dayanand Verma, who is the father of Prashant Verma. But, why the IO did not record the statement of this witness soon after the occurrence and even, on 01.11.2014. If, the police had made telephonic call on the phone of this witness on 01.11.2014 to call the son of this witness namely Prashant Verma in the police station, then, police could also record the statement of this witness on 01.11.2014 and why the statement of this witness was recorded on 04.11.2014 and delay in recording the statement of this witness is also not explained. This witness has admitted that a

quarrel had held between this witness, his family on the one side and accused and their family members on the other side, prior to this occurrence on the dispute of parking of motorcycle by this witness and his family members and deposed that he did not know whether injuries were caused to Manoj, his mother Rita, his father Chandershekhar and brother Guddu or their MLC were prepared. No doubt, that he has denied that this witness along with Sanjay Singh (PW2) were on enimical term with accused and their family. This witness has alleged in the court that at the time of that quarrel which took place between this witness, his family with accused and their family, Vijender Meena (deceased) had informed to the police, but, this fact is not proved on the record that on dated 29.10.2014, when the quarrel had held between family of this witness and family of the accused. The deceased Vijender Meena had phoned to the police. Even otherwise, the testimony of this witness is found to be improved and embellished as DD No.62B dated 29.10.2014, reveals that the information regarding the quarrel by a male with a lady was allegedly received by the police from phone No. 7840060311 and the Ld. Counsel for accused has submitted that this is mobile number of mother of deceased from which, it was informed regarding the quarrel done by Dayanand Verma with Rita, who is the mother of accused. Ld. Counsel for accused has also submitted that Dayanand Verma had quarelled with mother of accused on 29.10.2014 and when this accused Manoj, his brother Guddu and his father tried to save his mother from the hands of Dayanand Verma, then, accused Manoj, his brother Guddu and his father namely Chandershekhar were also beaten by this witness, his son Prashant Verma and Sanjay

Kumar Singh (PW2) and further submitted that MLC of Manoj, Guddu, Rita and Chandershekhar, father of accused have been proved on record and further submitted that Dr. Gurdeep Singh DW1 has proved the MLC dated 29.10.2014 of Guddu, (who is brother of both the accused) Ex.DW1/A, MLC dated 29.10.2014 of Chandershekhar (who is father of both the accused) Ex.DW1/B, MLC dated 29.10.2014 of accused Manoj, Ex.DW1/C, who has deposed that he had medically examined to the injured Manoj on 29.10.2014, he was having tenderness, deformity in the left shoulder and he referred to the Orthopedics and Dr. Manon, Orthopedics, after examination, opined that the injury suffered by Manoj on his left shoulder was grievous in nature and also deposed that this Manoj was discharged on 30.10.2014. Thus, the MLC of this accused Manoj and his other family members as mentioned above fortifies the case of the accused and from the discharge summary Ex.PW3/A, it is proved that Manoj was admitted in Sanjay Gandhi Memorial hospital on 29.10.2014 and discharged on 30.10.2014 and his shoulder was dislocated. Since, the prosecution has failed to prove on record any cogent evidence that there was any bad blood or enmity between the deceased and accused and thus prosecution has failed to prove on record any motive of the accused to commit the murder of Vijender Meena by the accused. Since, the present occurrence is alleged to have taken place on 31.10.2014 at about 6.00PM and statement of this witness was recorded on 04.11.2014, delay in recording of the statement of this witness is not explained and since the testimony of this witness is found to be contradictory, improved, and embellished. So it is found to be suspicious

and since it is proved on the record that prior to this occurrence, on dated 29.10.2014, a quarrel had taken place between this witness, his family on one side and accused Manoj and their family member on the other side and since, Sanjay Singh is also alleged to have sided this witness in the said quarrel, so the possibility of planting of this witness (PW-11) cannot be ruled out and in view of the contradictory, improved, embellished and suspicious testimony of this witness, it does not inspire any confidence.

34. Mr. Prashant Kumar Verma, PW16 has deposed that he was working in a company at Jhajjar for 12 years and his duty hours were from 8.30 am to 5.00 pm. He has further deposed that on 31.10.2014, he left his office at about 5.00 pm and was returning to his house. He has further deposed that when, he was on the way near Mundka, he received a telephonic call of Ms. Pooja Verma his wife at about 6.15 pm. He has further deposed that she informed him that accused Manoj and Anil residing in their neighbourhood had beaten Vijender Meena and thereby attempted to kill him. He has further deposed that he reached his house and by that time Vijender Meena was already taken to the SGM hospital. He has further deposed that he saw the blood was lying at the place of incident i.e. near house no. C-1395, Gali no. 9, Jain Nagar and the son of Vijender Meena used to go to attend the tuition classes in house no. C-1395. He has further deposed that he went to SGM hospital and Mr. Vijender Meena was in unconscious condition at that time and was seriously injured. He has further deposed that before two days of this incident accused Manoj and his brother Guddu raised quarrel with his

father and attacked on him and during that quarrel accused Anil also joined their brothers namely accused Manoj and Guddu. He has further deposed that Mr. Vijender Meena (since deceased) had intervened in that quarrel to pacify the matter and on that day both the accused and their brother Guddu also pelted bricks towards their house due to which the glasses of the windows of their house were broken and the glasses of windows of his car were also broken. He has further deposed that accused Guddu, Manoj and their father also gave beatings to him during the quarrel took place on 29.10.2014. He has further deposed that Vijender Meena (since deceased) made PCR Call and before one month of the said incident (quarrel between both the accused with the father of this witness) accused Manoj pelted bricks on the grocery shop situated near his house and at that time his father had intervened in that matter. He has correctly identified to accused Manoj and Anil in the Court. He has further deposed that on 31.10.2014 itself, this witness, his father and wife of injured shifted injured Vijender Meena to Balaji Action Hospital from SGM hospital. This witness was cross examined by Ld. Counsel for accused. During his cross-examination, he has deposed that he has not stated in his statement that his duty hours are from 8.30 a.m to 5.00 pm and on 31.10.2014 and he left his office at about 5.00 p.m. and he had stated to the police in his statement that son of Mr. Vijender Meena used to go to attend the tuition classes in C-1395. This witness was confronted with his statement statement Ex. PW 16/DA recorded U/s 161 Cr.PC, where, it was not so recorded. He has admitted that he had not stated to the police in his statement that before two days of this incident, accused

Manoj and his brother Guddu quarrel with his father and attacked on him and during that quarrel accused Anil also joined their brothers namely accused Manoj and Guddu. He has further admitted that he had not stated to the police that on that day both the accused and their brother Guddu also pelted bricks towards their house, due to which, the glasses of the windows of their house and car were broken. He has further admitted that he had not stated to the police that accused Guddu, Manoj and their father also gave beatings to him during the quarrel took place on 29.10.2014 and so, Vijender Meena made a PCR call. He has further admitted that he had not stated to the police that before one month of the said incident (quarrel between both the accused with his father) accused Manoj pelted bricks on the grocery shop situated near his house and at that time his father had intervened in that matter and he had not stated to the police that his father and wife of injured also accompanied him, when, injured Vijender Meena was shifted to Balaji Action hospital from SGM hospital. He has further admitted that his wife did not make any statement before the police during investigation of this case. He has further admitted that he did not hand over the call details record of his mobile phone, as well as, mobile phone of his wife to the police. He has denied that he did not receive any phone call of his wife on 31.10.2014 or that for this reason he did not hand over the call details record of his mobile phone, as well as, mobile phone of his wife used on dated 31.10.2014 to the police or that his wife did not give any statement to the police. He has further deposed that the distance between Mundka and his house is about 10-11 kilometers and on 31.10.2014, he reached his house at about 6.40 pm

from Mundka and at that time, his wife, his children and his mother were present and he stayed in his house for about 10-15 minutes and thereafter, he went to the SGM hospital and he reached SGM hospital at about 7.35 pm. He has further deposed that at that time, he did not know Mr. Sanjay Singh and however, his son used to attend tuition classes from the wife of Mr. Sanjay Singh at that time. He has further deposed that even his father was not acquainted with Mr. Sanjay Singh at that time and he stayed at SGM hospital for about 45 minutes on 31.10.2014. He has further deposed that when, he reached there, injured Vijender Meena was in unconscious state however during his stay of 45 minutes, Vijender Meena was screaming with pain on 2-3 occasions. He has further deposed that they left SGM hospital at about 8.20 pm for shifting the injured to Balaji Action hospital and reached there at about 8.50 pm. He has further deposed that he stayed at Balaji Action hospital till 11.30-12.00 midnight and on the next day, in the morning hours, he again went to Balaji hospital and stayed there till night perhaps upto 11.00 pm. He has further deposed that the police met him first time on 01.11.2014, in Balaji Action hospital in the noon hours and he did not know the name / rank of that police official, who met him on 01.11.2014. He has further deposed that he had come to record the statement of injured Vijender Meena and on the same day i.e. on 01.11.2014 in evening hours, police called him at PS and his statement was recorded there. He has further deposed that his father received a phone call from police and his father informed him that police was calling him at PS. He did not know at which place his father was present, when he received the phone call from police. He has further

deposed that his father also went to PS along with him on 01.11.2014 and enquiries were made by the police from him on 01.11.2014 and then, his statement was recorded. He has admitted that his wife did not accompany him, when he went in PS on 01.11.2014. He has denied that on 31.10.2014, he had not left his office at about 5.00 pm or that he had not received telephonic call from his wife at 6.15 pm. He has denied that his wife did not inform him that accused Manoj and Anil residing in their neighbourhood, had beaten Vijender Meena or that attempted to kill him. He has denied that he has concocted the above said story to falsely implicate the accused persons or that on 31.10.2014, he had not reached at his house or that he had not seen the blood at the place of incident near house no. C-1395, Gali no. 9, Jain Nagar. He has denied that son of Vijender Meena was not taking tuition classes in house no. C-1395 or that in the hospital, Vijender Meena was not in unconscious condition or that he had not screamed. He has denied that accused Manoj and his brother Guddu did not quarrel with his father or that accused Anil also did not join their brothers namely accused Manoj and Guddu in the quarrel or that they had not attacked on his father. He has denied that Vijender Meena had not intervened in that quarrel to pacify the matter or that on that day, both the accused and their brother Guddu had not pelted bricks towards their house or that glasses of windows of his house and car were not broken. He has denied that accused Guddu, Manoj and their father did not give beating to this witness during the quarrel on 29.10.2014. He has also denied that Vijender Meena had not made call to PCR or that accused Manoj had not pelted bricks on the grocery's shop situated near

his house one month prior to this incident or that at that time, his father had not intervened in that matter or that he and his father had not shifted injured Vijender Meena to Balaji hospital from SGM hospital along with wife of Vijender Meena. He has denied that he has made lot of improvements in his testimony, due to his enmity with the accused persons and their family members. He has denied that he has deposed against the accused persons to take revenge from them or that on 29.10.2014, this witness, his brother, his father and PW-2 Sanjay Singh gave beatings to the accused persons and their family members or that because of said enmity between him and his family, on one side, and accused persons and their family members, on the other side, he has falsely deposed against the accused persons after hatching a conspiracy with his father (PW11) and PW2 Sanjay Kumar Singh taking advantage of the fact that some unknown persons had assaulted Vijender Meena. He has denied that on 29.10.2014, this witness and his family members and (PW-2) Sanjay Singh gave beatings to Manoj and his family members. He did not know, if the left shoulder of accused Manoj was got dislocated on 29.10.2014. He has denied that accused Manoj remained hospitalized on 29.10.2014 and 30.10.2014 or that accused Anil was not present in Delhi on 29.10.2014 or that he was present in his college at Jaipur from 28.10.2014 to 03.11.2014. He has denied that whatever he has deposed in his examination in chief is false and motivated or that he has deposed falsely. Thus the testimony of this witness reveals that he is not an eye witness of the alleged occurrence. His testimony is found to be contradictory to the testimony of PW-11, as PW-11 Dayanand Verma has

deposed that prior to this incident which occurred on 29.11.2014, only "KAHA SUNI" was held between his family and accused and their family. Whereas, this witness has alleged that the accused and his other family members had also broken the window panes of his house and his car and the testimony of this witness is also found to be improved and embellished, as this witness has nowhere mentioned in his statement Ex/PW16/DA, recorded u/s.161 CrPC that Vijender Meena had intervened in the quarrel earlier held between the family of this witness and accused and their family members. Whereas, at the time of his examination in the court, he has improved his testimony. This witness claims that his wife had informed him telephonically about the occurrence, but no call Detail record of this witness and his wife have been proved on the record. Since, it is admitted by this witness that Vijender Meena, Deceased was friend of this witness and earlier, quarrels were also held between the family of this witness and accused and their family members. Since, this witness claims that he went to the Sanjay Gandhi Memorial hospital soon after the alleged occurrence. Then what has prevented him to give the statement to the police immediately. Nor the IO had recorded his statement promptly. His statement Ex.PW16/DA reveals that it is alleged to have been recorded on 01.11.2014. Delay in recording of the statement of this witness is not explained. This witness has claimed that he was telephonically called by the police on 01.11.2014 in the police station and such telephonic call was given by the police on the phone of his father. Whereas, the statement of father of this witness, who has been examined as PW11, reveals that it was recorded on 04.11.2014. This witness has

deposed that Vijender Meena was unconscious in the SGM hospital. He has also deposed that he was screaming. If Vijender Meena was unconscious, then how could he scream and MLC of the Vijender Meena reveals that he was conscious and oriented. Since the statement of this witness found to be improved, embellished and contradictory to the statement of other witnesses and in view of delay in recording of the statement, his testimony also appears to be suspicious and in view of such delay in recording his statement, the planting of this witness cannot be ruled out and since the testimony of this witness is found to be suspicious, so it does not inspire any confidence.

35. Sh. Heera Chand Meena has been examined as PW1, who has deposed that he had a son namely Vijender Kumar Meena, who died in a fight and he had identified dead body of his son Vijender in the Sanjay Gandhi Memorial Hospital in the last year on second day of month, but he did not remember the month. He has further deposed that he had identified the dead body of Vijender's before postmortem in the hospital and after postmortem his dead body was handed over to him. He has proved his statement Ex.PW1/A vide which, he had identified the dead body of his son Vijender Kumar Meena and also proved the receipt Ex. PW 1/B vide which dead body of deceased was handed over to him. He has further deposed that Mr. Nand Lal, who is relative of this witness had also identified the body of his son vide his identification statement and, then, the Addl. PP had requested for asking some leading question to this witness as to month of identification and after hearing, he was allowed to

ask the leading question and then this witness has admitted it to be correct that he had identified the body of his son in the month of November, last year. This witness was cross examined by Ld. Counsels for accused and during his cross examination, he has admitted it to be correct that in his statement Ex.PW1/A, the house number and gali number disclosed by him was A-829, Gali No.9, Jain Nagar, Karala, Delhi and he never resided in house no. 829, Gali no.9 and also deposed that his deceased son used to reside in house no. 824, Gali no.5. Thus, from the testimony of this witness, it is clear that he had not uttered even single word against the accused. He did not depose that any enemical relation were there between the accused and deceased. Had there been any enmity between the accused and the deceased, this witness could depose about the same. This witness had deposed in his examination in chief that his son Vijender Kumar Meena had died in a fight, but, he did not depose that with whom, the said fight of Vijender took place. Had there been any fight between the accused and the deceased this witness could depose about the same. But he did not depose about the same. This witness also did not depose that the son of Vijender used to go for tuition in the house of PW2 Sanjay Singh or that the wife of PW2 used to tutor Piyush who is the son of Vijender. Had, the son of Vijender Meena got tuition from the wife of Sanjay Kumar Singh, this witness could depose about the same. Thus, the testimony of PW-2 and PW-11 are not corroborated by this witness.

36. Whereas, Mr. Chattar Singh has been examined as PW-10,

who has deposed that on dated 31.10.2014, he was informed that his brother Vijender Meena had sustained injuries, he went to Balaji Action Hospital. Where, he saw his brother, who was not in position to speak and the doctor handed over to him jeans, shirt and vest of his brother. Since, they were blood stained. He has further deposed that the clothes were lying beside the bed of his brother Vijender Meena and he handed over the said clothes to police officials and a document was prepared by the police to that effect and he signed the same. Attention of witness was drawn towards the seizure memo Ex.PW10/A bearing signature of witness at point A. He has correctly identified one shirt, jeans and vest as of his brother. Same are Ex. P3 (colly.) and the Predecessor of this court had given its observation that there were no blood stain marks on the shirt, jeans or vest except few stains on the arm of shirt. The opportunity to cross examine this witness was given to the accused. But, the counsel for accused did not cross examine this witness so, the opportunity of the accused to cross examine this witness was done NIL. But perusal of the testimony of this witness reveals that this witness being brother of the deceased did not utter even single word about any enmity between deceased and accused. Had there been any enmity or bad blood between the accused and the deceased this witness could depose about the same but this witness did not utter even single word against the accused. This witness has deposed that he was informed that his brother Vijender Meena had sustained injuries, but, this witness did not disclose as to who had told him and as to how Vijender Meena had sustained injuries.

37. Whereas, Ms. Pooja Shrotriya, Junior Forensic/Chemical Examiner has been examined as PW 12, who has deposed that on 09.12.2014, four sealed parcels were received vide letter no. 3742 dated 09.12.2014 in connection with the FIR no. 1210/14 dated 31.10.2014 u/s. 302/34 IPC PS Begumpur duly received in the office. She has further deposed that the exhibits were examined by her biologically and serologically and after examination remnants of the exhibits were re-sealed with the seal of FSL P.SHRO Delhi and his detailed reports are Ex. PW12/A and Ex.PW12/B, which bear her signature at points A. The opportunity to cross examine this witness was given to the counsel for accused, but, she was not cross examined by Ld. Counsel for the accused, so, the opportunity of the accused to cross examine this witness was done NIL. No doubt that as per the report of the FSL Ex.PW12/A, blood was detected on the piece of brick and another report of FSL Ex.PW12/B reveals that blood of the human on the piece of brick was found. But, the blood group of human on the piece of brick could not be ascertained. As the column of grouping of this report reveals “no reaction” and in view of the presence of human blood on the piece of brick, it cannot be held that it was the blood of the deceased thereon. No doubt that human blood group 'O' is detected on the shirt and baniyan of deceased. Since, it is not proved on record as to what was the group of blood of the deceased, so in view of the mere presence of the human blood on the piece of brick or shirt or baniyan of the deceased, the testimony of this PW12 or her reports Ex.PW12/A and Ex.PW12/B cannot be used for convicting the accused.

38. Whereas Dr. Vipin Dabas has been examined as PW 14, who has deposed that Dr. Jatin, JR has left the services of the hospital and he could identify the writing and signatures of Dr. Jatin, JR as he has seen him writing and signing in the ordinary course of his work. He has further deposed that on 31.10.2014 at 7:10 PM Dr. Jatin medically examined patient Vijender Meena under his supervision vide MLC NO. 21103, SGM No. 152929 and the MLC is Ex. PW 14/A. The writing from points X1 to X2 was not written in his presence and Dr. Jatin had referred the patient to the surgery department, where, he was advised admission, but his friend and the person accompanying him had and had taken the patient from SGM Hospital. The opportunity to cross examine this witness was given to the accused. But, the counsel for accused did not cross examine this witness so, the opportunity of the accused to cross examine this witness was done NIL. Thus from the testimony of this witness also, it is not clear as to who had told to Dr. Jatin (who had medically examined Vijender Meena) that Vijender Meena was assaulted, either Dr. Jatin was told by Vijender Meena who was conscious and oriented or by Neha Sharma of CAT Ambulance Staff, it remained a mystery. As neither first IO SI Sandeep Tushir bother to arrive in the hospital promptly nor second IO Inspector Sudhir Kumar chose to record the statement of Neha Sharma and Dr. Jatin.

39. Whereas, Dr. Anil Kumar, RMO, Sri Balaji Action Medical Institute has been examined as PW 15, who has deposed that on

02.11.2014 he gave death summary of patient Vijender Singh, who was admitted on 31.10.2014 vide MLC No. 21103 and death summary is Ex. PW 15/A. He has further deposed that the cause of death of severe head injury. The opportunity to cross examine this witness was given to the accused. But, the counsel for accused did not cross examine this witness so, the opportunity of the accused to cross examine this witness was done NIL. Thus, from the testimony of this witness also, it is clear that this witness had also opined in the death summary Ex.PW15/A that the head injury was the cause of the death of deceased.

40. Whereas SI Sandeep Tushir has been examined as PW17, who has deposed that on 31.10.2014, he was posted as SI at PS Begumpur and on that day he and Ct. Ravi were on emergency duty from 8.00 am to 8.00 pm. He has further deposed that at about 6.15 pm a call was received and it was informed that near Nag Mandir, Gali no. 9, Jain Nagar, there was one injured person, who had sustained head injury, which was bleeding profusely. He has further deposed that he along with Ct. Ravi reached at the spot and they came to know that injured was already taken to hospital and he and Ct. Ravi went to SGM hospital, which is in the area of Mangolpuri and they found the injured Vijender Kumar Meena was admitted there and thereafter, he was shifted to some unknown private hospital by his relatives / attendant and he collected the MLC of injured Vijender Kumar Meena. He has further deposed that in the MLC of Vijender Kumar Meena, head injury was reflected and he and Ct. Ravi returned to PS and he made his endorsement Ex.PW17/A on the copy of

DD no. 59 and recommended registration of FIR. Thereafter, he again went to the spot and made inquiry from the persons residing nearby. He has further deposed that one person namely Sanjay told him that he had witnessed the incident and he had shown him the place of incident, where blood was lying. He informed that this blood was of injured Vijender Kumar Meena and at that place he was beaten by Manoj and Anil (both brothers). He has further deposed that he had prepared the site plan which is Ex.PW17/B at the instance of eye witness Sanjay and in the meantime, Ct. Ravi came to the spot and handed over copy of FIR and original rukka to him. He has further deposed that he had mentioned the FIR no. on the site plan and he lifted blood stained soil and earth control from the spot. He has further deposed that these were kept in separate plastic containers and sealed with the seal of ST and both these exhibits were taken into police possession vide seizure memo Ex.PW2/B and Ex.PW2/C. He has further deposed that PW-2 Sanjay Singh pointed towards brick lying about 15-20 steps away from the place, where blood was lying and informed that accused Manoj and Anil had thrown that brick at the time of fleeing away from the spot. He has further deposed that this brick was lifted from the spot and blood stains were there on that brick and he had prepared parcel of that brick and sealed it with the seal of ST and seized the same, vide seizure memo Ex.PW2/A. He has further deposed that before lifting the above said three exhibits, he took the photographs of the scene of crime with his mobile phone and he had handed over the seal to Ct. Ravi, after its use. He has further deposed that thereafter he and Ct. Ravi returned to PS and PW-2 Sanjay Kumar Singh was

instructed to reach at the police station. He has further deposed that he had deposited the abovesaid case property with MHCM and obtained his seal from Ct. Ravi. He has further deposed that PW-2 Sanjay Kumar Singh came to police station and he inquired from him in detail about the incident and then recorded his statement u/s 161 Cr.PC. He has further deposed that he also made inquiries from Ct. Ravi and recorded his statement and this investigation continued during intervening night of 31.10.2014 and 01.11.2014. He has further deposed that on 01.11.2014 at about 9.00 am an information was received by duty officer which was sent from Balaji Action hospital and it was informed that injured Vijender Kumar Meena was shifted there from SGM hospital and this information was recorded by duty officer vide DD No.16 Ex.PW7/A. He has further deposed that he went to Balaji Action hospital and moved an application for seeking opinion about the condition of the patient Vijender Kumar Meena and the doctor on duty declared the injured as not fit for statement on his application Ex.PW17/C and endorsement of concerned doctor regarding fitness of injured in the encircled portion X. He has further deposed that thereafter, they returned to PS and briefed to the SHO about this case and the FIR of this case was registered u/s 308/34 IPC however he altered the offence u/s 307/34 IPC after recording the statement of eye witness Sanjay. He has further deposed that on the same day, Mr. Chhatar Singh, brother of injured came to PS and produced the clothes of injured Vijender Kumar Meena, which were worn up by him at the time of incident and handed over to him by the doctor in Balaji action hospital. He has further deposed that the clothes were containing of one vest, shirt and

jeans and he prepared parcels of these clothes and sealed the same with the seal of ST and it was seized vide memo Ex.PW10/A and he deposited this sealed exhibits in malkhana. He had recorded the statement of Mr. Chhatar Singh. He has further deposed that on 02.11.2014, at about 9.50 am an information was received from Balaji Action hospital regarding death of injured Vijender Kumar Meena, which was recorded by the duty officer vide DD no.13A Ex.PW5/A and he had added section 302/34 IPC in the case file and further investigation of this case was taken up by Inspector Sudhir. He has further deposed that he along with IO / Inspector Sudhir went to Balaji Action hospital and shifted the dead body of injured in SGM hospital from Balaji Action hospital. He has further deposed that thereafter, they went to mortuary SGM hospital and IO conducted the inquest proceeding and got conducted the postmortem examination on the body of deceased Vijender Kumar Meena and then his dead body was handed over to his relatives. He has further deposed that after the postmortem examination, the doctor had handed over the sealed exhibits along with sample seal, which were seized by IO vide seizure memo Ex.PW17/D and in the SGM hospital itself, IO had received the secret information regarding one of the accused Manoj. He has further deposed that it was informed that accused Manoj would come near Sector-17, Rohini and then, he along with IO reached near G 3S cinema hall and there secret informer pointed towards one person standing there and identified him, as a accused Manoj and then the informer left the spot. At that time accused Manoj was on motorcycle and they apprehended him and brought him with the motorcycle to PS Begumpur. He has correctly

identified accused Manoj. He has further deposed that IO interrogated accused Manoj in PS and arrested him in this case. He has further deposed that again said IO called eye witness Sanjay in PS and the eye witness Sanjay identified accused Manoj in PS as one of the accused involved in the offence. He has further deposed that then accused Manoj was arrested by IO vide memo of arrest Ex.PW2/E and his personal search was conducted vide memo Ex.PW17/E. He has further deposed that IO recorded the supplementary statement of eye witness Sanjay and IO interrogated accused Manoj and recorded his disclosure statement Ex.PW17/F. He has further deposed that accused Manoj disclosed that he could identify the place of incident and then he led them to the place of incident and he pointed the place of incident. He has further deposed that IO prepared the pointing out memo is Ex.PW17/G and thereafter, accused Manoj was taken to SGM hospital and his medical examination was got done and then he was brought to PS. He was sent to lock up. He has proved one shirt, one jeans and one vest of deceased Vijender Kumar Meena as Ex.P-3 (collectively), brick Ex.P-1, the loose pieces of earth control Ex.P-2, loose pieces of earth control Ex.P-5. He has also proved the seizure memo Ex.PW17/H of motorcycle, on which accused Manoj was apprehended. He has also proved the six photographs of motorcycle bearing registration no. DL 11 SH 2286 Ex.PW17-A to Ex.PW17-I and the CD containing the photographs of the motorcycle Ex. PW17/J and the four photographs Ex.PW17/K1 to Ex.PW17/K4. This witness was also cross examined by Ld. Counsel for accused and during his cross examination, he has deposed that for the first time, he had reached at the spot at about

11.45 pm on 31.10.2014 and no public person was present at the spot at that time. He has further deposed that he did not visit the house of injured Vijender Kumar Meena, at any point of time during investigation of this case. He has further deposed that he talked to the wife of injured Vijender Kumar Meena during investigation however he did not recollect as to whether, he had recorded her statement or not. He has further deposed that he met with the wife of injured at about 1.00 am during the intervening night of 31.10.2014 and 01.11.2014 and he talked with her in the street, which was in the mid of place of incident and house of injured. He has further deposed that he remained at the spot i.e. place of incident from 11.45 pm till 12.45 am and thereafter, he remained present near the place of incident for further one hour. He has further deposed that after leaving the place of incident at 12.45 am, he met to the wife of Vijender Kumar Meena and secret informer and the house of Vijender Kumar Meena is about 150 meters from place of incident. He did not remember the address of house of injured / deceased and the house of injured was about 2-3 streets away from the place of incident and when, he met to the wife of injured / deceased, she was alone in the street and no public person was present with her. He has further deposed that he cannot admit or deny the fact that he had recorded the statement of wife of deceased and that he could state about this fact only after perusing the record. On seeing the police file, he has deposed that he has perused the case diary and it is mentioned therein about recording of the statement of wife of the deceased in the same. He has denied that the statement of wife of deceased was recorded at her house. Then, on drawing the attention of

this witness towards statement of Constable Ravi Hooda recorded u/s 161 Cr.PC recorded on 01.11.2014, he has further deposed that it is the same statement of Ct. Ravi Hooda, which was recorded by him u/s.161 CrPC which is Ex.PW17/DA. He has admitted it to be correct that it is mentioned in the statement of Ct. Ravi Hooda from point A to A1 that they went to the house of deceased and recorded statement of his wife and voluntarily stated that there is a mistake in the statement of Ct.Ravi Hooda recorded by him that they had gone to the house of deceased, as actually they had not gone the house and he had made inquiry from the wife of deceased, Vijender Kumar Meena in the street. He has admitted it to be correct that the statement of Ct.Ravi Hooda is not correctly recorded. He is denied that he has fabricated and tampered with the evidence of the witness. He has admitted that he talked to the wife of the deceased for about 15-20 minutes and then they met with secret informers. He has further deposed that thereafter, they proceeded for PS and he inquired from the other residents of area besides Sanjay, but, none of them could give detail about the incident except Sanjay. He has further deposed that after the date of incident, he had again visited the spot on 02.11.2014, when accused Manoj took them to the place of incident for pointing out. He has denied that on 02.11.2014, they did not take accused Manoj to the place of incident, as it was already known to them. He has denied that he was not present at the place of incident between 11.45 pm and 12.45 am, on the intervening night of 31.10.2014 and 01.11.2014. He has denied that he had not met any of the secret informer near the place of incident after 12.45 am or that during that period, he was present in the police

station. He has admitted that he did not seize his mobile phone, with which, he clicked the photographs of the spot of crime and he got developed the photographs clicked with his mobile phone and then handed over the same to the IO. He has admitted that he had not given any certificate u/s. 65B of Evidence Act to the investigating officer with regard to photographs. He has denied that he had not clicked any photograph of the crime spot with his mobile phone or that the photographs placed on record are fabricated or that due to the said reason, he has not given a certificate u/s. 65B of Evidence Act. He has further deposed that he did not remember, whether he had stated to the IO in his statement u/s 161 Cr.PC that in the SGM hospital that IO received the secret information regarding one of the accused Manoj and when the attention of the witness was drawn towards his statement recorded u/s 161 Cr.PC, then after reading the same, he has further admitted that the statement Ex.PW17/DB was made by him to the IO. He was confronted with his statement Ex.PW17/DB, where it was not so specifically recorded that the secret informer had met the IO in the SGM hospital. He has further admitted that he had not stated to the investigating officer in his statement Ex.PW17/DB that it was informed that accused Manoj would come near Sector-7 Rohini. He has further deposed that he had not stated to the IO in his statement Ex.PW17/DB that the secret informer near G3S cinema hall had pointed out towards one person standing there and identified him as accused Manoj and then informer left the spot. He has denied that no secret information was received by IO from anyone or that the accused Manoj was not arrested near G3S

cinema hall or that no informer had pointed out towards accused at that place or that had concocted story to shield illegal investigation carried out by him and by Inspector Sudhir. He has further deposed that he did not remember the time, when, he went to Balaji action hospital on 01.11.2014 and he had not recorded statement of any doctor, official and attendant of injured at the hospital. He has further admitted that the doctor with whom, he met in the Balaji Action hospital, did not inform him about the clothes of Vijender Kumar Meena and PW-10 Chhatar Singh came to him at PS in the evening of 01.11.2014. He has further deposed that he had not called Mr. Chhatar Singh by giving notice, he had come in the police station on his own had come to the PS. He has denied that Mr. Chhatar Singh did not produce the clothes Ex.P-3 before him or that said clothes were falsely planted in this case or that his statement was fabricated by him at the instance of the IO. He has admitted it to be correct that he had not recorded the statement of PW-2 Sanjay at the spot in the night of 31.10.2014 and he did not remember at what time he had recorded the statement of PW-2 Sanjay. He has voluntarily deposed that his said statement was recorded on 01.11.2014. He has denied that PW2 Sanjay Singh did not tell him the names of the accused persons on 31.10.2014 at the spot or on 01.11.2014. He has denied that PW-2 Sanjay Singh did not inform him that the blood was lying at the spot of Vijender Kumar Meena. He has denied that neither on 31.10.2014 nor on 01.11.2014, PW2 Sanjay Singh had informed him that Vijender Kumar Meena was beaten up by accused Manoj and Anil at the spot. He has denied that PW-2 Sanjay Singh did not visit the PS or met him on the intervening night of

31.10.2014 and 01.11.2014. He has denied that PW-2 Sanjay Singh did not visit to the PS or met him during the morning, afternoon, evening and night of 01.11.2014. He has further deposed that the proceedings conducted by him are regarding his going to the spot on receipt of call, going to the SGM hospital and collecting MLC of the injured, endorsing on the rukka, going to the spot, preparing site plan, preparing seizure memos, arrest of the accused Manoj, recording of statements of the witnesses etc. have been deposed by him in his examination in chief. He has admitted it to be correct that he has not conducted any other investigation except for whatever he has deposed in his examination in chief. He has denied that he has wrongly and falsely stated that 'PW2 Sanjay Singh' pointed out towards brick lying at the spot, i.e. about 15-20 steps away from the place, where blood was lying and informed that accused Manoj had thrown this brick (weapon of offence) at the time of fleeing away from the spot in order to falsely implicate accused persons in this case. He has admitted that the clothes of Mr. Sanjay Singh were not blood stained, when he had met him and he did not seize his clothes. He has further deposed that PW2 Mr. Sanjay Singh did not offer his clothes before him for seizure. He has denied that he has deposed falsely at the instance of IO to falsely implicate the accused persons or that no brick was seized from the spot and it was planted later on to falsely implicate the accused persons or that no proceedings / investigation were conducted by him at the spot and he has fabricated the same at PS or that he had also fabricated the statements u/s 161Cr.PC. He has denied that the accused persons are not involved in the present case or that he

has fabricated the statements of witnesses to falsely implicate them or that investigating officer has directed him to record fabricated statements of the witnesses belatedly to falsely implicate the accused persons. This witness was re-examined by Ld. Addl. PP for the State and in his re-examination by Ld. Addl.PP for State he has deposed that after the receipt of the call at 6.15 pm on 31.10.2014, he along with Ct. Ravi had gone to the spot i.e Gali no.9, Near Nag Mandir, Jain Nagar, Delhi, where, they had reached after about 20-25 minutes of receipt of the call. Thereafter, he had gone to the spot i.e Gali no.9, Near Nag Mandir, Jain Nagar, Delhi for the second time at about 11.45 pm – 12.00 midnight on 31.10.2014. This witness was again cross examined by counsel for both the accused. During his cross-examination he has admitted that he had visited the exact spot, where, the blood of the injured/deceased was lying for the first time at night of 31.10.2014 at about 11.45 pm – 12.00 midnight and it was in the same gali i.e gali no.9 and he cannot tell the length of gali no. 9, as it has several by-lanes. He has voluntarily stated that the distance between the place where the blood of the injured was lying and the place, where, he had visited on receipt of call at 6.15 pm on 31.10.2014 was about 150-200 meters. He has further deposed that he did not record the statements of the public persons who were at the spot, when, he had reached on receipt of the call of 6.15 pm on 31.10.2014 ad he did not know the names of the persons who had informed him that injured was already removed to the hospital. He has denied that he had not visited the spot on 31.10.2014 after the receipt of call at 6.15 pm on 31.10.2014 or that he has deposed falsely. This PW17 had received the

information at 6.15PM on dated 31.10.2014 and during his cross-examination, he has deposed that for the first time, he had arrived at the spot at 11.45PM on dated 31.10.2014 and also deposed that no public person met him there. Whereas, in his examination in chief, he has deposed that Sanjay Singh (PW2) met him and he has also deposed in his examination in chief that he had made enquiries from the persons residing nearby. But, this witness has failed to bring on record the name of any of said persons, from whom, he is alleged to have enquired. His testimony is self contradictory. This witness has deposed that PW-2 Sanjay Singh met him on the night of 31.10.2014. But, the prosecution has failed to explain as to why PW17 had not recorded the statement of Sanjay Kumar Singh on dated 31.10.2014 at the spot. This witness has deposed that Ct. Ravi accompanied him to the spot on dated 31.10.2014. This witness has deposed that the FIR was registered u/s. 308/34 of IPC. Whereas, the perusal of the FIR Ex.PW6/A reveals that it was registered on dated 31.10.2014 at 11.20PM u/s. 308 and Section 34 of IPC was not written therein. This witness has also deposed that he had recorded the disclosure statement Ex.PW17/F of accused Manoj. But, as on dated 02.11.2014, the disclosure statement Ex.PW17/F is alleged to have been written by Inspector Sudhir (PW20) when this accused was in the custody of the police and nothing has been recovered in furtherance thereof. So, the disclosure statement of accused Manoj is held to be inadmissible under the law of evidence. This witness has denied that during his cross-examination he met and talked with the wife of the deceased at 1.00AM, on the intervening night of 31.10.2014 and 01.11.2014 in the street, which

was in the mid of the place of occurrence and house of the injured. But, (PW11) Dayanand Verma has deposed that he and the wife of Vijender Meena stayed in the Balaji Action hospital on the night of 31.10.2014 and if the wife of the deceased Vijender Meena stayed in the Balaji hospital. Then, how could she meet to PW17 SI Sandeep Tushir in the street in the night at 1.00AM. Thus, there are material contradictions in the testimonies of PW-11 and PW-17. This PW-17 has deposed that he did not go to the house of the deceased. Whereas, the statement of constable Ravi Hooda recorded u/s.161 of Cr.PC Ex.PW17/DA reveals that he had deposed therein that he along with PW17 SI Sandeep Tushir went to the house of Vijender Meena and enquiries were made from her and her statement was also recorded and this witness PW-17 (IO/SI) Sandeep Tushir after consulting with the case diary has admitted that the statement of wife of Vijender Meena was also recorded by him. But for the best reasons known to the Inspector Jagminder Singh (PW18), he did not file the statement of wife of deceased with the report u/s.173 of CrPC nor the wife of the deceased has been impleaded as witness of the prosecution nor she is examined in the court. Since, the statement of Ct. Ravi Hooda was recorded by PW17 SI Sandeep Tushir and for the best reasons known to this PW17 SI Sandeep Tushir, he had spoken that he had not gone to the house of the deceased Vijender Meena. No doubt that Ct. Ravi Hooda was impleaded in the list of witnesses of the prosecution. But the prosecution chose to drop this witness and at the time of filing of the charge sheet and it is not explained by the prosecution as to why the statement of wife of the deceased is withheld by Inspector Jagminder

Singh (PW18) who had filed the charge sheet. The wife of the deceased could depose about the enmity if any, between the deceased and the accused. But, the statement of wife of the deceased is withheLd. So, an adverse inference is drawn against the prosecution for withholding of the statement of the wife of the deceased and also for non-examination of Ct. Ravi Hooda and wife of deceased. This PW17 has deposed that he had talked with the wife of the deceased. But he did not disclose any fact as to what was told by the wife of the deceased to this witness about the occurrence. This witness (PW17) has admitted that he had not recorded the statement of PW2 Sanjay Singh at the spot on the night of 31.10.2014. But, he failed to explain what had prevented him to record the statement of PW2 at the spot on the night of 31.10.2014. This PW17 has deposed that he had recorded the statement of PW2 Sanjay Singh on dated 01.11.2014. Whereas, PW2 Sanjay Singh has deposed in his cross-examination that he went to the police station for the first time on dated 02.11.2014. Thus, there are material contradictions in the statement of PW2 Sanjay Singh and PW17 SI Sandeep Tushir. Since, Shri Vijender Meena died on 02.11.2014 in the Balaji Action hospital and since PW-2 Sanjay Singh has deposed that for the first time, he went to the police station on 02.11.2014. So, the possibility of recording of statement of PW2 Sanjay Singh by PW17 SI Sandeep Tushir on dated 02.11.2014 after the demise of Vijender Meena after due deliberations and colouring the version, cannot be ruled out. PW-2 Sanjay Singh and PW-11 Dayanand Verma have deposed in their cross-examination that their clothes were stained with blood, when, they took Vijender Meena to the Sanjay Gandhi

Memorial hospital in injured condition. But, presence of PW2 Sanjay Singh and PW11 Dayanand Verma at the time and place of occurrence is doubtful and this PW17 SI Sandeep Tushir, who was assigned initial investigation could seize the alleged blood stained clothes of PW2 and PW11. But PW-2 Sanjay Singh and PW11 Dayanand Verma have not stated in their statements recorded u/s.161 of CrPC, that their clothes were ever stained with blood and it appears to the court that these prosecution witnesses No.2 and 11 have introduced new facts at the time of their cross-examination and since, their blood stained clothes are also not seized, so, it cannot be assumed or presumed that the clothes of these prosecution witnesses were either stained with the blood or that they were present at the spot or in the hospital. Since, the MLC of deceased Vijender Meena Ex.PW14/A reveals that Vijender Meena was conscious and oriented on 31.10.2014 at 7.10PM, when, he was admitted in the Sanjay Gandhi Memorial hospital and as per the MLC Ex.PW14/A of the deceased, he was brought in the hospital by Ms. Neha Sharma from the CAT Staff of Ambulance and this witness has deposed that after receiving information, he went to the spot and it was told that the injured was taken to the hospital. But, this witness has failed to tell that who had told him that injured was taken to the hospital. As, it is mentioned in the MLC of injured Vijender Meena that he was conscious and oriented. So, this PW17 SI Sandeep Tushir could go to the Sanjay Gandhi Memorial hospital immediately and could inquire from Vijender Meena or Ms. Neha Sharma of CAT Ambulance Staff, who had taken to Vijender Meena in the Sanjay Gandhi Memorial hospital. But, this PW17 SI Sandeep Tushir did

not bother to arrive in the Sanjay Gandhi Memorial hospital immediately. Had he arrived in the Sanjay Gandhi Memorial hospital immediately, he could enquire from the Vijender Meena or Ms. Neha Sharma of CAT Ambulance Staff or from Dr. Jatin who had medico legally examined to Vijender Meena vide his MLC Ex.PW14/A, as to who had told to that doctor that Vijender Meena was assaulted. But, SI Sandeep Tushir (PW17) did not enqiure from Ms. Neha Sharma, of CAT Ambulance Staff and Dr. Jatin, who had medico legally examined to the Vijender Meena in Sanjay Gandhi Memorial hospital. Since the PCR form Ex.PW4/A reveals the phone number of the caller Sanjay Kumar Singh. But, this PW17 SI Sandeep Tushir did not bother to contact with Sanjay Kumar Singh immediately and if the cross-examination of this PW17 SI Sandeep Tushir is looked into, then, for the first time, he had arrived at the spot on 31.10.2014 at 11.45PM and in his examination in chief, he has stated that he met with Sanjay Singh. But in his cross-examination, he has stated that no public person met him and this witness even admitted that he did not record the statement of Sanjay Singh on the spot on 31.10.2014. Such conduct of SI Sandeep Tushir (PW17) shows his negligent conduct and lackadaisical approach and in view of contradictory testimony of this witness, it does not inspire any confidence therein.

41. Whereas SI Rajesh Kumar has been examined as PW 19, who has deposed that **o**n 02.11.2014, he was posted as SI at PS Begumpur and on that day, IO/Inspector Sudhir Kumar called him in his room and briefed him about the facts of this case. He had informed him that one of

the wanted accused in this case namely, Anil was studying in Gyan Vihar University, Partap Nagar, Jaipur and he directed him (PW19) to go to Jaipur in above named university and to bring accused Anil at Delhi. He has further deposed that on the same day, he along with Ct. Ravi Huda went to Jaipur and they went to local police station i.e Partap Nagar and took the help of local staff and then, they along with police went to Gyan Vihar university. He has further deposed that he made inquiry about accused Anil from the guards at university and on checking, the guard informed him that Anil was not picking up the phone, so, it appeared that at that time, he was not available in his room and after about half hour, accused Anil was found in the university and then, they brought him to Delhi. He had correctly identified accused Anil in the Court. He has further deposed that they reached PS Begumpur at about 6.30 am on 03.11.2014 and he produced accused Anil before IO/Inspector Sudhir. He has further deposed that IO called PW Sanjay at police station. PW-2 Sanjay identified accused Anil and then IO interrogated accused Anil and arrested him in the present case vide arrest memo Ex.PW2/D and his personal search was taken vide personal search memo Ex.PW19/A. He has further deposed that accused Anil made disclosure statement, during which, he had disclosed that he could get recovered the weapon of offence i.e DANDA from Gali no. 6 Jain Nagar, Begumpur, Delhi and the disclosure statement of accused Anil is Ex.PW19/B. He has further deposed that accused Anil led the police party comprising of himself, IO/Inspector Sudhir and his staff to street no. 6 Jain Nagar, Begumpur, near Nag mandir (temple) boundary wall. He has further deposed that there was

heap of stones lying on the north eastern side of the temple and accused Anil got the weapon of offence i.e DANDA recovered from the base under the pile of stones. He has further deposed that IO took the measurements of that DANDA and then prepared a cloth parcel of the same and sealed the parcel with the seal of SKG and seized vide memo Ex.PW19/C and accused Anil also led the police party to the place of incident situated in street no. 9 and pointed out the place of incident. He has further deposed that IO prepared pointing out memo Ex.PW19/D. After his medical examination in SGM hospital, accused Anil was produced in the Court. His statement was recorded by the IO in this case and the DANDA was 17 ¾ inch in the length and its circumference was 4 X 3.5 cm and on seeing the DANDA Ex.P-4, he had stated that it is the same DANDA which was recovered at the instance of accused Anil. This witness was cross examined by Ld. Counsel for accused. During his cross-examination, he has admitted it to be correct that there were no blood stains over the DANDA Ex.P-4. This witness was made to see his statement u/s 161Cr.PC dated 03.11.2014 and after reading the same, he has deposed that he had stated in his statement u/s 161 Cr.P.C recorded by the IO that Inspector Sudhir informed him that one of the wanted accused in this case namely Anil was studying in Gyan Vihar University, Partap Nagar, Jaipur. He was confronted with his statement Ex.PW19/DA recorded u/s. 161 Cr.PC on dated 03.11.2014, where it was not so recorded. He has further deposed that he had stated to the police in his statement Ex.PW19/DA recorded u/s 161 Cr.PC that they went to local police station i.e Partap Nagar and took the help of local staff and then,they along with

local police went to Gyan Vihar university and he made inquiry about accused Anil from the guards at university. He was confronted with his statement Ex.PW19/DA recorded u/s. 161 Cr.PC on dated 03.11.2014, where it was not so recorded. He has further deposed that he had stated to the police in his statement Ex.PW19/DA recorded u/s. 161 Cr.PC that on checking, the guard informed him that Anil was not picking up the phone, so it appeared that at that time, he was not available in his room and after about half an hour, accused Anil was found in the university and then, they brought him to Delhi. He was confronted with his statement Ex.PW19/DA recorded u/s 161 Cr.PC dated 03.11.2014, where it was not so recorded. He has further deposed that he and Ct. Ravi had gone to Jaipur in his car bearing registration no. HR 36 V 9301 and they had left PS Begumpur at about 2.30 pm and reached at Jaipur at about 8.30 -9.00 pm, he had not made any DD entry regarding his departure from the PS for going to Jaipur. He has further deposed that he had made the entry regarding his arrival along with Ct Ravi at Jaipur in the rough register of PS Partap Nagar, Jaipur and he had personally not made the entry and he had only verbally informed the police at PS Partap Nagar, Jaipur. He has further deposed that four police officials from PS Partap Nagar, Jaipur thereafter, accompanied them in their official vehicle to Gyan Vihar university and the four police officials may have been one SI, one driver and two constables, but, he did not remember exactly. He has further deposed that he did not remember whether or not any entry regarding their arrival was made in the visitor's register of Gyan Vihar university and they had inquired from the guard posted at the gate regarding accused

Anil and no inquiry was made from any official, officers and Principal. He has further deposed that he did not inquire about the name of the guard, from whom, he had made inquiry regarding accused Anil. He has further deposed that he also did not record the statement of the guard and the distance between the gate, where the guard was posted and the hostel of accused Anil was about 500 meters. He has further deposed that he did not remember the exact number of the blocks, but, there were several blocks and voluntarily stated that they were told about the room number and block number of the hostel of accused Anil by Inspector Sudhir before they had left the PS. He was confronted with his statement Ex.PW19/DA recorded u/s.161 CrPC dated 03.11.2014, where it is not so recorded. He has further deposed that the guard had called on the intercom and talked to someone and thereafter he had told them that accused Anil was not available in the hostel. He has further deposed that he did not remember on which floor, the room of accused Anil was situated. He had further deposed that the hostel of accused Anil was triple or four storeyed but he did not remember. He has further deposed that he cannot tell the size of the room of accused Anil in the hostel as he did not go inside his room. He has admitted that he did not give any information in writing to the hostel warden nor sought any permission from him regarding the apprehension of accused Anil and he was brought to Delhi and voluntarily stated that they had verbally informed the guards posted at gate of university. He was was confronted with his statement Ex.PW19/DA recorded u/s.161 CrPC dated 31.10.2014, where it is not so recorded. He has further deposed that he had not made any DD entry at PS Partap Nagar, Jaipur with

regard to taking of accused Anil to Delhi and he did not remember whether or not he had taken any reimbursement from his office for using his private car for going to Jaipur for apprehension of accused Anil. He has denied that he has not gone to Jaipur at Gyan Vihar university and due to said reasons, he has given evasive replies. He has further deposed that he did not remember, whether he had made any entry regarding his arrival in PS Begumpur, after returning from Jaipur with accused Anil or not and he did not remember at what time, PW-2 Sanjay Kumar Singh had come to PS Begumpur, as, he was called by Inspector Sudhir. He has further deposed that when accused Anil was arrested around 9.00AM, Mr. Sanjay was in the PS with Inspector Sudhir and the interrogation of accused Anil had commenced at about 8.30 am. He has further deposed that when, he had seen Mr. Sanjay for the first time in the PS, no document was prepared by them and the documents were prepared simultaneously as per the investigation, which was being conducted. He has further deposed that accused Anil was interrogated, arrested and his personal search was conducted in the presence of Sanjay Kumar Singh and the documents pertaining to his arrest and personal search memo were prepared at that time. He has further deposed that Sanjay Kumar Singh had signed on arrest memo, but, he does not know whether or not Sanjay had signed on the other documents. He has further deposed that he along with Inspector Sudhir, accused Anil and the support staff of the SHO, whose names, he did not remember, had left the PS between 10.00-10.30 am on 03.11.2014 and the support staff were the driver and operator and the operator had the custody of accused Anil at that time. He

had denied that an operator is staff of communication wing of Delhi police. First of all, they had gone to the place of incident and then, the place from where the weapon of offence was recovered, then to SGM hospital for the medical examination of accused Anil and thereafter to Rohini Courts where accused Anil was produced before the Court of Ld. Area MM and remanded in judicial custody. He has further deposed that they had reached the place of incident after about 15 minutes of their leaving the PS in government vehicle and all the police officials were in uniform. He has further deposed that the public had not gathered at the spot when they reached at the spot and no public persons were present at the spot. He has further deposed that they had not made any efforts to inquire from the neighbours about the present case nor they made any efforts to join them during investigation at that time. He has further deposed that they came to know that deceased was a resident of Alwar and all the residents of that area had gone to Alwar for condolence. He has denied that he and police team did not go to the place of incident along with accused Anil on 03.11.2014 or any other day or that he has concocted false story. He has further deposed that he had prepared pointing out memo at the spot and voluntarily stated that the investigation and writing work was done at the instance of the IO. He has denied that now writing work was carried out by him at the spot and pointing out memo was later on prepared in PS to falsely implicate the accused persons. The official gypsy was also parked near the spot. He has further deposed that the distance between Gali No.9 and nag mandir in Gali No. 6 is about 400-500 meters and they went to nag mandir from spot by official gypsy and reached there within 7-8

minutes. He has further deposed that the Nag mandir was closed at that time and the door of the temple was bolted from outside and not locked. He has further deposed that the width of the street no. 6 is about 15-20 feet and there are no houses near the Nag mandir. He has further deposed that no public person was present at the temple and near the temple at that time. He has further deposed that when they left PS for the spot number of public persons were going here and there during that time. He has further deposed that IO asked about 4-5 persons to join the investigation at Jain Nagar, 40 feet road, however, they left without disclosing their identify. He has further deposed that no notice was served on those public persons, who refused to join the proceedings and the area of Mandir is 50 square yards. He has further deposed that the main gate of the Nag Mandir was made of iron is of 5 x 7 feet and no shops are there near the temple and there is no school near the temple. The level of street no. 6 is same as of Nag mandir. However, there is some other street adjacent to Nag mandir and the level of that street is lower than the temple. He has denied that on 03.11.2014, number of houses, school and factory were situated near the Nag mandir and the gate of the Nag mandir is situated in gali no. 6. He has further deposed that he cannot tell the dimensions of height of the building of Nag mandir and to his knowledge, there is no basement in the temple as he did not conduct any inspection there. He has denied that priest (pujari) and his family were residing in the temple as on 03.11.2014 and they remained near Nag mandir for about 10-15 minutes but he cannot tell the exact time. He has admitted to be correct that it was in the morning and prior to 12.00 noon

and they were there between 10.00 am to 11.30 am for about 10-15 minutes. He has further deposed that they were four policemen present at that time and as no public person was present at Nag mandir, no public person was associated in the investigation. He has denied that he had deposed falsely that no public person was available at and around Nag mandir as they had never gone there and the road of street no. 6 was made of bricks, the adjacent street to the Nag temple was a kuccha road at that time. He has admitted it to be correct that both kuccha and pucca road are adjacent to the building of mandir and the Nag mandir is situated at the corner of street no. 6. He is not aware about the width of adjacent street to the Nag temple. He has voluntarily stated that there was no boundary wall of the plot near Nag temple in that other adjacent street. He has denied that DANDA was not recovered at the instance of accused Anil or that they had planted the same on him at PS to falsely implicate accused persons in the present case. He has denied that priest of the temple was available at that time or that number of public persons were also living in the vicinity of the mandir and he did not know whether or not the Nag mandir used to open at about 5.00 am and closed at 12.00 noon and voluntarily deposed that on 03.11.2014, the main door of the temple was bolted from outside at the time when they reached there. He has further deposed that he has not stated in his statement to the IO that on 03.11.2014, the main door of the temple was bolted from outside at the time when they reached there, as the IO was with them at that time. He had denied that on 03.11.2014, the Nag Mandir was opened from 5.00 am to 12.00 noon or that he has concocted a story, as no DANDA was

recovered at the instance of accused Anil. He had denied that recovery memo of DANDA Ex.P-4 has been fabricated by him at PS at the instance of IO to falsely implicate accused persons. He has further deposed that Mr. Sanjay Singh (PW2) did not accompany them when they had left the PS with accused Anil, as Mr. Sanjay had already left the PS and he did not know the exact time, when Mr. Sanjay had left the PS. He has further deposed that he has no personal knowledge, whether PW-2 Mr. Sanjay Singh was asked to join investigation by the IO or not when they left the PS along with accused Anil. He has further deposed that on 03.11.2014, he along with IO and with his supporting staff and with accused Anil went to the place of incident from PS, then, they went to street no. 6 near Nag mandir. Then, they went to SGM hospital and thereafter accused Anil was produced in the Court. He has further deposed that during this period they did not go to any other place, except, the places mentioned above. He has admitted it to be correct that alleged place of recovery is accessible to public at large and anybody can go to the said place without any hindrance. He has voluntarily deposed that the DANDA was got recovered by accused under the pile of stones which is not accessible to general public. He has further deposed that he did not specifically mention in his statement u/s161Cr.PC that the pile of stones is not accessible to general public. He has denied that no DANDA was recovered under the pile of stones near Nag Mandir or that they had planted the same on accused Anil at PS or that due to the said reason no public person had witnessed the alleged recovery memo. He has denied that no public person joined in the investigation, as they had fabricated the alleged incriminating

evidence against the accused at the instance of Inspector Sudhir, who was his senior. He had denied that accused Anil did not lead the police party comprising of him, IO/Inspector Sudhir and his staff to street no. 6 Jain Nagar, Begumpur near Nag Mandir (temple) boundary wall or that he remained at PS. He has denied that no DANDA was recovered under the heap / piles of stones lying on the north eastern side of the temple or that IO did not take the measurements of that DANDA or that he did not prepare a cloth parcel of the same or that accused Anil did not lead the police party to the place of incident situated in street no. 9 or pointed out the place of incident or that IO did not prepare pointing out memo. He has further denied that he had not gone to Jaipur and due to the said reasons he had given evasive replies with regard to the alleged proceedings conducted at Jaipur. He had further deposed that he went along with accused Anil when he was taken to SGM hospital by IO for his medical examination and no other accused of this case was present at the hospital during medical examination of accused Anil. He had further deposed that he did not come to the Court room when accused Anil was produced before Ld. MM by the IO and he remained present near the official vehicle outside the Court building. He had further deposed that only accused Anil accompanied them from hospital to the Court and no other accused person of this case accompanied them to the Court at that time. He had denied that he had signed on various memos in the present case at the instance of IO, who had fabricated the said memos to falsely implicate the accused persons in the present case. He had denied that he had not witnessed any proceedings mentioned by him in his examination in chief

and he had concocted and fabricated a story at the instance of IO to falsely implicate the accused persons. He had denied that he has deposed falsely. Thus, the testimony of this witness reveals that he has claimed that he had gone at Jaipur along with Ct. Ravi Hooda to arrest accused Anil and he has also claimed that accused Anil was apprehended by him in Rajasthan, where, he was studying in Gyan Vihar University. But, the prosecution has failed to bring on record any documentary proof to prove that this witness had gone at Jaipur. This witness has claimed that he had gone to the local police of police station Pratap Nagar, but, no DD entry regarding the same has been proved on the record. He has also deposed that four police personnels from police station Pratap Nagar (Jaipur) also accompanied in the Gyan Vihar University, but prosecution has failed to bring on record the statement of any police official of PS Pratap Nagar (jaipur) to prove this fact. Since, this witness has failed to tell details regarding the hostel of accused Anil, whether it was triple storey building or four storey building. So it is doubtful that this witness had gone to Jaipur for apprehending the accused Anil. Since, the accused Anil was residing in the hostel in Gyan Vihar University and the Ld. Counsel for accused has submitted that since the parents of the accused were detained in the police station and the accused Anil was forced to come at Delhi and since this witness has failed to bring on record any documentary proof regarding his going in the Rajasthan and apprehension of accused Anil at Rajasthan. So, in the absence of any documentary proof regarding the going of this witness in Rajasthan in Gyan Vihar University, it is probable that the accused Anil would have come at Delhi

in view of the pressure created by the police after detaining to the parents of this accused. This witness has deposed during his cross-examination that IO had asked 4-5 persons to join the investigation at Jain Nagar. But, they did not join and left the place without disclosing their identity. But the testimony of this witness is found to be contradictory to the testimony of PW-20 IO SI Sudhir Kumar, who has not stated so. This witness has deposed during his cross-examination that area of Nag Mandir is 50 sq. yards. Whereas, PW-20 has failed to tell the area of Nag Mandir. Whereas, the accused has examined Shri Laxman Singh, draftsman, who has deposed in the court that the exact area of the said Mandir is 1133 sq. yds., and he has also proved the site plan Ex.DW4/A of the said Mandir and the testimony of DW4 has gone unrebutted, uncontroverted, unchallenged and unimpeached. Thus, it is doubted that this witness had seen the said Nag Mandir. Had he seen the said Nag Mandir, he could depose about the correct area of the said Mandir. This witness has also deposed during his cross-examination that the place of alleged recovery of danda is not accessible to public. Whereas, PW20 has admitted that the said place is accessible to the public. Thus, the alleged recovery of danda Ex.P-4 is doubted. Even otherwise, the place of alleged recovery of danda is easily accessible to the public and since PW-20 during his cross-examination has admitted that public person were available at the spot but he had not requested to the public persons available, at the spot to join the investigation and he had not requested to the residents of the locality to join the investigation and thus, the arbitrary conduct of this investigating officer Inspector Sudhir Kumar shows that he deliberately did not join the

public witness in the investigation. So, the alleged recovery of danda Ex.P-4 from an open place, which was easily accessible to the public, becomes doubtful. No doubt that the danda is alleged to have been recovered in furtherance of the disclosure statement Ex.PW19/B, alleged to have been made by the accused Anil. But, as the investigating officer did not request to the people present at the spot to join the investigation deliberately. So in the absence of public witness, the recovery of alleged danda Ex.P-4, becomes doubtful, as, the same is alleged to have been recovered from the place which was easily accessible to the public at large and functioning of this IO also creates clouds of suspicion in the version of the prosecution. Thus, the testimony of this witness is also found to be contradictory to the testimony of PW20 Inspector Sudhir Kumar and also found to be suspicious, so, it does not inspire any confidence.

42. Whereas Inspector Sudhir Kumar has been examined as PW20, who has deposed that on 02.11.2014, he was posted as Inspector at PS Begumpur and on that day, further investigation of this case was taken up by him. He has further deposed that the FIR of the present case was already registered in PS Begumpur on 31.10.2014 u/s 308 IPC and subsequently, the offence u/s 307 IPC was added, the injured Mr. Vijender Meena expired due to injuries in Balaji hospital on 02.11.2014. So, the offence u/s 302/34 IPC was added in the case file. Thereafter, he took further investigation of this case. He has further deposed that he directed SI Sandeep Tushir to shift the dead body of deceased Vijender Meena to

the mortuary of SGM hospital from Balaji hospital. He has further deposed that he along with Ct. Prempal went to the mortuary SGM hospital and the dead body of Mr. Vijender Meena was got identified through his relatives and he had recorded their statements in this regard and proved the statement of Mr. Nandlal regarding identification of the dead body as Ex.PW20/A. He has further deposed that he conducted inquest proceeding and filled up the form no. 25.35, which is Ex.PW20/B bearing his signature at point A and he had prepared a request letter for conducting the postmortem examination on the body of deceased Mr. Vijender Meena, which is Ex.PW20/C. He has further deposed that he also prepared statement of brief facts, which is Ex.PW20/D. He has further deposed that after the postmortem examination the dead body of Mr. Vijender Meena was handed over to his relatives vide receipt Ex.PW1/B. He has further deposed that the doctor handed over two sealed parcels along with one sample seal of SGM mortuary, which was seized vide memo Ex.PW1/D. He has further deposed that on the same day i.e on 02.11.2014, he had received secret information that one of the wanted accused in this case was present near G3S Mall, Sector-11, Rohini and he along with his staff and informer went near G3S mall, Sector-11, Rohini. He has further deposed that there secret informer pointed out towards one person, who was present near one motorcycle and on the pointing out of secret informer, he apprehended that person, who disclosed his name as Manoj Kumar and accused Manoj Kumar was correctly identified by this witness in the Court. He has further deposed that accused Manoj disclosed that the motorcycle bearing registration no.

DL 2286 was used by him and his associate while running away from the spot after committing the offence. He has further deposed that this motorcycle was seized by him vide seizure memo, Ex.PW17/H and thereafter, he along with his staff and accused Manoj and with case property came to PS and the case property was deposited with MHC(M). He has further deposed that he had interrogated accused Manoj and he called Mr. Sanjay (eye witness) in police station who had identified accused Manoj and he arrested accused Manoj in this case vide arrest memo Ex.PW2/E and he had conducted the personal search of accused Manoj vide personal search memo Ex.PW17/E and accused Manoj confessed his crime, vide his disclosure statement Ex.PW17/F. He has further deposed that accused Manoj led the police team to the place of incident i.e gali no. 9, Jain Nagar and there, he pointed out the spot and the pointing out memo is exhibited as Ex.PW17/G. He has further deposed that in the meantime, he instructed SI Rajesh to go to Jaipur for bringing other accused namely Anil and he had briefed SI Rajesh about the case and sent him to Partap Garh university, Jaipur. Where, accused Anil was studying. Again said, the university was situated in Partap Garh, Rajasthan. He has further deposed that accused Manoj was brought to PS and put in lock up and on 03.11.2014, SI Rajesh along with accused Anil returned to Delhi from Rajasthan and he produced accused Anil before him. He had correctly identified accused Anil in the Court. He has further deposed that he had interrogated accused Anil and he called Mr. Sanjay (eye witness) in PS, who identified accused Anil. He has further deposed that he had arrested accused Anil in this case vide arrest memo

Ex.PW2/D. He has further deposed that he had conducted the personal search of accused Anil vide personal search memo Ex.PW19/A . He has further deposed that accused Anil confessed his crime vide his disclosure statement Ex.PW19/B. He has further deposed that accused Anil led the police team to the place of incident i.e street no.9, Jain Nagar and there he pointed out the crime spot and he prepared pointing out memo Ex.PW19/D. He has further deposed that accused Anil disclosed that he could get recovered the DANDA, which was used in the commission of offence, under the pile of stones near Nag Mandir situated in street no. 6 Jain Nagar. He has further deposed that then accused Anil led them near Nag Mandir, street no. 6 and he got recovered one DANDA which was lying under the pile of stones at the north east direction of Nag Mandir. He has further deposed that he took measurements of that DANDA and it was 17¾ inch in length and he prepared cloth parcel of this DANDA and sealed with the seal of SKG and seized the same vide seizure memo Ex.PW19/C. He has further deposed that then he along with his staff and accused Anil came to PS and the case property was deposited with MHC(M). He has further deposed that then both the accused namely Manoj and Anil were brought to SGM hospital in separate vehicles. He has further deposed that their medical examination was got conducted in SGM hospital and then, they were produced in the Court and both the accused persons were remanded in judicial custody and he had recorded the statements of the witnesses. He has further deposed that during investigation, he had collected PCR form and he also obtained subsequent opinion from the concerned doctor in SGM hospital regarding

two weapons of offence viz. brick and wooden stick. He has further deposed that he had produced both these weapons in sealed condition before the concerned doctor with an application for seeking opinion. He has further deposed that his application is Ex.PW20/E and after examination both the weapons, doctor gave his opinion which is Ex. PX-2, on his application itself. He has further deposed that he returned to PS and deposited both the re-sealed parcels with MHC(M). He has further deposed that he got deposited all the sealed exhibits in FSL and he had recorded the statement of the witnesses. He has further deposed that thereafter, he was transferred from PS Begumpur, so he had deposited the case file with MHC(M). He has identified three photographs Ex.PW17/I-1 to Ex.PW17/I-3 after seeing the same from judicial file and deposed that the motorcycle bearing registration no. DL11 SH 2286 is visible in the same and it is the same motorcycle which was got recovered from accused Manoj. On seeing the DANDA Ex.P-4, he said that it is the same DANDA which was recovered at the instance of accused Anil. This witness was also cross-examined by Ld.Counsel for accused and during his cross-examination, he has deposed that he was assigned investigation of the present case in the morning of 02.11.2014, but he did not remember the exact time and however, it was after the death of the deceased. He has further deposed that he sent SI Sandeep Tushir to shift the dead body of Mr. Vijender Meena to the mortuary of the SGM hospital from Balaji Action hospital. He has further deposed that he did not make any DD entry in this regard and he did not know, who accompany SI Sandeep Tushir to Balaji Action hospital for shifting the dead body of Mr.

Vijender Meena to SGM hospital and he cannot tell the time took by SI Sandeep Tushir in the shifting of the dead body of Mr. Vijender Meena to the SGM of mortuary hospital from Balaji Action hospital. He did not know about the documents prepared / formalities done by SI Sandeep Tushir in the Balaji Action hospital for shifting the dead body to the mortuary of SGM hospital. He has further deposed that at about 11.00-11.30AM of 02.11.2014, he had received information from SI Sandip Tushir that he had left the Balaji hospital for shifting the dead body to SGM mortuary and thereafter, he also started from police station for Sanjay Gandhi Memorial hospital. He has further deposed that he stayed in Sanjay Gandhi Memorial hospital for about one hour and at SGM hospital, he met father of the deceased, whose name, he did not remember and one more relative of deceased also met him. He has further deposed that he got identified the dead body of Mr. Vijender Meena from his father and other relative and it took about one hour to completed the formalities including the postmortem on the body of the deceased and after the postmortem was conducted, the dead body was handed over to the relatives of the deceased simultaneously. He has further deposed that he left the SGM hospital at about 12.30 pm and voluntarily deposed that he had received secret information at SGM hospital and left for investigation and he did not remember whether or not, he had recorded in the statement of SI Sandip Tushir that he had received secret information in the SGM hospital and he did not make any DD entry regarding the receiving of secret information by him in the SGM hospital. He has further deposed that SI Sandip Tushir, a constable, whose name, he did not remember today and

his driver, whose name, he did not remember, had accompanied him, when, he had left SGM hospital for investigation and had gone to G3S Mall. He has further deposed that they reached G3S mall within half an hour and the public persons were present near G3S mall. He has further deposed that they all were in police uniform and he had requested 3-4 public persons to join the investigation, but none joined. He has further deposed that he had not recorded their names and addresses and he did not serve any notice on those public persons, who refused to join the investigation. He has further deposed that the accused Manoj was not present on the main road outside of G3S mall and he did not know, whether or not the CCTV cameras were installed at the gate of G3S mall. He has further deposed that there were one electricity office and college in front of G3S mall and there are multi storeyed buildings on the right side and left side of G3S mall and the main road outside, the mall is about 40-50 meters wide. He has further deposed that traffic light is installed opposite the G3S mall and there is a petrol pump adjoining the G3S mall. He has denied that they had illegally detained the accused Manoj after lifting him from his house or that he was not apprehended near G3S mall. He has denied that no public person was joined in the investigation during the arrest of accused Manoj, as he was not apprehended from outside the G3S mall. He has further deposed that they remained near G3S mall for about 10-15 minutes and he seized the motorcycle from accused Manoj vide seizure memo is Ex.PW17/H, which was prepared by SI Sandip Tushir on his instructions. He has further deposed that his wireless operator, whose name, he did not remember, brought the motorcycle from

G3S mall to PS. He has denied that motorcycle was not seized at the spot or that he had directed the father of accused persons to bring motorcycle in the police station or that thereafter he illegally seized said motorcycle to create false evidence. He has further deposed that thereafter, they alongwith accused Manoj left the G3S mall and came to the PS Begumpur at about 02:00 pm. He has further deposed that he did not make any DD entry regarding their arrival at the PS with accused Manoj or that he was apprehended from outside the G3S mall. He did not inform the family of accused Manoj regarding his apprehension and after their arrival in PS Begumpur, he had interrogated accused Manoj which continued for about 3-4 hours. He has further deposed that thereafter, he was arrested in the present case and accused Manoj was taken to the spot at about 05:30 pm by him and SI Sandip Tushir, driver, wireless operator and some constable, in official gypsy. He has further deposed that accused Manoj was in the custody and held by the constable. He has further deposed that he did not remember the names of the driver, wireless operator and constable. He has further deposed that before leaving the PS for going to the spot, he had not asked any public person to join the investigation and on the way from the PS to the spot, at one place, he had requested 4-5 public persons to join the investigation, but, they had declined. He has further deposed that he had not taken any legal action against those 4-5 public persons, who had declined to join the investigation and they reached the spot within 10-15 minutes in official gypsy. He has further deposed that all the police officials were in uniform and public persons were available at the spot. He has further deposed that he had not

requested the public persons available at the spot to join the investigation. He has further deposed that he had not requested the residents of the locality to join the investigation and however, the residents of the locality and other public persons were watching the proceedings. He has further deposed that they remained at the spot for about 30-45 minutes and he did not ask the family members of accused Manoj to come to the spot to join the investigation. He has further deposed that he also did not go to the house of accused Manoj which is situated about 20-30 metres from the spot. He has further deposed that there are some vacant plots and some built houses in the vicinity of the spot of incident and the spot is on the road, which is about 15-20 feet wide. He has further deposed that it is kuccha (unmetalled) road and he had prepared pointing out memo at the spot and thereafter, they came back to PS. He has further deposed that then, accused Manoj was sent to SGM hospital for his medical examination. He has denied that he had carried out illegal investigation in the present case or that he had wrongly recorded the disclosure statement of accused Manoj or that the accused Manoj did not lead the police team to the place of incident or at any other place or that he had not pointed out the spot. He has denied that documents with regard to pointing out memo were prepared by him at PS and due to the said reason, he had not joined any public person in the investigation. He has further deposed that on 02.11.2014 besides abovesaid investigation, he had not conducted any other investigation in this case on 02.11.2014. He has further deposed that he had arrested accused Anil on 03.11.2014 at 09:00 am at PS Begumpur and he had interrogated accused Anil in the PS for about 1- 1½

hours. He has further deposed that arrest memo, personal search memo, disclosure statement of accused were prepared by SI Rajesh on his instructions. He has further deposed that SI Rajesh had himself written the above stated documents. During investigation, he had recorded the statements u/s 161 Cr.PC of the witnesses at the relevant time and the statements recorded at mortuary are hand written and the other statements were got typed on his personal laptop. He has further deposed that the typing was done by other police officials namely SI Sandip Tushir and SI Rajesh on his directions and he did not remember the name of the witnesses whose statements u/s 161 Cr.PC were recorded during the investigation qua accused Anil in the PS and voluntarily stated that one public witness namely Mr.Sanjay was also examined on the same day of arrest of accused Anil. He has further deposed that Mr. Sanjay was called in the PS by the sending beat constable and when he had come to the PS, he had recorded his statement and he had not made any DD entry regarding sending the beat constable to the house of Mr. Sanjay to call him in the PS. He did not remember the name of that beat constable whom, he had sent to the house of Mr. Sanjay at about 07:00-07:15 am. He has further deposed that Mr. Sanjay reached in the PS at about 07:45 pm and remained there for about two hours. Mr. Sanjay was not present during interrogation of accused Anil. He has further deposed that he had not requested Mr. Sanjay to join the investigation during the interrogation of accused Anil. He has denied that he had wrongly recorded the disclosure statement of accused Anil or that he had not carried out any proceedings during the abovesaid period and wrongly recorded the

statement of PW-2 Sanjay Kumar Singh. He has denied that Mr. Sanjay had not visited the PS on 03.11.2014 and he had manipulated his statement with regard to identification of accused persons. He has further deposed that at about 09:30 am, he along with SI Rajesh, one constable, wireless operator and driver, whose names he did not remember, as well as accused Anil went to the spot. He has admitted that he had not requested Mr. Sanjay to join investigation, when they were leaving the PS along with accused Anil, for the spot. He has further deposed that public persons were available on the way, as well as, at the spot and he asked public persons on the way to join the investigation, but none joined. He has further deposed that no notice was served upon those public persons who refused to join investigation. He has admitted that he did not make any request to any public person available at the spot to join the proceedings. He has further deposed that about 10-15 public persons gathered at the spot on seeing the police i.e driver, operator, SI Rajesh and himself. He has further deposed that they remained at the spot for about 30-45 minutes and he had prepared pointing out memo at the spot. He has further deposed that he had not requested above said 10-15 persons to join the investigation and he had not issued notice to abovesaid 10-15 persons. He has further deposed that thereafter, they proceeded near Nag mandir situated at the corner of street no.6 on foot from the spot and voluntarily stated that they went there for recovery of DANDA. He has further deposed that no public person met them, when, they proceeded from the spot towards Nag mandir and it took about 4-5 minutes to them in reaching at Nag mandir and they reached at about

10:15 am. He has further deposed that Public persons were passing through the place near Nag mandir and he did not know if public persons were available inside the Nag Mandir. He has further deposed that as per his knowledge there is only one gate of the Nag mandir and the gate was of normal size and was iron gate. He cannot tell the measurements of gate of Nag mandir and neither himself nor any member of his team went inside the Nag mandir to request the priest of the temple for joining the investigation. He has further deposed that there are number of houses in the vicinity of Nag mandir and no public person gathered near Nag mandir, when they reached there. He has further deposed that the public persons were passing through the road in front of Nag mandir and he had not requested those public persons to join the investigation. He has further deposed that he had also not requested the residents near the vicinity of Nag mandir to join the investigation. He has further deposed that he cannot tell the area in which the Nag mandir is constructed is of 25 sq.yards, 50 sq. yards and so on. He has further deposed that he cannot tell the height of the wall of Nag mandir and he did not know, whether there is a school in front of Nag mandir. He has further deposed that the width of the road in front of Nag mandir is of about 20-25 feet and they remained near Nag mandir for about half an hour. He has further deposed that there are premises on the right and left sides, as well as, front and rear sides of Nag mandir but he cannot tell whether or not those premises are factories or schools. He has further deposed that Nag mandir is single storeyed and the houses situated near Nag mandir are single or double storeyed and he cannot tell the number of storeys of the building, which

was opposite the Nag mandir. He did not know whether or not there was any building or construction on the other side of the road, which is in front of nag mandir. He cannot say whether or not road in front of nag mandir was concrete, metaled or unmetalled or made with bricks. He did not know whether or not there is a basement in the Nag mandir and he did not remember whether or not there are any trees in the Nag mandir and the Nag Mandir has been constructed at the level of road. He did not remember, who had written the documents, which were prayed on his instructions near Nag mandir, SI Sandip Tushir and SI Rajesh were with him and they must have prepared the documents on his instructions. He has admitted it to be correct that the alleged place of recovery of DANDA is accessible to public at large and anybody could go to said place without any hindrance. He has further deposed that they left Nag mandir at about 10:45 a.m and came to Rohini Courts, where accused Anil was produced before the Court of Ld. MM and again said, on the way, they had stopped at PS Begumpur from where accused Manoj was also taken and thereafter, with both the accused persons they had come to Rohini Courts and produced both the accused persons before the Court of Ld. MM, where they were remanded to J.C. He has denied that no DANDA was recovered under the pile of stones near Nag mandir or that they had planted the same on accused Anil at PS or that due to said reason no public person was made to join at the time of alleged recovery. He has denied that no public persons was joined in the investigation during the pointed out proceedings of accused Manoj and Anil, as no such proceedings had happened and they had fabricated the documents /

memos in this regard at PS. He has denied that he had fabricated the seizure memo of alleged DANDA at PS or due to the said reason only police officials were made witnesses in the alleged proceedings. He has denied that neither Manoj nor Anil pointed out the place of occurrence or that they had fabricated documents to falsely implicate them in the present case. He has denied that accused Anil did not lead the police party to the Nag mandir or that no DANDA was recovered at his instance. He has denied that he had given evasive replies with regard to vicinity near Nag mandir and place of occurrence as he had not visited said places on 02.11.2014 or 03.11.2014 or on any other day. He has further deposed that he was transferred from PS Begumpur in December,2014 and so he had handed over the case file to MHC(R). He has further deposed that he got deposited the exhibits in FSL in the month of November,2014 and he did not remember the number of witnesses, whose statement were recorded by him. He has further deposed that he had recorded the statement of Mr. Sanjay and police witnesses and also recorded the statements of some more persons, whose names he did not remember. He has denied that he had wrongly and belatedly recorded the statements of witnesses to falsely implicate the accused persons in the present case and he had not collected any medical documents related to accused Manoj and his family members from any hospital regarding the incident dated 29.10.2014. He has further deposed that on 03.11.2014 SI Rajesh had brought the accused Anil from Jaipur from his college and he cannot tell by which mode of transport SI Rajesh went to Jaipur and he had given instructions to SI Rajesh on 02.11.2014 after noon hours for going to

Jaipur. He has further deposed that he did not make any DD entry regarding giving instructions to SI Rajesh for going to Jaipur and he cannot tell the exact time when such instructions were given by him to SI Rajesh on 02.11.2014.He has further deposed that even approximately, he cannot tell whether it was between 02:00 – 03:00 pm or between 3.00-4.00 pm. He has denied that no DD entry was made by SI Rajesh prior to leaving for Jaipur. SI Rajesh was accompanied by some other police officials, but, he did not know their names and he, himself had not made any departure entry of those police officials. He has denied that no measurements of DANDA was done at the spot or no DANDA was recovered at the instance of accused Anil or seized near Nag mandir or that he had planted the same on accused Anil at PS. He has denied that he has fabricated various documents, memos and statement of witnesses to falsely implicate the accused persons. He has denied that he had not interrogated accused Manoj on 02.11.2014 or that had fabricated his disclosure statement or that had not called Mr. Sanjay, eye witness to the PS. He has denied that Mr. Sanjay had not identified the accused Manoj on 02.11.2014 at PS or that he had wrongly recorded his statement on record. He has denied that he had not interrogated accused Anil on 03.11.2014 or that had fabricated his disclosure statement. He has denied that Mr. Sanjay, eye witness had not come to PS on 03.11.2014 or that had not identified accused Anil. He has denied that he had wrongly recorded the statement of Mr. Sanjay in order to create incriminating evidence against both the accused. He has denied that he had carried out illegal investigation and had planted false evidence on the accused

persons to falsely implicate them in the present case. He has denied that he had deposed falsely. This witness has deposed that accused Manoj was apprehended on receiving of the secret information and further deposed that he had seized the motorcycle vide seizure memo Ex.PW17/H, which was allegedly used by the accused while running away from the spot. The testimony of PW2 reveals that he has alleged in the court that the accused had fled away on the Pulsar motorcycle after commission of the crime and the same was driven by accused Manoj and the accused Anil was sitting thereon as pillion rider. Whereas, the perusal of seizure memo Ex.PW17/H reveals that the motorcycle seized vide this seizure memo is of make HONDA Twister and not Pulsar, as alleged by PW2 Sanjay Kumar Singh. Since the PW2 Sanjay Singh, who is an alleged eye witness has deposed in the court that he had never told the names of accused persons to the police and also to the PCR and if the MLC Ex.PW14/A of deceased is looked into, it reveals the name of one Ms. Neha Sharma, who is allegedly working in CAT Ambulance had taken Vijender Meena to the SGM hospital. Since, the MLC Ex.PW14/A of deceased Vijender Meena reveals that he was conscious and oriented on 31.10.2014 at 7.10PM, when, he was admitted in the Sanjay Gandhi Memorial hospital and PW-17 SI Sandeep Tushir has deposed that after receiving the information, he went to the spot and he was told that the injured was taken to the hospital. But, PW-17 SI Sandeep Tushir had failed to tell that who had told him that injured was taken to the hospital. As, it is mentioned in the MLC of injured Vijender Meena that he was conscious and oriented. So, PW17 SI Sandeep Tushir could go to the

Sanjay Gandhi Memorial hospital immediately and could inquire from Vijender Meena or Ms. Neha Sharma of CAT Ambulance Staff who had taken to Vijender Meena in the Sanjay Gandhi Memorial hospital that too in conscious and oriented condition, as to who had assaulted to Vijender Meena. But, the PW17 SI Sandeep Tushir did not bother to arrive in the Sanjay Gandhi Memorial hospital immediately. Had he arrived in the Sanjay Gandhi Memorial hospital immediately, he could enquire from the Vijender Meena or from Ms. Neha Sharma of CAT Ambulance Staff or from the Dr. Jatin (who had already left the services of the Sanjay Gandhi Memorial hospital after the occurrence) who had medico legally examined to Vijender Meena, on dated 31.10.2014 at 7.10 PM, vide MLC Ex.PW14/A, as to who had told to that doctor that Vijender Meena was assaulted. But, SI Sandeep Tushir (PW17) did not enqiure from Ms. Neha Sharma, of CAT Ambulance Staff and Dr. Jatin, who had medico legally examined to the Vijender Meena in Sanjay Gandhi Memorial hospital. Since, the PCR form Ex.PW4/A reveals the phone number of the caller Sanjay Kumar Singh. But, PW17 SI Sandeep Tushir did not bother to contact with Sanjay Kumar Singh (PW2) immediately and PW17 SI Sandeep Tushir has deposed during his cross-examination that for the first time, he had arrived at the spot on 31.10.2014 at 11.45PM. Thus, this court finds that SI Sandeep Tushir remained negligent and his approach was lackadaisical. But, after the demise of Vijender Meena, when the investigation was assigned to this PW-20 Inspector Sudhir, he also did not bother to examine Neha Sharma who is alleged to have taken Vijender Meena in injured condition in the Sanjay Gandhi Memorial hospital. This

PW20 also did not bother to record the statement of Dr. Jatin, who has written on the MLC Ex.PW14/A, “history of assault”. Had this investigating officer written the statement of Neha Sharma or Dr. Jatin, they could inform him as to who had told to Dr. Jatin that it was the case of assault and as to on what basis the said doctor incorporated in the MLC of Vijender Meena that it was the case of assault. Similarly, this PW20 IO Inspector Sudhir Kumar also did not bother to examine any member from the PCR Van who are alleged to have arrived at the spot on receiving of call of 100 number. Had this investigating officer examined the members of PCR Van who are alleged to have arrived at the spot soon after receiving of the 100 number call, it could be cleared as to who had taken the Vijender Meena to the hospital. But, this investigating officer also appears to be a negligent officer who did not bother to investigate the present matter in better manner. This witness has deposed in the court that he had sent to SI Rajesh at Pratap Garh University, Jaipur, but no cogent/ written evidence has been brought on the record to prove this fact that SI Rajesh had gone at Jaipur for bringing accused Anil at Delhi. This witness has also deposed that he did not remember about the documents prepared by the SI Sandeep Tushir in the Balaji Action hospital for shifting the dead body of the deceased in the Sanjay Gandhi Memorial hospital. He has denied that he had illegally detained accused Manoj by lifting him from his house. He has admitted that he did not inform the family member of accused Manoj regarding his apprehension. He has admitted that public persons were available at the spot but he did not request to the public persons to join the investigation. He has also admitted that he had not

requested to the residents of locality to join the investigation. This witness has also deposed during his cross-examination that he had arrested to the accused Anil on 03.11.2014 at 9.00AM at police station Begumpur and he had interrogated to this accused for 1- 1½ hours and arrest memo, personal search memo and disclosure statement of the accused were prepared by SI Rajesh. This witness has deposed that he did not make any request to any public persons to join the proceedings and he claims that the disclosure statement was made by accused Anil and in furtherance thereof, the danda Ex.P-4 which is alleged to have been used in the commission of crime, was recovered under the heap of stones near the Nag Mandir. But he failed to tell the size of the gate of Nag Mandir. He has failed to tell the area of said Nag Mandir. Whereas, PW17 has stated that the area of Nag Mandir was 50 sq. yds. Thus, the testimonies of PW17 and PW20 are inconsistent to each other. Whereas, the accused has examined Shri Laxman Singh (DW4), draftsman, who has deposed in the court that the exact area of the said Mandir is 1133 sq. yds., and he has also proved the site plan Ex.DW4/A of the said Mandir and the testimony of DW4 has gone unrebutted, uncontroverted, unchallenged and unimpeached. Thus, it is doubted that this witness had ever gone near the the said Nag Mandir, where danda Ex.P-4 is alleged to have been recovered. Had he seen the said place, he could depose about the correct area of the said Nag Mandir. This witness has admitted that he did not request to any public person to join the investigation at the time of alleged recovery of the danda, so, the possibility of planting of danda on accused Anil cannot be ruled out. This witness has admitted that the

alleged place of recovery of danda is accessible to the public at large and anybody could go to the said place without any hindrance. Since, the place of alleged recovery of danda is an open place and it was easily accessible to the public at large. So, the recovery of danda Ex.P-4 on the basis of alleged disclosure statement of accused Anil is doubted. Thus, the testimony of this witness is not only found to be contradictory to the testimony of PW17 SI Sandeep Tushir. But his way of investigation also appears to be arbitrary as despite of availability of public witnesses, he did not join them in the investigation and the investigation of this IO is also found to be faulty and doubts are created with the way, this Investigating Officer had investigated the present case. So, his testimony is not reliable.

43**.** Whereas, Dr. Gurdeep Singh who has been examined as DW1, has deposed that he has brought MLC of Guddu bearing no. 20917, MLC of Chander Shekhar bearing no. 20918 and MLC of Manoj bearing no. 21011 same is Ex.DW1/A to C. He has further deposed that Chander Shekhar and Guddu were examined by Dr. Danish, Junior Resident and the MLCs and he is familiar with the signature of Dr. Danish as he worked along with him and seen him writing and signing. He has further deposed that the injured Manoj was examined by him and at the time when he examined injured Manoj, he was having tenderness deformity left shoulder, therefore he had referred him to Orthopedics Dr. Mannan. Dr. Mannan after examining Manoj had opined that nature of injuries received by injured Manoj on his left shoulder are grevious in nature. He has further deposed that the above said opinion has been mentioned at point B of the

MLC Ex.DW1/C and he identify the signatures of Dr. Mannan as he had also worked with him and seen him writing and signing. He has further deposed that at this stage, the witness has been shown discharge summary dated 30.10.2014 issued by Ortho Department, Sanjay Gandhi Memorial Hospital, Mangol Puri, Delhi and same is Mark A and he can not identify the signatures on the discharge summary Mark A as the same pertains to doctors of Ortho Department. This witness was cross examined by ld APP for state, during his cross-examination he has deposed that he can not give any opinion whether the patient Manoj could cause injury with the brick to any person even in the condition as mentioned in his MLC. He has admitted to be correct that he does not know whether this patient Manoj was left handed or right handed or in the Discharge Summary mark A the time of discharge of patient Manoj is not mentioned.

44. Whereas, Dr. Rajesh Dalal, CMO has been examined as DW2, who has deposed that he has brought MLC bearing no. 21010 dated 29.10.2014 of Ms. Reeta wife of Mr. Chander Shekhar, same is Ex.DW2/A and the patient was examined by Dr. Nitin, Junior Resident and bears his signatures at point A. He has further deposed that he identify the signatures of Dr. Nitin as he had worked under his supervision and he has seen him writing and signing.

45. Whereas, Dr. Madhur Mahna, Sr. Resident has been examined as DW-3, who has deposed that he has seen MLC of accused Manoj

Ex.DW1/C and the endorsement at point B is in the handwriting of Dr. Manan Ahmad, who had left the services of the Hospital. He has further deposed that he has worked with said doctor and seen him handwriting and signing, so, he identify his handwriting on MLC of patient Manoj is Ex.DW1/C. He has further deposed that he also identify his signatures on MLC at point C and as per discharge summary, injured Manoj was diagnosed with dislocation of left shoulder. He has further deposed that dislocation was reduced under anesthesia and the copy of the discharge summary is Ex.DW3/A. He has further deposed that the injured Manoj due to dislocation of his left shoulder could not drive motorcycle on next day of his treatment as stated above. He has further deposed that he is clarifying that prior to the treatment given to the patient, he could not drive motorcycle, but after treatment, he can drive the motorcycle. He has further deposed that in discharge summary of the injured Manoj, the rest was not advised, but generally after reducing the shoulder, they advise rest for two-three weeks. He has further deposed that they also tie bandage on shoulder of every patient after reduction of his shoulder. He has further deposed that in the case of injured Manoj, his shoulder would have been tied, but it is not mentioned in the MLC of this patient or his discharge summary and generally it is mentioned in discharge summary of the patient. He has further deposed that if the shoulder of the patient is tied, then, he cannot ride motorcycle and they advise patient to tie the bandage for two/three weeks. This witness was cross examined by Ld. Additional Public Prosecutor for State. During his cross-examination he has admitted to be correct that after such treatment of this patient he

could pick a brick and could cause brick blow on a person. He has denied that since in the discharge summary of the patient the bandage was not applied to this patient, so it can be inferred that bandage was not applied to this patient. He has further deposed that after seen the document Ex.DW1/C & Ex.DW3/A, he cannot tell as to whether this patient was left or right handed . He has admitted to be correct that this patient Manoj could drive the motorcycle after getting the treatment.

46. Whereas, Sh. Laxman Singh (private draftsman) has been examined as DW 4, who has deposed that he is draftsman since 1998 and practicing at Tis Hazari Court and he had a diploma of Draftsman. He has further deposed that till date he had appeared as a witness about 100/150 cases in Delhi Courts and he had also drafted about 25000-30000 site plans/maps for his clients for filing in various courts. He has further deposed that on 23.07.2017, he had gone to Nag Mandir, Jain Nagar Colony, Karala, Delhi. There he had measured the dimensions of the Nag Mandir as well as the dimensions of nearby roads and also gone inside the Temple. He has further deposed that the site plan of the Nag Mandir and its vicinity is exhibited as DW-4/A and as per site plan and measurements carried out by him at the spot, the exact area of Mandir is 1133 Sq. Yards. Three sides of this Mandir are roads/Gali, which are measuring 16 feet of West Side, 20 feet on the south and 26 feet on the East side. On the north side, there is others property. He has seen the 08(Eight) photographs Ex.DW4/B(colly.) of the Mandir and showing three sides of the Nag Mandir. He has further deposed that as per condition of

the Mandir and its walls, the Mandir must be constructed somewhere about 15-20 years ago from today. He had prepared the site plan Ex.DW1/A exactly the positions and dimensions noted by him at the time of the inspection of said Mandir. He had not carried out any addition or alteration in his site plan and it is true replica of the dimensions and measurements of the Nag Mandir. The negative of the site plan prepared by him Ex. DW1/C. This witness was cross examined by Ld. Additional Public Prosecutor for State during his cross-examination he has deposed that the basic Qualification for doing diploma for post of Draftsman is 12th class and diploma of Draftsman is of two years. He had measured and prepared the site plan of said Nag Mandir at the instance of Mr. Chander Shekhar, who availed his services, who resides at Jain Nagar Colony. He does not know whether Mr. Chander Shekhar is the father of both the accused and he does not know both the accused. He has not pasted any board of Draftsman on the door of his house. He has further deposed that he was appointed as Local Commissioner thrice by various courts. He has admitted to be correct that 08 photographs Ex.DW4/B were not taken by him. He does not know as to who had snapped these photographs. He has denied that the 08 photographs Ex.DW4/B are not of Nag Mandir, Jain Nagar Colony, Karala, Delhi and voluntarily stated that he know that these photographs are of Nag Mandir situated in Jain Nagar Colony, Karala, Delhi. He has further deposed that the basic Qualification for doing diploma for post of Draftsman is 12th class and diploma of Draftsman is of two years. He has further deposed that he had measured and prepared the site plan of said Nag Mandir at the instance of

Mr. Chander Shekhar, who availed his services, who resides at Jain Nagar Colony. He has further deposed that he does not know whether Mr. Chander Shekhar is the father of both the accused. He did not know both the accused and he has not pasted any board of Draftsman on the door of his house and he was appointed as Local Commissioner thrice by various courts. He has admitted to be correct that the 08 photographs Ex.DW4/B were not taken by him. He has further deposed that he did not know as to who had snapped these photographs. He has denied that the 08 photographs Ex.DW4/B are not of Nag Mandir, Jain Nagar Colony, Karala, Delhi. He has voluntarily stated that he knew that these photographs are of Nag Mandir situated in Jain Nagar Colony, Karala, Delhi.

47. **Since their Lordship of the Hon'ble High Court of Delhi in case State of NCT of Delhi Vs. Taj Mohd. @ Taju and Anr. in Criminal L.P. No.8/12 MANU/DE/3448/2013, was pleased to observe that**

"*In our view, the circumstances of the recovery of the razor, the scooter and the bloodstains on the shirt of the accused -Taj Mohd. also do not inspire confidence and the reasoning given by the Trial Court in paragraph 31 to 33 of the judgment is free from any perversity or illegality. The said paragraphs are reproduced for ready reference as under:-"*

"Next are the circumstances of the recovery of the razor, the scooter and the bloodstained shirt of the accused Taj Mohd. The said recoveries were effected pursuant to the disclosure statement. The

recording of the disclosure statement in the manner as deposed in the examination in chief by PW 14 and PW 15 and PW 21 becomes doubtful in view of the fact that there is a material contradiction with regard to recording of th disclosure statement in the respective deposition of said three witnesses. For PW 14, the disclosure statement was recorded by the IO i.e. PW21 while standing on the bonnet of the vehicle but for PW15, the disclosure statement of the accused was recorded by him at the dictation of the IO and same was recorded while sitting at the Mangol Puri Bus Terminal whereas for PW 21, it was not in his memory as to whether the disclosure statement was recorded by him or at his dictation by some other staff member."

"The recovery of the shaving razor (ustra) is admittedly from an open place accessible to all and no public witness was joined in the investigation at the time of recovery of the said razor despite their admittedly availability by PW 14, PW15 and PW 21. For PW 15, it was recovered from kuccha ground, 20 to 25 Sq. yards away from the main road which was lying in a pit and for PW 21, there was no pit at the place from where the said having razor was recovered. NO site plan of the recovery of the shaving razor was prepared. The said razor was allegedly bloodstained but the blood detected on the same could not be linked with the blood group of the deceased which was of "B" group as per FSL result Ex. PW 17/B."

"The recovery of the alleged bloodstained shirt of the accused Taj Mohd. which he was wearing at the time of the incident was again deposed with material contradiction by said three witnesses. For PW 14,

the shirt was recovered by the IO when they started from the house of the accused and the same was seized at the time of reaching the PS. For PW 15, the said shirt of the accused was recovered from the house of the accused whereas for PW 21 the shirt of the accused was seized reaching the PS and its seizure memo was also prepared at the PS and he did not remember if other shirt was arranged for the accused or not. Further joit to the deposition with regard to said shirt having bloodstains is given by the FSL result Ex. PW 17/B which mentioned that no blood was detected on the said shirt. The recovery of the scooter is not very material because it is a thing having specific registration number and the accused has admitted the same to be in his name but it could not be linked otherwise by any other evidence on the record, as discussed above."

"It is a cardinal principle of criminal jurisprudence that every accused person is innocent unless proved guilty and this presumption of innocence gets strengthened when such an accused is acquitted by the Trial Court after passing a well-reasoned order. Finding no illegality or perversity in the impugned judgment dated 7th August 2010, the present petition deserves to be rejected being devoid of any merit. Therefore, the same stands dismissed. It is ordered accordingly."

48. Since in the case in hand, the prosecution has alleged that the danda Ex.P4 has been recovered in furtherance of disclosure statement of accused Anil Ex.PW19/B and since on dated 03.11.2014, at the time of recording of the alleged disclosure statement of accused Anil, he was in the custody of police and since this disclosure statement Ex.PW19/B is

alleged to have been recorded by IO/Inspector Sudhir Kumar (PW-20) and during his cross-examination, this PW-20 has admitted that the place of alleged recovery of the danda Ex.P4 was easily accessible to the public and since at the time of alleged recovery of alleged danda, no public witness was made to join by this Investigating Officer. Since, PW-20 has failed to tell the area of the Nag Mandir. Whereas, PW17 has disclosed the area of Nag Mandir as 50 sq. yards. Whereas, accused have examined DW4 namely Shri Laxman Singh, draftsman who from his unrebutted and unimpeached testimony has successfully proved on the record that the area of said mandir is 1133 sq. yards. So, the testimony of PW17 and PW20 become doubtful and presence of these witnesses at the time and place of alleged recovery of Danda is doubtful and since the place of alleged recovery of said danda was accessible to the public at large. So, the alleged recovery of danda also becomes suspicious.

49. Since their Lordship of High Court of Delhi in case Dalip @ Pappu Vs. State Crl. MANU/DE/3149/2012 was pleased to observe that

"*The prosecution relied upon the circumstance of recovery of the country made pistol used in the commission of the offence pursuant to the disclosure statement of public witness was joined at the time of the alleged recovery. Moreover, the alleged recovery took place from an open place accessible to the public at large. The place of recovery is alleged to be at a distance of 100 meters from the place of occurrence. It is highly improbable that the accused would conceal the country made pistol under*

the stones near a tree at a distance of 100 meters from the place of occurrence. No such recovery was effected by the police prior to the arrest of the accused. The manner in which the accused was arrested is suspicious. The investigating officer was not aware about the name and description of the accused and only up on the features given by the secret informer, he is alleged to have been arrested during the night intervening 13/14.06.2003. The weapon of offence allegedly recovered pursuant to his disclosure statement was never shown to the material prosecution witnesses to investigating officer did not investigate from where the accused had procured the weapon."

50. Their lordship of Supreme Court of India in case Sattatiya @ Satish Rajanna Kartalla Vs. State of Maharashtra MANU/DE/3149/2012 was pleased to observe that

"The next thing which is to be seen is whether the evidence relating to the recovery of clothes of the appellant and the half blade, allegedly used for commission of crime, is credible and could be relied on for proving the charge of culpable homicide against the appellant. In this context, it is important to note that the prosecution did not produce any document containing the recording of statement allegedly made by the appellant expressing his desire to facilitate recovery of the clothes and half blade. The prosecution case that the accused volunteered to give information and took the police for recovery of the clothes, half blade and purchase of handkerchief is highly suspect. It has not been explained as to why the appellant gave information in piecemeal on three dates i.e.

03.10.1994, 05.10.1994 and 06.10.1994 . Room No. 45 of 'Ganesh Bhuvan'from which the clothes are said to have been recovered was found to be unlocked premises which could be accessed by any one. The prosecution could not explain a to how the room allegedly belonging to the appellant could be without any lock. The absence of any habitation in the room also cast serious doubt on the genuineness and bonafides of recovery of clothes. The recovery of half blade from the road side beneath the wooden board in front of 'Ganesh Bhuvan' s also not convincing. Undisputely, the place from which half blade is said to have been recovered is an open place and everybody had access to the site from where the blade is said to have been recovered. It is, therefore, difficult to believe the prosecution theory regarding recovery of the half blade. The credibility of the evidence relating to recovery is substantially dented by the fact that even though as per the Chemical Examiner's Report the blood stains found on the shirt, pant and half blade were those of human blood, the same could not be linked with the blood of the deceased. Unfortunately, the learned Additional Sessions Judge and High Court overlooked this serious lacuna in the prosecution story and concluded that the presence of human blood stains on the cloths of the accused and half blade were sufficient to link him with the murder."

51. Since, PW-2 Sanjay Kumar Singh has alleged that accused Anil hit danda on the head of Vijender Kumar Meena and accused Manoj gave 20-25 brick blows on the head of the Vijender Kumar Meena at the time of alleged occurrence. PW11 Dayanand Verma also claimed to be

another eye witness of the occurrence. PW-11 has claimed that he had heard the noise while he was sitting in his house and came out of his house and saw that the accused Anil had given danda blow on the head of the deceased and he caught the hands of the deceased and accused Manoj had given number of brick blows on the rear portion of the head of the deceased. Whereas, Dr. Vipin Dabas (PW14) has proved the MLC Ex.PW14/A of the deceased Vijender Kumar Meena which reveals only injury ie lacerated wound on the rear portion of the head and similarly, Dr. Anil Kumar has proved the death summary Ex.PW15/A of the deceased, who has also deposed that the cause of death of the deceased was severe head injury and similarly the postmortem report Ex.PX1 reveals that there were only three external injuries: 1. stitched wound 4cm long over posterior end of mid parietal scalp area. 2. Abrasion brown scalped 3x1cm over mid nasal septum. 3. Abrasion brown scalped 9 x 2 cm over mid of lumbosacral area.

52. Thus, the testimonies of these two alleged eye witnesses is not corroborated with the medical evidence. As, the postmortem report Ex.PX1 reveals only one external injury on the parietal scalp area. Had the accused Anil given one danda blow and Manoj 20-25 brick blows and danda blows on the head of deceased, more injuries could be found on the head of the deceased.

52. Since their Lordship of the Hon'ble High Court of Delhi in case Smt. Bimla Devi Vs. State of Haryana in Criminal Appeal

No.1026/2002, MANU/SC/0306/2003 was pleased to observe that

"*If we believe the oral evidence, then it shows according to the two eye-witnesses the appellant assaulted the deceased on the left car lobe with the blunt side of the Bankri. If we compare this oral evidence with medical evidence, we find there is no injury on the left ear which could be attributed to a blunt weapon. On the contrary, there is an incised wound on the left ear lobe. Therefore, the medical evidence and the oral evidence do not tally."*

"Apart from the above discrepancy in the oral and medical evidence, we also notice from the inquest proceedings the use of a Bankri has not been mentioned while other weapons like lathi, Jaily, and Kalhari have been mentioned. Then, it is to be noticed that even thought the Bankri was recovered within four days after the incident and sent for chemical examination the report of the Chemical Examiner shows the absence of any blood stain. This coupled with the fact that even in the FIR PW-1 the eye witness has not attributed any overt act to the appellant further creates very serious doubt in the case of the prosecution as to the involvement of the appellant."

53. Their Lordship of Supreme Court of India in case State of Gujarat Vs. Patel Mohan Mulji and another MANU/SC/0069/1994 was pleased to observe.

"The whole case rests only on the evidence of PWs 5 and 8. PW5 is none other than the wife of the deceased and she is an injured witness. No doubt the occurrence had taken place in the day light. The

accused are none other than the brothers and sister of the deceased. In spite of the close relationship and in spite of the fact that the occurrence had taken place in the broad day light as rightly pointed out by the High Court, the entire case of the prosecution suffers from many infirmities which compel this Court to affirm the judgment of the High Court. P.W. 5 states that she was assaulted by the second respondent with a sharp edged pointed weapon on her leg but we do not find any corresponding injury on her person. P.W. 5 has not mentioned the names of the assailants either to P.W. 3 or the Police or to any other person till 4-30 p.m. surprisingly the inquest took place at about 2-15p.m. Even before the registration of the case. In the inquest report also none of the names of the assailants find a place. The first information was recorded only at about 5 p.m. which is by a delay of nearly nine hours. It was under these circumstances the High Court was not inclined to place much reliance on the testimony of P.W. 5. Now we come to the evidence of P.W.8. The name of P.W.8 does not find a place in Ex. 25. P.W. 8 was not examined by the police till the next day. On both the grounds the High Court rejected the testimony of P.W.8. We are in full agreement with the reasons given by the High Court for discarding the testimony of P.W.8. It may be also pointed out here that the medical evidence as rightly held by the High Court is irreconcilably in conflict with the oral evidence given by PWs. 5 and 8. Thus, it is seen that there are many infirmities surrounding the prosecution case. Under these circumstances, we do not like to interfere with the order of acquittal passed by the High Court and in fact the judgment of the High Court does not suffer from any manifest illegality or

perversity. In the result, the appeal is dismissed. Bail bonds are discharged."

54. Since their Lordship of the Hon'ble High Court of Delhi in case Bhikhwa @ Prakash Vs. State (NCT of Delhi) in Criminal Appeal No.274/1998, MANU/DE/4064/2006 was pleased to observe that

"His statement was recorded by the police on the next day. To the contrary as per the statement of ASI Gautam (PW12), IO of the case, he had reached the spot at 8.00/8.15AM and had met PW Kapil. According to Ram Parkash (PW-3) when he reached the spot, Kapil was not there but Biltu had accompanied him to the spot. According to ASI Gautam, Biltu had not accompanied him to the spot from the hospital. If Kapil was present at the spot, when ASI Gautam visited the place of occurrence from hospital, it is not explained as to why he did not record the statement of Kapil at the spot and why his statement was recorded on the next day in the Police Station. Therefore, in these circumstances we find force in the submission of learned counsel for the appellant that presence of Kapil at the spot at the time of alleged incident has become doubtful."

"Kapil (PW-2) in his cross-examination and Ram Prakash (PW-3) and Biltu (PW-4) have stated that accused had gagged the mouth of Krishna while sitting on her right side and was giving blows with a brick from his right hand on her face and forehead. According to Biltu and Ram Parkash, Krishna had started bleeding from her injuries. Dr. Rani Jain (PW-6) saw blood oozing out from the nose, ear and mouth of Krishna

when she examined her on 10.03.1933 at about 6.00AM. She did not see mark of any external injuries, as per her report Ex.PW6/A. This belies the statement of PW Ram Parkash and Biltu that Krishna was bleeding from her injury, which she received on her face and forehead due to brick blows given by appellant. Even the postmortem report does not support the oral testimony of these two witnesses."

"Obviously, we find complete contradiction in the medical evidence and the statements of prosecution witnesses Kapil, Ram Parkash and Biltu as to the nature of injuries. The injuries found on the person of the deceased Krishna could not have been caused by brick blows given on the face and forehead while she was sleeping. She would have received injuries on her face and forehead instead of on the base of her skull. Medico evidence is generally of corroborative nature unless it completely rules out the possibilities of the injuries having been inflicted in the manner in which as is deposed by the witnesses. In Solanki Chimanbhai Ukabhai V. State of Gujarat MANU/SC/0150/1983: AIR 1983SC 484, it was observed as under:"

"Ordinarily, the value of medical evidence is only corroborative. It proves that the injuries could have been caused in the manner alleged and nothing more. The use which the defence can make of the medical evidence is to prove that the injuries could not possibly have been caused in the manner alleged and thereby discredit the eye witnesses. Unless, however, the medical evidence in its turn goes so far that it completely rules out all possibilities whatsoever of injuries: taking place in the manner alleged by eye witnesses, the testimony of the eye witnesses cannot be

thrown out on the ground of alleged inconsistency between it and the medical evidence.

55. In the light of above said judgments, the testimonies of the PW2 and PW11 who claims, to be eye witnesses become suspicious, as their testimonies are not supported by the medical evidence and since it is proved on the record that on 29.10.2014, a quarrel had taken place between the family of PW11 and his other family members with the family members of the accused and since the testimonies of PW2, PW11 and PW16 are found to be improved, embellished and contradictory, so, the same are also held to be suspicious. So, the possibility of false implication of the accused in order to take revenge by the PW11 cannot be ruled out. As, PW-11 has admitted that he used to meet with PW2 regularly and from such testimony,it is proved on the record that there were cordial relations between PW11 and PW2. Whereas, there were strained relations between the family of the accused and PW-11 and his other family members and on dated 29.10.2014, a quarrel had held wherein, the accused Manoj, his father Chander shekhar, his brother Guddu and his mother Rita had suffered injuries and they were medically examined in Sanjay Gandhi Memorial hospital and the MLC of accused Manoj Ex.DW1/C has been proved by DW-1 Dr.Gurdeep Singh and discharge summary Ex.DW3/A of accused Manoj has been proved on Record by DW-3 Dr. Madhur Mahana. Whereas MLC of Guddu Ex.DW1/A, brother of accused Manoj and MLC of his father Chandershekhar Ex.DW1/B has been proved on record by DW-1 Dr. Gurdeep Singh and MLC of his

mother Rita Ex.DW2/A has been proved by DW-2 Dr.Rajesh Dalal. Since this occurrence is alleged to have taken place on 31.10.2014 at about 6.00pm and if the PCR form Ex.PW4/A is looked into then, the police had received the information on dated 31.10.2014 at 6.13PM and the DD no. 59B was lodged at 6:13 PM on 31.10.2014 whereas, the FIR has been registered on dated 31.10.2014 at 11:20 PM and the accused are not named in the PCR form Ex.PW4/A, DD-59B Ex.PW13/C FIR Ex.PW6/A. The first IO SI Sandeep Tushir who has been examined as PW-17 has admitted in his cross-examination that he had arrived at the spot for the first time at 11:45 PM and he met to PW-2 Sanjay kumar Singh, but, he did not record his statement and called him in the police station, where, his statement Ex.PW2/DA was recorded on 01.11.2014. The perusal of the statement Ex.PW2/DA reveals that it was recorded on dated 01.11.2014. Whereas, PW2 during his cross-examination has deposed in the court that he went to police station for the first time in this case on 02.11.2014. Whereas, statement of another alleged eye witness namely Dayanand Verma who has been examined as PW11 is alleged to have recorded on dated 04.11.2014 and the statement of Prashant Verma who has been examined as PW16 is alleged to have recorded by the IO on dated 01.11.2014. The delay in recording of the statements of these witnesses of the prosecution has not been explained. Since the delay in recording of the statements of these material witnesses of the prosecution have not been explained. So, the possibility of planting of these witnesses cannot be ruled out. Since, the testimonies of these witnesses of the prosecution are found to be improved, embellished, contradictory and

inconsistent to each other, so the testimonies of these witnesses become doubtful. Since the PW2 and PW11 have deposed during their cross-examination that their clothes were also stained with blood when they picked the Vijender Meena in injured condition, but, the IO has not seized the alleged blood stained clothes of PW2 and PW11.

56. No doubt that as per the report of the FSL Ex.PW12/A, blood was detected on the piece of brick and another report of FSL Ex.PW12/B reveals that blood of the human on the piece of brick was found. But, the blood group of human on the piece of brick could not be ascertained. As the column of grouping of this report reveals (no reaction) and in view of the presence of human blood on the piece of brick, the conviction of the accused cannot be recorded, as it is not proved on record that what was the blood group of the deceased. No doubt that human blood group 'O' is detected on the alleged shirt and baniyan of deceased. Since, it is not proved on record as to what was the group of blood of the deceased, so in view of the mere presence of the human blood on the piece of brick, shirt and baniyan, the testimony of this PW12 is of not much relevance and the accused cannot be convicted on the basis of such reports.

57. **Since their Lordship of the Hon'ble Supreme Court of India in case Debapriya Pal Vs. State of West Bengal, Criminal Appeal 623/2013 was pleased to observe that**

"*What is material is the reliance on these blood stained clothes for the culpability of the appellant herein. As per the prosecution, the*

blood group on these blood stained clothes matched with the blood on the bed sheet on which the body of one of the deceased person is found. The record reveals that though blood of both the deceased persons was drawn and sent for examination, it is not known as to what was the report thereupon and what was the blood group of the deceased persons. No such blood report has been produced. So much so, blood group of the accused persons was also not ascertained. Even if we presume that the blood on the bed sheet was that of the deceased, the possibility cannot be ruled out that the same blood group as of the accused appellant thereof. Therefore, mere matching of the blood group on the blood stained clothes, which was even on the bed sheet, would not lead to the conclusion that it is the appellant who had committed the crime."

58. Since their Lordship in the Hon'ble Supreme Court of India in case State of A.P. Vs. V.V. Panduranga Rao, Criminal Appeal 815/2003 was pleased to observe that

"Interestingly, there was no effort made to match the blood group of the deceased with the blood found on the M.O.1. If the aforesaid aspects are considered, the inevitable conclusion is that the appeal is without merit, deserves dismissal which we direct."

59. Since their Lordship of the Hon'ble Supreme Court of India in case Govindaraju @ Govinda Vs. State of Sriramapuram P.S. and Anr., Criminal Appeal 984/2007 was pleased to observe that

"Ex.Mo1 was the knife recovered from Govindaraju while Mo2

and Mo3 were the knife and the blood-stained shirt recovered from the accused, Goverdhan. Ex.Mo1, the weapon of offence, did not contain any blood stain. Ex.Mo2, the knife that was recovered from the conservancy at the behest of the accused, Goverdhan was blood-stained. Ex.P15, the report of FSL, shows that item No.7 'one chaku' was blood-stained. However, the prosecution has taken no steps to prove whether it was human blood, and if so, then was it of the same blood group as the deceased or not. Certainly, we should not be understood to have stated that a police officer by himself cannot prove a recovery, which he was affected during the course of an investigation and in accordance with law. However, it is to be noted that in such cases, the statement of the investigating officer has to be reliable and so trustworthy that even if the attesting witnesses to the seizure turns hostile, the same can still be relied upon, more so, when it is otherwise corroborated by the prosecution evidence, which is certainly not there in the present case."

60. Since their Lordship of the Hon'ble High Court of Delhi in case Ram Das and Anr. Vs. The State (NCT of Delhi), Criminal Appeal 124/1997 was pleased to observe that

"Once the testimony of PW2 Vijender is found unreliable, we are left with only one incriminating circumstance ie the recovery of churi Ex.P3 recovered at the instance of appellant Ram Das. As per the case of prosecution, the recovered churi Ex.P3 was sent to CFSL for chemical analysis. Though some traces of human blood were found on the churi but it gave nil in the reaction for the blood group. The result is that blood

group on the churi has not been connected with the blood group of the deceased which was found to be "O" group. This circumstance, in absence of any other cogent incriminating evidence against the appellants, is not sufficient to hold the appellants guilty."

61. Since the perusal of the record reveals that the statement of PW-2 Sanjay Kumar Singh was recorded u/s.161 of CrPC Ex.PW2/DA, bear the date 01.11.2014 of its recording. But, this witness during his cross-examination has deposed that he went to the police station for the first time for recording of his statement on 02.11.2014 and PW-17 Sandeep Tushir claims to have recorded statement of this PW2 Ex.PW2/DA, on dated 01.11.2014. So, there are material contradictions in the statements of PW2 Sanjay Kumar and PW-17 Sandeep Tushir. PW-2 Sanjay Kumar Singh has also deposed during his cross-examination that PW-2 (Sanjay Kumar Singh) did not tell the names of the accused to the police. This witness has also deposed during his cross-examination that he did not know the name of accused. But, it is the mystery as to when PW-2 Sanjay Kumar Singh had come to understand the names of both the accused. Since, the occurrence is alleged to have taken place at 5.45/6.00pm on 31.10.2014 and DD No.59B is alleged to have been lodged on the basis of the PCR call allegedly made by PW2. But, in the PCR form Ex.PW4/A, DD No.59B Ex.PW13/C lodged at 6.13PM on 31.10.2014 and FIR Ex.PW6/A lodged on 31.10.2014 at 11.20PM, the names of the accused are not mentioned. If the PW-2 had seen the accused, prior to this occurrence, he could give the names of the accused

to the police at the time of making call at 100 number. But he did not name the accused and since the statement of this witness u/s.161 CrPC Ex.PW2/DA was allegedly recorded on dated 01.11.2014. Whereas, first IO PW-17 SI Sandeep Tushir had met to the PW-2 Sanjay Kumar Singh on 31.10.2014, it is not explained as to what had prevented PW-17 SI Sandeep Tushir from recording the statement of PW-2 Sanjay Kumar Singh on dated 31.10.2014 at the spot. The statement of PW17 claims that he had recorded the statement of PW2 Sanjay Singh on dated 01.11.2014. Whereas, PW2 Sanjay Singh has deposed in his cross-examination that he went to the police station for the first time on dated 02.11.2014. Thus, there are material contradictions in the statement of PW2 Sanjay Singh and PW17 SI Sandeep Tushir. So, the possibility of planting of this witness after the demise of Vijender Kumar Meena cannot be ruled out and thus, the testimonies of PW2 and PW17 become doubtful being contradictory to each other. Statement of PW11 Dayanand Verma u/s.161 of CrPC Ex.PW11/DA was recorded on 04.11.2014. Whereas, the statement of PW16 Prashant Verma u/s. 161 of Cr.PC Ex.PW16/DA was recorded on 01.11.2014 and the delay has not been explained by the prosecution.

62. Since, their Lordship of High Court of Delhi in case Sonu Arora Vs. State., Crl. A. No.241/1997 was pleased to observe

"In his cross-examination, Lalu Prasad stated that he had put Zaheer in PCR van and blood stains had come on his shirt. He also stated that the blood stains were shown by him to the police but his clothes were

not seized by the police. There is no explanation for not seizing the bloodstained clothes of Lalu Prasad despite his having shown them to the police. The failure of the Investigation Officer to seize the clothes of Lalu Prasad is an indication that, in fact, he had not witnessed the actual stabbing and had not put Zaheer in PCR van, as claimed by him. Had he done so, the Investigating Officer would definitely have seized his bloodstained shirt."

"It would also be pertinent to note here that though Lalu Prasad claims to be a friend of deceased Zaheer and also claims to have accompanied him to AIIMS in PCR van, his name does not find mention in the MLC of the deceased against the name of relative/friend and it is name of HC Virender Singh which has been shown against the relative/friend column of the MLC. If Lalu Prasad had accompanied deceased Zaheer to the hospital, as claimed by him, his name and not the name of the police Official would have been recorded against the column of 'relative or friend' of the injured brought to the hospital. These facts and circumstances lead to a strong inference that either Lalu Prasad had not witnessed this incident at all or he had left when the quarrel intensified and that is why, he did not meet the police officer either on the spot or in the hospital and his shirt was not seized by the police."

"Also, had Lalu Prasad witnessed the stabbing of Zaheer and Nizam, there would have been no contradiction, in the statement given by him to the police on th one hand, and his deposition during trial on the other hand, with respect to the core part of his testimony i.e who had stabbed Zaheer and who had stabbed Nizam."

"According to the Investigating Officer, though Lalu Prasad had met him on the spot at about 1:30 am and he had also obtained signatures of the witness on the memos prepared on the spot, his statement under Section 161 Cr. P. C. was recorded by him only at 5:30 PM. There is absolutely no explanation from the prosecution for his abnormal delay in recording the statement of Lalu Prasad."

"Ex. PW 17/A is the site plan stated to have bee prepared by the IO in the nigh of 18/19 October, 1993 at the instance of Lalu Prasad. The site plan indicates point 'G' as the place where Lalu Prasad had fight with accused persons and was beaten in front of Paan shop of Raj Karan by Mahmood and Anis @ Munna @ Nanhey. It has also been noted in the plan that Lalu Prasad and Raj Karan saw the incident from the rear point 'G'. These nothings on the site plan show that the Investigating Officer had already examined Lalu Prasad in respect of the incident in question. Without questioning him, the Investigating Officer could not have known the point where Lalu Prasad had fight with the accused persons and was beaten in front of the Paan Shop of Raj Karan. Similarly, without talking to him the Investigating Officer could not have known the place from where he had seen the incident taking place. No explanation, however, has been given by the prosecution for recording the statement of Lalu Prasad at 5:30 pm, i.e., after a gap of abut 16 hours from the time he met the Investigating Officer. The unexplained delay in recording the statement of lalu Prasad need to be viewed in the light of the fact that he did not meet the police officer, SI Raj Singh, either on the spot when he reached there on receipt of information from Police Control Room or in the hospital,

despite his claim that he had accompanied PCR Officials to the hospital in their van and had returned to spot with them in the same van and no official on duty in PCR van has been produced to prove that Lalu Prasad had met them on the spot, had accompanied them to AIIMS and then returned to spot with them in their van. The delay also needs to be viewed in the light of the fact that there is material contradiction in the statement given by Lalu Prasad to the police and his statement in the court as regards who stabbed whom Raj Karan."

63. As held by the **Supreme Court in State of UP V. Mundrika and Ors. MANU/SC/0786/2000: (2001) 9 SCC 346**, *"the unexplained delay in recording of statement of material eye-witness throws a serious doubt as to whether he was really an eye-witness or not . If the delay in recording the statement of eye-witness remains unexplained, the inference is that either he was not an eye witness or the version of the incident given by him was a fabricated version. In Maruti Rama Naik v. State of Maharashtra MANU/SC/0684/2003:(2003) 10 SCC 670, a witness examined as PW -3 was examined by police after one day of the incident. The explanation given by the Investigating Officer with regard to the delay in recording his statement was that the witness was injured and had to be taken to Bombay and brought back to Palwal for treatment. Considering the nature of his injury and the opportunity available to the Investigating Officer to record his statement, Supreme Court rejected the explanation and disbelieved the witness."*

"In the present case, no attempt at all has been made by the

Investigating Officer to explain the abnormal delay of 16 hours in recording the statement of Lalu Prasad despite his being available to the police and his signatures having been taken on the memos alleged to have been prepared on the spot. The delay on the part of the Investigating Officer in recording the statement of Lalu Prasad when considered in the light of the fact that there is material contradiction in his statement to the police and his deposition in the court as to who had a stabbed whom, there was no visible injury on the person of Lalu Prasad despite the incident having started on account of an altercation between him an accused Mahmood, the version of the incident given by him as regards the role attributed to the appellant Sonu is contradictory to the version recorded in the brief facts prepared by the Investigating Officer on 20th October, 1993. He did not meet the investigating Officer either in the hospital or at the spot, his clothes were not been seized despite his assertion that he had shown bloodstained clothes to the Investigating Officer and Raj Karan, Paanwala, has not supported his claim regarding his (Raj Karan's) being present at his sop creates, serious doubt on the truthfulness of the deposition of this witness. There is a strong probability of Lalu Prasad having left the spot before the stabbing took place. That also explains his not having met the Investigating Officer either in the hospital or at the spot, no bloodstained clothes of this witness having been seized, contradiction being found in his statement, as to who had stabbed whom and absence of any role attributed to the appellant Sonu in the brief facts recorded by the Investigating Officer on 20th October, 1993."

64. Their Lordship of Supreme Court of India in case Harbeer Singh & Ors. Vs. Sheeshpal & Ors. MANU/SC /1348/2016 was pleased to observe

"We have given careful consideration to the submissions made by the parties and we are inclined to agree with the observations of the High Court that PW 3 and PW 9 were not witnesses to the alleged conspiracy between the accused persons since not only the details of the conversation given by these two prosecution witnesses were different but also their presence at the alleged spot at the relevant time seems unnatural in view of the physical condition of PW9 and the distance of Sheeshpal's Dhani from Sikar road. Besides, it appears that there have been improvements in the statements of PW3. The Explanation to section 162 Code of Criminal Procedure provides that an omission to state a fat or circumstance in the statement recorded by a police officer Under Section 161 Code of Criminal Procedure, may amount to contradiction if the same appears to be significant and otherwise relevant having regard to the context in which such omission occurs and whether any omission amounts to a contradiction in the particular context shall be a question of fact. Thus, while it is true that every improvement is not fatal to the prosecution case, in cases where an improvement creates a serious doubt abut the truthfulness or credibility of a witness, the defence may take advantage of the same. [See ***Ashok Vishnu Davare v. State of Maharashtra*** *MANU/SC/0126/2004:(2004)9 SCC 431;* ***Radha Kumar v. State of Bihar (now Jharkhand)*** *(2005) 10 SCC 216;* ***Sunil Kumar***

Sambhudayal Gupta (Dr.) and Ors. v. State of Maharashtra *MANU/SC/0947/2010: (2010) 13 SCC 657 and* ***Baldev Singh v. State of Punjab*** *MANU/SC/0170/2014 : (2014) 12 SCC 473]. In our view, the High Court had rightly considered these omissions as material omissions amounting to contradictions covered by the Explanation to Section 162 Code of Criminal Procedure. Moreover, it has also come in evidence that there was a delay of 15-16 days from the date of the incident in recording the statements of PW 3 and PW 9 and the same was sought to be unconvincingly explained by reference to the fact that the family had to sit for shock meetings for 12 to 13 days. Needless to say, we are not impressed by this explanation and feel that the High Court was right in entertaining doubt in this regard."*

"As regards the incident of murder of the deceased, the prosecution has produced six eye-witnesses to the same. The argument raised against the reliance upon the testimony of these witnesses pertains to the delay in the recording of their statements by the police Under Section 161 of code of Criminal Procedure. In the present case, the date of occurrence was 21.12.1993 but the statements of PW 1 and PW 5 were recorded after two days of incident, i.e., on 23.12.1993. The evidence of PW 6 was recorded on 26.12.1993 while the evidence of PW 11 was recorded after 10 days of incident , i.e., on 31.12.1993. Further, it is well-settled law that delay in recording the statement of the witnesses does not necessarily discredit their testimony. The court may relay on such testimony if they are cogent and credible and the delay is explained to the satisfaction of the Court." [See ***Ganesh v. State of Maharashtra***

MANU/SC/0506/1992 : (1992) 3 SCC 106; ***Mohd. Khalid v. State of W. B.*** *MANU/SC/0722/2002: (2002) 7 SCC 334;****Prithvi (Minor) v. Mam Raj and Ors.*** *MANU/SC/0143/2004: (2004) 13 SCC 279 and* ***Sidhartha Vashishth @ Manu Sharma v. State (NCT of Delhi)*** *MANU/SC/0268/2010 : (2010) 6 SCC1]"*

65. However, **Ganesh Bhavan Patel v. State of Maharashtra** MANU/SC/0083/1978: (1978) 4 SCC 371, *"is an authority for the proposition that delay in recording of statements of the prosecution witnesses Under Section 161 Code of Criminal Procedure, although those witnesses were or could be available for examination when the Investigating Officer visited the scene of occurrence or soon thereafter, would cast a doubt upon the prosecution case [See also* ***Balakrushna Swain v. State of Orissa*** *MANU/SC/0075/1971: (1971) 3SCC 192;* ***Maruti Rama Naik v. State of Maharashtra*** *MANU/SC/0684/2003: (2003) 10 SCC 670 and* ***Jagjit Singh v. State of Punjab*** *MANU/SC/0044/2005: (2005) 3 SCC 681]. Thus, we see no reason to interfere with the observations of the High Court on the point of delay and its corresponding impact on the prosecution case."*

66. Since, Shri Vijender Meena died on 02.11.2014 in the Balaji Action hospital and since PW-2 Sanjay Singh has deposed that for the first time, he went to the police station on 02.11.2014. So, the possibility of recording of statement of PW2 Sanjay Singh by PW17 SI Sandeep Tushir on dated 02.11.2014 that too after the demise of Vijender Meena after due

deliberations and colouring the version, cannot be ruled out. PW-2 Sanjay Singh and PW-11 Dayanand Verma have deposed in their cross-examination that their clothes were stained with blood, when, they took Vijender Meena to the Sanjay Gandhi Memorial hospital in injured condition. But, presence of PW2 Sanjay Singh and PW11 Dayanand Verma at the time and place of occurrence and also in the SGM hospital and the time of taking of Vijender Meena in the said hospital, is doubtful and the PW17 SI Sandeep Tushir, who was assigned initial investigation could seize the alleged blood stained clothes of PW2 and PW11. But PW-2 Sanjay Singh and PW11 Dayanand Verma have not stated in their statements that their clothes were ever stained with blood and it appears to the court that these prosecution witnesses No.2 and 11 have introduced new facts at the time of their cross-examination and since, their alleged blood stained clothes are also not seized, so, it cannot be assumed or presumed that the clothes of these prosecution witnesses were either stained with the blood or that they were present at the spot or in the SGM hospital. Since, the MLC of deceased Vijender Meena Ex.PW14/A reveal that he was conscious and oriented on 31.10.2014 at 7.10PM, when, he was taken in the Sanjay Gandhi Memorial hospital and as per the MLC Ex.PW14/A of the deceased, he was taken in the hospital by Ms. Neha Sharma from the CAT Staff of Ambulance and the SI Sandeep Tushir (PW17) has deposed that after receiving information, he went to the spot and it was told that the injured was taken to the hospital. But, this witness has failed to tell that who had told him that injured was taken to the hospital. As, it is mentioned in the MLC of injured Vijender Meena

Ex.PW14/A that he was conscious and oriented. So, this PW17 SI Sandeep Tushir could go to the Sanjay Gandhi Memorial hospital immediately and could inquire from Vijender Meena or Ms. Neha Sharma of CAT Ambulance Staff who had taken to Vijender Meena in the Sanjay Gandhi Memorial hospital. But, this PW17 SI Sandeep Tushir did not bother to arrive in the Sanjay Gandhi Memorial hospital immediately. Had he arrived in the Sanjay Gandhi Memorial hospital immediately, he could enquire from the Vijender Meena or from Ms. Neha Sharma of CAT Ambulance Staff or from the Dr. Jatin who had medico legally examined to Vijender Meena vide his MLC Ex.PW14/A, as to who had told to that doctor that Vijender Meena was assaulted. But, SI Sandeep Tushir (PW17) did not inquire from Vijender Meena, Ms. Neha Sharma, of CAT Ambulance Staff and Dr. Jatin, who had medico legally examined to the Vijender Meena in Sanjay Gandhi Memorial hospital. Since the PCR form Ex.PW4/A reveals the phone number of the caller Sanjay Kumar Singh. But, this PW17 SI Sandeep Tushir did not bother to contact with Sanjay Kumar Singh immediately and if the cross-examination of this PW17 SI Sandeep Tushir is looked into, then, for the first time, he had arrived at the spot on 31.10.2014 at 11.45PM and in his examination in chief, he has stated that he met with Sanjay Singh. But in his cross-examination, he has stated that no public person met him and this witness even admitted that he did not record the statement of Sanjay Singh on the spot on 31.10.2014. Such conduct of SI Sandeep Tushir (PW17) shows his negligent conduct and lackadaisical approach and in view of contradictory testimony of this witness, it does not inspire any confidence therein.

67. Since, the MLC Ex.PW14/A of Vijender Meena reveals that patient was conscious and oriented at the time of his arrival in Sanjay Gandhi Memorial hospital and this MLC also reveals that Vijender Meena was brought to the Sanjay Gandhi Memorial hospital by Ms. Neha Sharma of CAT Ambulance Staff and if, Vijender Meena was conscious and oriented, he would have told to Ms. Neha Sharma of CAT Ambulance Staff as to who had caused him injuries. But, IO has failed to record the statement of Ms. Neha Sharma of CAT Ambulance Staff who had taken Vijender Meena to the Sanjay Gandhi Memorial hospital (in injured condition) for the best reasons known to the IO. Since the occurrence is alleged to have taken place on dated 31.10.2014 at about 6.00PM, the accused were not named in the FIR. PW7 SI Sandeep Tushir claims to have recorded the statement of (PW2) Sanjay Kumar Singh on dated 01.11.2014 in the police station. Whereas, PW2 has deposed that he went to the police station for the first time on dated 02.11.2014. The prosecution has failed to explain as to why the statement of PW2 Sanjay Kumar Singh was not recorded promptly on 31.10.2014. Statement of another alleged eye witness PW11 namely Dayanand Verma is alleged to have recorded by the IO on 04.11.2014. The prosecution has failed to explain any cogent reason for non-recording of the statement of PW-2 and PW11 promptly. The perusal of the statement of PW2 Sanjay Kumar Singh Ex.PW2/DA allegedly recorded on 01.11.2014 by the IO does not reveal the name of Dayanand Verma. Had PW2 Sanjay Kumar Singh and PW-11 Dayanand Verma taken to Vijender Meena in the injured condition

to the Sanjay Gandhi Memorial hospital soon after the alleged occurrence, PW-2 could name PW11 and their names could be found in the record of the hospital. But, the MLC of Vijender Meena Ex.PW14/A reveals that Vijender Meena was taken to Sanjay Gandhi Memorial hospital on 31.10.2014 at 7.10PM, by Ms. Neha Sharma of CAT Ambulance Staff and it also reveals that Vijender Meena was conscious and oriented at the time when he was taken in the Sanjay Gandhi Memorial hospital. It is also mentioned in the MLC Ex.PW14/A that patient came in casualty with history of assault, history of nasal bleeding and vomiting and his pulse was recorded as 90, blood pressure was 120/80. It is not mentioned as to who had assaulted to Vijender Meena since lacerated wound on the occipital region was there, so surgical opinion was sought. Thus, the MLC Ex.PW14/A of the deceased Vijender Meena reveals that one injury on the rear portion of head of the deceased. IO could record the statement of Ms. Neha Sharma of CAT Ambulance Staff who had taken Vijender Meena in injured condition in the Sanjay Gandhi Memorial hospital. As Vijender Meena would have told her as to who had assaulted him. But IO, did not bother to examine Ms. Neha Sharma. Police had recorded information in the case in hand at 6.13PM, PCR form Ex.PW4/A reveals that "a call of JHAGDA" was given. The name of the accused and injured are also not mentioned therein. It is probable that the caller was not aware of the name of injured and assailant. If the caller was PW-2, then, why he did not name injured and accused at the time of making of calls at 100 number. It is not mentioned therein as to who were the parties to the said JHAGDA (quarrel). It is also not mentioned therein that who had assaulted to the

injured. Since in the PCR form, phone number of the caller was also mentioned. So, IO could contact with the caller promptly to record his statement regarding the occurrence. But, the police did not bother to contact with the caller of the said call promptly. Intimation to the police regarding the JHAGDA was received at 6.13PM on 31.10.2014 but if the cross-examination of PW17 SI Sandeep Tushir is looked into, he went at the spot at 11.45PM in the night of 31.10.2014. Thus, it also shows the negligent conduct and lackadaisical approach of the police who had left the alleged place of occurrence unattended for hours together, even then, the statement of alleged eye witness was not recorded by the IO on 31.10.2014, for the best reasons known to this IO.

68. Since, the charges under Section 302/34 of IPC were framed against both the accused, so, it was incumbent on the part of the prosecution to prove it's case beyond reasonable doubt's that both the accused in furtherance of their common intention have committed the murder of the deceased Vijender Kumar Meena. But, as the testimonies of the alleged eye witnesses viz. (PW2) Sanjay Kumar Singh and (PW11) Dayanand Verma are improved, embellished, contradictory and inconsistent to each other and inconsistent to the other witnesses of the prosecution, as discussed hereinabove paras. So, the same are suspicious, so the same are not relied upon. Since, it is proved on the record that prior to this occurrence on dated 29.10.2014, a quarrel had taken place between the family member of the accused and Dayanand Verma and his other family members. Wherein, accused Manoj, his

mother, father and brother Guddu were injured and they got treatment in the Sanjay Gandhi Memorial hospital. Documents of treatment of accused Manoj and his other family member have been proved on the record by DW1 to DW3. Thus, on the yardstick of preponderance of probabilities, PW-11 Dayanand Verma and his son Prashant Verma (PW16) may have motive to depose against the accused in view of previous enmity and since it is also admitted by PW11 Dayanand Verma and PW2 Sanjay Kumar Singh that they were on the good terms. So, it is probable that PW-2 would have deposed against the accused at the instance of PW-11 and PW16. The prosecution witnesses through their improved testimonies have tried to establish the motive of the accused to commit the murder of the deceased. But, as the testimonies of these prosecution witnesses were found to be improved, embellished and suspicious and no cogent evidence has been brought forth on the record by the prosecution to prove that the deceased had any role to play in the quarrel of Dayanand Verma and his family members with the accused Manoj and his other family members and in the absence of any cogent evidence, this court does not find any motive for the accused to commit the murder of the deceased. Since, the testimonies of the material prosecution witnesses are suspicious, so, they are not relied upon. Since, there is inordinate delay in recording of the statements of the prosecution witnesses by the IO and in the registration of the FIR and despite of considerable delay in the registration of the FIR, the accused are not named in the FIR. Since, the testimonies of the alleged eye witnesses PW-2 and PW11 are inconsistent to the medical evidence, which also renders the case of the

prosecution to be doubtful. Since, the injuries inflicted on the head of the deceased is proved to be fatal and in view of the same, it is mentioned in the postmortem report Ex.PX-1, “the cause of death is due to shock associated with Craniocerebral damage under injury No.1 which is sufficient to cause death in ordinary course of nature.” Since, the testimonies of PW2 and PW11 are suspicious. So, the same are not relied upon. It is probable that the deceased was assaulted by some persons, other than the accused and when, he would have been lying unattended, the CAT Ambulance would have taken Vijender Meena in an injured condition and in view of the same, the name of Ms. Neha Sharma, in the MLC (Ex.PW14/A) of Vijender Meena is written therein and the name of any eye witness or the wife of deceased are not written therein and PW2, PW11 and PW16 appear to be planted witnesses. Shri Heera Chand Meena (PW1) who is father of deceased and Shri Chhatar Singh (PW10) who is brother of deceased have not uttered even single word against the accused. Had there been any kind of strained relations between the deceased and the accused, the father and brother of the deceased could throw some light thereon. But, they did not utter any word against the accused. It shows that there was no enmity or bad blood between the accused and the deceased. The father and brother of the deceased even did not utter that the son of the deceased was taking any tuition from the wife of PW-2 Sanjay Kumar Singh. PW-2 IO SI Sandeep Tushir has admitted during his cross-examination that he had recorded the statement of the wife of deceased. But, it is withheld, so, the adverse inference is drawn against the prosecution. Since, there are many lacuna and infirmity

in the case of the prosecution, from which, the possibility of false implication of both the accused cannot be ruled out.

69. **As their lordship of Supreme Court in case *State of Rajasthan V. Raja Ram, V (2003) SLT 45-III (2003) CCR 198 (SC)=(2003) 8 SCC 180*** was pleased to hold that:

"There is no embargo on the appellate Court reviewing the evidence upon which an order of acquittal is based. Generally, the order of acquittal shall not be interfered with because the presumption of innocence of the accused is further strengthened by acquittal. The golden thread which runs through the web of administration of justice in criminal cases is that if two views are possible on the evidence adduced in the case, one pointing to the guilt of the accused and the other to his innocence, the view which is favourable to the accused should be adopted. The paramount consideration of the Court is to ensure that miscarriage of justice is prevented. A miscarriage of justice which may arise from acquittal of the guilty is no less than from the conviction of an innocent. In a case, where admissible evidence is ignored, a duty is cast upon the appellate Court to re-appreciate the evidence in a case where the accused has been acquitted, for the purpose of ascertaining as to whether any of the accused committed any offence or not (see Bhagwan Singh v. State of M.P., (2002) 4 SCC 85). The principle to be followed by appellate Court considering the appeal against the judgment of acquittal is to interfere only when there are compelling and substantial reasons for doing so. If the impugned judgment is clearly unreasonable, it is a

compelling reason for interference. These aspects were highlighted by this Court in Shivaji Sahabrao Badade v. State of Maharashtra, (1973) 2 SCC 793; Ramesh Babulal Doshi v. State of Gujarat, (1996) 9 SCC 225 and Jaswant Singh v. State of Haryana, (2000) 4 SCC 484."

70. Since in the case of **State of West Bengal v. Orilal Jaiswal and another (1994) 1 Supreme Court Cases 73,** "it was held that *Justice cannot be made sterile on the plea that it is better to let hundred guilty escape than punish an innocent. Letting guilty escape is not doing justice, according to law. In the case of Mohan Singh and anr. v. State of M.P. (1999) 1 Supreme Court Reports 276, it was held that the courts have been removing chaff from the grain. It has to disperse the suspicious cloud and dust out the smear of dust as all these things clog the very truth. So long chaff, cloud and dust remains, the criminals are clothed with this protective layer to receive the benefit of doubt. So it is a solemn duty of the courts, not to merely conclude and leave the case the moment suspicions are created. It is onerous duty of the court, within permissible limit to find out the truth. It means, on one hand no innocent man should be punished but on the other hand to see no person committing an offence should get scot free. If in spite of such effort suspicion is not dissolved, it remains writ at large, benefit of doubt has to be credited to the accused."*

71. In the case of **Mohan Singh and anr. v. State of M.P. (1999) 1 Supreme Court Reports 276,** it was held that "*the courts have been*

removing chaff from the grain. It has to disperse the suspicious cloud and dust out the smear of dust as all these things clog the very truth. So long chaff, cloud and dust remains, the criminals are clothed with this protective layer to receive the benefit of doubt. So it is a solemn duty of the courts, not to merely conclude and leave the case the moment suspicions are created. It is onerous duty of the court, within permissible limit to find out the truth. It means, on one hand no innocent man should be punished but on the other hand to see no person committing an offence should get scott free. If in spite of such effort suspicion is not dissolved, it remains writ at large, benefit of doubt has to be credited to the accused."

72. Cumulative effect of the above discussion, is that since the testimonies of the PW-2 Sanjay Kumar Singh, PW-11 Dayanand Verma and PW16 Prashant Verma are found to be improved, embellished, inconsistent, contradictory and suspicious, so they do not inspire any confidence and benefits of doubt are given to the accused.

73. In view of the above discussion, I am of the considered opinion that it will be unsafe to convict to the accused, as there are so many infirmities, holes and lacunae in the version of the prosecution as discussed hereinabove. Since doubts are also there in the version of witnesses of the prosecution and benefits of doubts are given to the accused. Therefore,I am inclined to hold that the prosecution has failed to prove it's case beyond reasonable doubt against the accused Manoj and

Anil. Accordingly, accused Manoj and Anil are acquitted of the charges framed against them. They are directed to be released on furnishing bail bonds in a sum of Rs.10,000/- with one surety of like amount each for a period of six months to ensure their attendance and appearance before the Ld. Appellate Court, as per provision of Section 437A of Cr.PC. The case properties are ordered to be disposed off after expiry of statutory period of filing of the appeal, as per law. (and after verifying from the Hon'ble Appellate forum regarding the pendency of appeal, if any.)

74. File be consigned to the Record Room on furnishing of the bail bonds / surety bonds under Section 437A of CrPC.

PAWAN KUMAR MATTO Digitally signed by PAWAN KUMAR MATTO Date: 2018.09.18 16:15:13 +0530

Announced in the Open Court on
18th September, 2018

(Pawan Kumar Matto)
Special Judge (NDPS),
Additional Sessions Judge, N/W
Rohini Courts, Delhi.